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TR NO: 105342/2025

**IN THE HIGH COURT OF KARNATAKA, DHARWAD
BENCH AT : DHARWAD
PRESENTATION FORM**

WP No. 105799 /2025

Serial No. _____

District _____

Between

Santosh B. Mane

ADVOCATE

LIG II/B, H. No. 9, Chaitanya Nagar, DHARWAD.

M : 9880971825, 7259972825

email : manebsantosh@gmail.com

Krishna Bhagya Tala

Nigam Limited

And

The Special Land

Acquisition Officer & others

Sl. No.	Description of Paper Presented	Court Fee Affixed on the paper
1.	On the Memo of <u>Writ</u> Petition	
2.	On the Memo of Appeal	
3.	On Vakalath	
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**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH, AT DHARWAD**

WP No. /2025

BETWEEN:

Krishna Bhgaya Jala Nigam Limited

Petitioner

AND:

The Special Land Acquisition Officer & Ors

Respondents

INDEX

Sl. No.	Particulars	Page Nos.
1	Synopsis	1 - 5
2	Memorandum of Writ Petition	6 - 22
3	Verifying Affidavits	23 -
4	Annexure-A: True Copy of Judgment & Award dated 1-7-2023 passed in LAC No. 731/2018	- 24 - 52
5	Annexure-B: The true copy of the certificate of incorporation	53
6	Annexure-C: True Copy of Award dated 24-1-2017.	- 54 - 75
7	Annexure-D: True Copy of Reference Application / Petition dated 15.03.2017	- 76 - 80
8	Vakalat	81 - 82
9	IA No. 1/2025 for Dispensation	83 - 84
10	Verifying Affidavit	85

Dharwad

Date: 08/07/2025

Advocate for Petitioner
(Santosh B. Mane)

- 1 -

**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH, AT DHARWAD**

WRIT PETITION No.

/2025

BETWEEN:

Krishna Bhagya Jala Nigam Limited
Represented by its Executive Engineer

Petitioner

AND:

The Special Land Acquisition Officer & Ors

Respondents

SYNOPSIS

Dates	Events
05.06.2014	Notification dated 29.05.2014 under Section 11(1) Right to Fair Compensation & Transparency in Land Acquisition, Rehabilitation & Resettlement Act, 2013 (herein after referred to as RFCTLARR Act, 2013) was published in the Official Gazette in respect of land bearing Survey No. 206/1B measuring 1-36 acre & other lands situated at Vajramatti Village, Mudhol Taluk, Bagalkot District under Upper Krishna Project of Krishna Bhagya Jala Nigam Limited.
31.05.2016	Notification U/Sec. 19(1) of the RFCTLARR Act, 2013 came to be published in the Official Gazette.
24-1-2017	The SLAO – Respondent No. 1 passed the Award by determining the market value at Rs. 1,38,000/- Per Acre for dry lands by following sale statistics method
15.03.2017	Being aggrieved by the Award made by the SLAO, the Claimant submitted reference application under Section 64 (1) and (2) of the Act before Respondent No.1
22-06-2018	After receipt of Reference Petition / Application, LAC No. 731/2018 was registered on the file of 1 Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi.

	It is pertinent to submit that, the Petitioner being the beneficiary of the acquisition proceedings was not arrayed as a party to any of the Proceedings.
1-7-2023	The Reference Court allowed the Reference Application / Petition in part, by re-determining the compensation at Rs. 5,272/- Per Sq. Meter along with statutory benefits.
27-10-2023	Feeling aggrieved by the Judgment & Award passed by the Reference Court, Respondent No.1 - SLAO, Upper Krishna Project & the Respondent No.2 - the State of Karnataka through Deputy Commissioner, Bagalkot approached this Hon'ble Court in MFA No 105290/2023 and the claimant has also filed MFA 104580/2023, without arraying the Petitioner as a party Respondent both the appeals are pending consideration.

BRIEF FACTS

Points that arise for Consideration in this Petition are:

1. Whether any judgment and award passed without impleading the beneficiary of the acquisition under New Land Acquisition Act, 2013 is valid and binding on the beneficiary of the project though person interested as defined under Section 3(x) of the New Land Acquisition Act, 2013 or as defined under Section 3(b) of the Land Acquisition Act, 1894?
2. Whether the Reference Court is justified in law and on facts in redetermining the compensation without issuing notice or impleading the Petitioner who is not only necessary but also a proper party to the proceedings?
3. Whether denial of right of hearing to a 'person interested' is in negation of fair and proper procedure and thereby violative of Article 14 of the Indian Constitution?
4. Whether Reference Court is justified in law and on facts in not complying the mandatory requirement of Section 66 of the

New Land Acquisition Act, 2013 before redetermining the compensation?

5. Whether the SLAO and Reference Court is justified in law and on facts in not affording an opportunity to adduce evidence as contemplated under Section 50(2) of the Land Acquisition Act, 1894 and under Section 95 of the New Land Acquisition Act, 2013 before re-determining the compensation?

6. Whether Judgment and Award passed by the Reference court is an illegal and unjust award for having not adhered to principles of fair and just procedure?

7. Whether the Reference Court is justified in law and on facts in redetermining the compensation by erroneously holding that the reference application and reference under Section 64 of the New Land Acquisition Act, 2013 are within the time prescribed therein?

8. Whether the SLAO is justified in law and on facts in referring the reference application dated 15-3-2017 to the Reference Court after expiry of stipulated period, which was filed under Section 64, contrary to Proviso to Section 64 (1) and (2) of the New Land Acquisition Act, 2013?

9. Whether the Reference Court is justified in law and on facts in redetermining and awarding exorbitant compensation contrary to Section 26 to 30 of the New Land Acquisition Act, 2013?

10. Whether the Reference Court is justified in law and on facts in placing reliance on Sale agreements and sale Deeds of the year 2020 in respect of lands and sites. executed just prior to the issuance of notification under Section 11 of the New Land Acquisition Act, 2013?

BRIEF FACTS

The Krishna Bhagya Jala Nigam Ltd (KBJNL) was incorporated on 19.08.1994 under the Companies Act, 1956 as a

Company, wholly owned by the Government of Karnataka for implementation of the Upper Krishna Project (UKP) in the State of Karnataka. The Company is responsible for planning, investigation, estimation, execution, operation and maintenance of all irrigation projects coming under the Upper Krishna Project.

For the purpose of construction of Rehabilitation Centre in favour of the displaced persons of Machakanur Village of Bilagi Taluk, whose properties came to be submerged under Upper Krishna Project of Petitioner Company, a Notification dated 29.05.2014 under Section 11(1) Right to Fair Compensation & Transparency in Land Acquisition, Rehabilitation & Resettlement Act, 2013 (herein after referred to as RFCTLARR Act, 2013) was published in the Official Gazette on 05.06.2014 in respect of land bearing Survey No. 206/1B measuring 1-36 Acre & other lands situated at Vajramatti Village, Mudhol Taluk, Bagalkot District.

On 31-5-2016, a Notification U/Sec. 19(1) of the RFCTLARR Act, 2013 came to be published in the Official Gazette.

Thereafter, on 24.01.2017 the SLAO - Respondent No. 1 passed the Award by determining the market value at Rs. 1,38,000/- Per Acre for dry lands & Rs. 2,73,000/- Per Acre for wet lands, by following sale statistics method.

Being aggrieved by the Award made by the SLAO, on 7-3-2017 the Claimant submitted reference application under Section 64 (1) and (2) of the Act before Respondent No.1.

After receipt of Reference Petition / Application, LAC No. 731/2018 was registered on 22.06.2018 on the file of 1 Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi. In the said proceedings, only the SLAO, Upper Krishna Project and the State of Karnataka Represented by Deputy Commissioner, Bagalkot were arrayed as Respondents. It is pertinent to submit that, the Petitioner being the beneficiary of the acquisition proceedings, was not arrayed as a party to the Reference Proceedings.

The Reference Court, by its judgment and award dated 01.7.2023, allowed the Reference Application / Petition in LAC No. 731/2018 in part, by re-determining the compensation at Rs. 5,272/- Per Sq. Meter along with statutory benefits.

Feeling aggrieved by the Judgment & Award passed by the Reference Court, Respondent No.1 - SLAO, Upper Krishna Project & the Respondent No.2 - the State of Karnataka through Deputy Commissioner, Bagalkot approached this Hon'ble Court in MFA No 105290/2023 and the claimant has also filed MFA 104580/2023 without arraying the Petitioner as a party both the appeals are pending consideration.

Since the Petitioner was not a party to the proceedings the present writ petition under Article 226 is maintainable and the Petitioner being the beneficiary of the project can maintain the present petition.

Hence this writ petition.

Dharwad

Date: 08/07/2025

Advocate for Petitioner

(Santosh B. Mane)

- 6 -

**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH AT DHARWAD**

(SUPERVISORY JURISDICTION)

WP No.

/2025

RANK OF THE PARTIES

LAC / MFA / WP

BETWEEN:

Krishna Bhagya Jala Nigam Limited
Represented by its Managing Director
Kishna Bhagya Jala Nigam Ltd,
3rd Floor, PWD Office Annexe
Building K.R.Circle Bangaluru-560001

Not a Party / Not a Party / Pétitioner

AND:

1. The Special Land Acquisition Officer

Upper Kirshna Project

Jamakhandi – 587 301, Dist. Bagalkot.

Resp No. 1 / Appellant No. 1 / Resp No. 1

2. General Manager Land Acquisition

@ LAQ R& R UKP Navanagar

Bagalkot-587103

Resp No. 2 / Appellant No. 2 / Resp No. 2

3. The State of Karnataka

Represented by

The Deputy Commissioner, Bagalkot

Navanagar, Bagalkot – 587 103

Resp No. 3 / Appellant No. 3 / Resp No. 3

4. Smt Parvatewwa W/o Holabasu

@ Holabasappa Dupad

Aged about 56 years

Occ: Not known

5. Smt Shobha W/o Srikant Huddar

Age Major Occ: Not known

6. Kum Shashikala

7. Kum Shrathi

8. Kum Shilpa

9. Shridhar

(Resp 4 to 8 are children of Holabasappa

Dupad resp 5 to 8 are minors represented

By mother resp-3) all are R/o

Claimant No. 1 to 6 / Resp No. 1 to 6 / Resp No.4 to 9

**MEMORANDUM OF WRIT PETITION UNDER ARTICLES 226 &
227 OF THE CONSTITUTION OF INDIA**

The Petitioner above named respectfully submits as follows: -

1. The Petitioner has filed the present petition seeking for the Issuance of Writ in the nature of Certiorari quashing the Judgment dated the Judgment & Award date 1-7-2023 passed in LAC No. 731/2018 on the file of the I Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi & the Land Acquisition, Rehabilitation & Resettlement Authority, Jamakhandi vide **Annexure - A** and for issuance of Writ in the nature of Mandamus directing the Reference Court to reopen the proceedings after impleading the present Petitioner as a party Respondent.

2. The Petitioner company was incorporated on 19.08.1994 under the Companies Act, 1956, wholly owned by the Government of Karnataka for implementation of the Upper Krishna Project (UKP) in the State of Karnataka. The true copy of the certificate of incorporation is produced as per **ANNEXURE -B**. The main objects for which the company is established are:

- a) To undertake planning, investigation, estimation, execution, operation and maintenance and also the works of Krishna CADA, UKP, for Field Irrigation Channels (FICs), Ayacut roads and other engineering works of all the irrigation projects coming under Upper Krishna Project and the construction of barrages and such other related works across the river Bhima and the river Krishna, main canals, distributaries, tanks and such other watersheds under various schemes and any other works, which are allocated and directed by the Government from time to time, in Krishna River Basin of Karnataka keeping in view the award of the Tribunal on Krishna Water Setup under Section 4 of

the Inter-State Water Disputes Act, 1956 and the allocation of the water made by the Government of Karnataka. However, the power project at Alamatti Dam site will be executed by the company in accordance with the requirements of Karnataka Power Corporation Ltd.

- b) To prepare detailed project reports and estimates of irrigation projects in accordance with guidelines of Government of India / Government of Karnataka and to obtain their approvals as the case may be.
- c) To implement the externally aided Upper Krishna Irrigation Project in Krishna valley in accordance with the guidelines of the Government of India / Government of Karnataka.
- d) To undertake resettlement and rehabilitation of the people affected by the construction of the project in accordance with the policies set forth by the Government of Karnataka / Government of India.
- e) To draw standards and specifications for implementation of the project and maintenance thereof.
- f) Acquiring and holding such movable and immovable property as it may deem necessary and to lease, sell or otherwise transfer any such property Constructing or causing to be constructed such dams, barrages, reservoirs, power houses, power structures, electrical transmission lines and sub-stations, navigation works, irrigation and drainage canals and such other works and structures as may be required.

3. It is submitted that for the purpose of construction of Rehabilitation Centre in favour of the displaced persons of Machakanur Village of Bilagi Taluk, whose properties came to be submerged under Upper Krishna Project of Petitioner Company, a Notification dated 29-5-2014 under Section 11(1) Right to Fair Compensation & Transparency in Land Acquisition, Rehabilitation & Resettlement Act, 2013 (herein after referred to as RFCTLARR Act, 2013) was published in the Official Gazette on 05.06.2014 in

respect of land bearing Survey No. 206/1B measuring 1-36 Acre & other lands situated at Vajramatti Village, Mudhol Taluk, Bagalkot District.

4. On 31.05.2016, a Notification U/Sec. 19(1) of the RFCTLARR Act, 2013 came to be published in the Official Gazette.

5. Thereafter, on 24.01.2017 the SLAO - Respondent No. 1 passed the Award by determining the market value at Rs. 2,51,000/- Per Acre for dry lands & Rs. 5,44,870/- Per Acre for wet lands, by following sale statistics method. True Copy of SLAO Award dated 24.01.2017 is produced as per **ANNEXURE - C**.

6. Being aggrieved by the Award made by the SLAO, on 24-1-2017 the Claimant submitted reference application under Section 64 (1) and (2) of the Act before Respondent No.1. True Copy of Reference Application / Petition dated 15-3-2017 is produced as per **ANNEXURE - D**.

7. After receipt of Reference Petition / Application, LAC No. 731/2018 was registered on 22.06.2018 on the file of II Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi. In the said proceedings, only the SLAO, Upper Krishna Project and the State of Karnataka Represented by Deputy Commissioner, Bagalkot were arrayed as Respondents. It is pertinent to submit that, the Petitioner being the beneficiary of the acquisition proceedings, was not arrayed as a party to the Reference Proceedings.

8. The Reference Court, by its judgment and award dated 1-7-2023, allowed the Reference Application / Petition in LAC No. 731/2018 in part, by redetermining the compensation at Rs. 5,272/- Per Sq. Meter along with statutory benefits. True Copy of Judgment & Award dated 1-7-2023 passed in LAC No. 731/2018 on the file of the I Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi are produced as per **ANNEXURE - A**.

9. Feeling aggrieved by the Judgment & Award passed by the Reference Court, Respondent No.1 - SLAO, Upper Krishna Project & the Respondent No.2 - the State of Karnataka through Deputy

Commissioner, Bagalkot approached this Hon'ble Court in MFA No 105290/2023 and the claimant has also filed MFA 104580/2023, without arraying the Petitioner as a party Respondent both the appeals are pending consideration.

10. It is submitted that, the Petitioner, being the beneficiary of the acquisition, is a 'person interested' under the Act, 2013 and thus is a proper and necessary party to the proceedings before the Reference Court as well as this Hon'ble Court. However, the Petitioner has not been arrayed as a party Respondent either before the Reference Court in LAC for the reasons best known to the Claimants. Since the impugned order has been passed without hearing the Petitioner - Beneficiary, the Petitioner is left with no other alternative but to approach this Hon'ble Court by invoking jurisdiction under Article 226 of the Constitution of India as held by the Hon'ble Apex Court in the case of Neyvely Lignite Corporation Ltd. vs Special Tahashildar (land Acquisition) Neyvely & Ors., reported in 1995 (1) SCC 221.

11. The Petitioner has no other alternative & efficacious remedy than to approach this Hon'ble Court by way of this writ petition. This writ petition does not involve the constitutional validity of any State or Central law. The Petitioner has not filed any other writ petition on the same cause of action nor any other writ petitions involving the subject matter or any part thereof either past or present is pending either before this Hon'ble Court or any other Court of law. This is not a public interest litigation involving the cause of the public.

12. Being aggrieved by the Judgment & Award dated 1-7-2023 passed in LAC No. 731/2018 on the file of the I Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi vide **Annexure - A**, the Petitioner has approached this Hon'ble Court on following amongst other grounds.

GROUNDS

13. The impugned judgments and award are erroneous for non-inclusion of the Petitioner as a party Respondent in the

proceedings before the Reference Court and this Hon'ble Court for the following reasons:

- a) It is submitted that the Petitioner is a 'person interested' as defined under Section 3(b) of the Land Acquisition Act, 1894 and under Section 3 (x) of the New Land Acquisition Act, 2013. Section 3(b) of the Land Acquisition Act, 1894 reads as under:

"Section 3(b): the expression "person interested" includes all persons claiming an interest in compensation to be made on account of the acquisition of land under this Act; and a person shall be deemed to be interested in land if he is interested in an easement affecting the land".

Further, Section 3 (x) of the New Land Acquisition Act, 2013 reads as under:

"Section 3(x): "person interested" means—

- (i) all persons claiming an interest in compensation to be made on account of the acquisition of land under this Act; (ii) the Scheduled Tribes and other traditional forest dwellers, who have lost any forest rights recognized under the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 (2 of 2007);*
(iii) a person interested in an easement affecting the land; (iv) persons having tenancy rights under the relevant State laws including share-croppers by whatever name they may be called; and
(v) any person whose primary source of livelihood is likely to be adversely affected."

Therefore, the Petitioner, being the beneficiary of the project for which the land has been acquired, is a 'Person Interested' as defined under Section 3(b) of the Land Acquisition Act, 1894 and under Section 3 (x)(i) of the New Land Acquisition Act, 2013 as has been held by the Hon'ble Apex Court in a catena of Judgments.

- b) It is submitted that, the impugned judgments and award are in contravention of the law laid down by the Hon'ble Apex Court in the case of Neyveli Lignite Corporation Ltd. vs Special Tahashildar (land Acquisition) Neyveli & Ors, reported in 1995 (1) SCC 221, wherein it was held that the Beneficiary is a 'person interested' to determine just and proper compensation for an acquired land and is an aggrieved person and thus, a proper and necessary party under Order 1 rule 10 of CPC. It was further held that when the Beneficiary is not made a party, it is entitled to seek leave of the court and file appeal against the enhanced award passed by the Reference court or of the judgment and award passed under S. 54 or is entitled to file a writ petition under Article 226 of the Constitution of India, 1950.
- c) It is submitted that the impugned judgments and award are in contravention of the law laid down by the Constitution Bench of the Hon'ble Apex Court in the case of U.P. Awas Evam Vikas Parishad vs. Gyandevi, Dead by LRs and Ors., reported in (1995) 2 SCC 326. In the said judgment, the Hon'ble Apex Court held that Section 50(2) of the Land Acquisition Act, 1894 confers on a local authority or a company, at whose cost the land is being acquired, a right to appear in the acquisition proceedings before the Collector and the Reference Court and adduce evidence for the purpose of determination of compensation. In the event of denial of the right conferred under Section 50(2) of the Act, 1894, on account of failure to serve notice of the acquisition proceedings, the local authority or the company can invoke the jurisdiction of the High Court under Article 226 of the Constitution of India.
- d) It is relevant to submit here that Section 95 of the New Land Acquisition Act, 2013 is equivalent to Section 50 (2) of the Land Acquisition Act, 1894 and reads as under:

"Section 95: Acquisition of land at cost of a local authority or Requiring Body.-

(1) Where the provisions of this Act are put in force for the purpose of acquiring land at the cost of any fund controlled or managed by a local authority or of any Requiring Body, the charges of land incidental to such acquisition shall be defrayed from or by such fund or Requiring Body.

(2) In any proceeding held before a Collector or Authority concerned in such cases the local authority or Requiring Body concerned may appear and adduce evidence for the purpose of determining the amount of compensation:

Provided that no such local authority or Requiring Body shall be entitled to demand a reference to the Authority concerned under section 64."

A perusal of the above stated provisions shows that the beneficiary of a project has a right to adduce evidence for determination of amount of compensation and the Reference Court has erred in not affording the opportunity to the Petitioner. Thus, the impugned judgment and award are in contravention of Section 95 of the New Land Acquisition Act, 2013 and thus, the same is liable to be set aside

e) It is relevant to note here that the Petitioner being a beneficiary is a proper and necessary party to the proceedings before the Reference Court as well as this Hon'ble Court and in absence of the Petitioner; the same could not have been disposed of.

f) Section 20 of the Land Acquisition Act, 1894 contemplates that after the Reference Court receives reference from the collector, it shall issue notice to all 'persons interested' and reads as under reads as under:

"Service of notice. - The Court shall thereupon cause a notice specifying the day on which the Court will proceed to determine the objection, and directing their appearance before

the Court on that day, to be served on the following persons, namely: -

- (a) the applicant;
- (b) all persons interested in the objection, except such (if any) of them as have consented without protest to receive payment of the compensation awarded; and
- (c) If the objection is in regard to the area of the land or to the amount of the compensation, the Collector."

Further, Section 66 of the New Land Acquisition Act, 2013 which is similar to Section 20 of the Old Act, contemplates that after the Authority/Reference Court receives reference from the SLAO/collector, it shall issue notice to all 'persons interested' and reads as under:

Section 66: Service of notice by Authority. - The Authority shall thereupon cause a notice specifying the day on which the Authority will proceed to determine the objection, and directing their appearance before the Authority on that day, to be served on the following persons, namely: -

- (a) the applicant;
- (b) all persons interested in the objection, except such (if any) of them as have consented without protest to receive payment of the compensation awarded; and
- (c) if the objection is in regard to the area of the land or to the amount of the compensation, the Collector.

Therefore, Petitioner being a 'person interested' is entitled to receive notice from the Reference Court and participate in the proceedings. The Reference Court has erred in not issuing the notice to the Petitioner and in not following the mandate of Section 66. Therefore, the impugned Judgment and Award passed by the Reference Court and this Hon'ble Court are erroneous and liable to be set aside.

- g) Non-issuance of Notice to the Petitioner by the Reference Court as contemplated under Section 20 of Land Acquisition Act, 1894 or under Section 66 of the New Land Acquisition

Act, 2013, and proceeding with the matter in the absence of the beneficiary-Petitioner is in negation of fair and proper procedure and against the principles of natural justice and is thus in violation of Article 14 of the Indian Constitution.

14. The Claimant has filed reference application under Section 64 of the Act, 2013 which reads as under:

"Section 64: Reference to Authority.—

(1) Any person interested who has not accepted the award may, by written application to the Collector, require that the matter be referred by the Collector for the determination of the Authority, as the case may be, whether his objection be to the measurement of the land, the amount of the compensation, the person to whom it is payable, the rights of Rehabilitation and Resettlement under Chapters V and VI or the apportionment of the compensation among the persons interested:

Provided that the Collector shall, within a period of thirty days from the date of receipt of application, make a reference to the appropriate Authority:

Provided further that where the Collector fails to make such reference within the period so specified, the applicant may apply to the Authority, as the case may be, requesting it to direct the Collector to make the reference to it within a period of thirty days.

(2) The application shall state the grounds on which objection to the award is taken:

Provided that every such application shall be made—

(a) if the person making it was present or represented before the Collector at the time when he made his award, within six weeks from the date of the Collector's award;

(b) in other cases, within six weeks of the receipt of the notice from the Collector under section 21, or within six months from the date of the Collector's award, whichever period shall first expire:

Provided further that the Collector may entertain an application after the expiry of the said period, within a further period of one year, if he is satisfied that there was sufficient cause for not filing it within the period specified in the first proviso."

15. The Reference Court has erred in answering Point No.1 in affirmative to hold that the reference made to the Reference Court is within time prescribed under Section 64(1) and (2) of the New Land Acquisition Act, 2013, on the following grounds:

- a) It is submitted that, assuming but not admitting, Reference Application submitted by the Claimant on 15-3-2017 before the SLAO is in time, the SLAO has not referred the same to the appropriate Authority within prescribed time. Hence, the Reference forwarded by the SLAO is not in time as per first Proviso to Sub Section 1 of Section 64 of the Act. The Reference Court has failed to note that, the Claimant has not approached the appropriate Authority in time, requesting it to direct the SLAO to make the reference to it within a period of thirty days, since the SLAO has failed to make such reference within the period so specified. Therefore, the Reference Application is barred by time.
- b) The Reference Court utterly failed to note that, the New Land Acquisition Act 2013 is a special enactment and the limitation period for filing reference application is specifically prescribed under Section 64 of the Act.
- c) It is submitted that ignoring the above said provision, the Reference Court was pleased to hold that the reference is in time. The Reference Court utterly failed to note that, a valid reference by the SLAO U/Sec. 64 is a sine-qua-non for maintaining the reference application before the Reference Court. The word "shall" in Section 64(1) of the Act, 2013 mandates the SLAO to make a reference within a period of 30 days from its receipt.
- d) The Reference Court failed to note that the SLAO is not justified in referring the reference application dated 15-3-2017 to the Reference Court which was filed under Section 64, contrary to First Proviso to Section 64 of the New Land Acquisition Act, 2013 and such reference is without authority of law. Therefore, the suo-moto reference by the SLAO was beyond his jurisdiction and ultra-vires. Thus, the

said reference being violative of the statutory provisions, was liable to be rejected.

16. The Reference Court has erred in answering Points No.2 and 3 in affirmative and enhancing the compensation to Rs. 5,272/- per Sq. Meter as against Rs.5,44,870/- per acre for irrigated land awarded by the SLAO, for the following reasons:

- a) The Reference Court, while determining the market value of the acquired land, has erroneously relied upon unregistered sale agreements and Sale Deeds of the year 2020 in respect of sites and lands. It is submitted that, Sec. 26 (1) (b) of the Act mandates that, average sale price of similar type of land situated in the nearest village or nearest vicinity area is to be considered. The Claimant has not adduced any evidence or placed any material on record to show that the lands mentioned in the Exhibits are similar to the land acquired. Hence, the Reference Court is not justified in law in relying upon the Exhibits. Therefore, the impugned judgment is contrary to the law laid down by the Hon'ble Apex Court in the case of Manoj Kumar & Others V/s State of Haryana & Others reported in (2018) 13 SCC 96.
- b) The Reference Court has failed to consider that, the Respondent No.1 by following the procedure and in compliance with Sec.26 to 30 and provisions under Chapter-V of the Act has rightly awarded the just & fair compensation. Therefore, the impugned judgment and award requires interference.
- c) The Reference Court further failed to note that, it is settled principle of interpretation of statutes that whenever any Act is enacted, it should be construed in such a way so as to give effect to the object of the "Act" for which the enactment was introduced. Otherwise, the very purpose of introduction of such legislation would be rendered useless.
- d) The Reference Court has failed note that, the Claimant has not produced any material document to prove the nature & fertility of the acquired land is equal to that of lands referred in the

Exhibits - sale agreements and Sale Deeds. The documents those produced are not relevant and cannot be relied upon. It is submitted that since the Petitioner was not party to any of the proceedings, there was no occasion to oppose the same.

- e) The Reference Court has failed to note that, as per Sec.69 of the Act, while determining the amount of compensation to be awarded for lands acquired, the authority shall take into consideration, whether the Collector has followed the parameters set out under Sec.26 to 30 of the Act. In the present case neither the Claimant nor the Reference Court have pointed out the lapses on the part of SLAO for having not followed the parameters under Sec.69 of the Act. Therefore, the interference by the Reference Court in the award passed by the Respondent No.1 is illegal.
- f) The Reference Court has failed to consider the settled proposition of law laid down by the Hon'ble Apex Court and by this Hon'ble Court and erroneously enhanced the compensation contrary to the provisions of the Act. The Reference Court ought not to have interfered unless the claimant established that the amount awarded is not in compliance with Sec.26 to 30 of the Act.
- g) It is respectfully submitted that the Claimants have failed to produce any documentary evidence, specifically a registered instrument such as a sale deed, to substantiate their claims on the relevant point of time i.e., as on the date of acquisition. The determination rendered by the Reference Court was predicated solely upon an unregistered Agreement of Sale, which lacks the requisite legal standing and enforceability.
- h) The Claimants were fully aware that their lands were slated for acquisition by the government prior to the issuance of the Section 11(1) notification. Consequently, the registered agreements of sale were contrived by the Claimants. The Claimants have failed to produce any documentation

evidencing that the aforementioned agreements of sale have been converted into absolute sale deeds.

- i) The SLO has procured 345 registered sale deeds from the Mudhol Sub-Registrar's office prior to the Section 11(1) notification dated June 5, 2014, covering a period of three years (from June 5, 2011, to June 5, 2014) concerning non-agricultural (NA) plots within the same Zunjarkuppa village. The calculation of the average market value of NA lands amounts to Rs. 1,911 per square meter. Upon deducting 60% for development charges, the resultant market value is Rs. 764 per square meter. Therefore, even when the acquired lands are classified as having NA potential, the award granted by the Reference Court is tenfold greater than the actual market value.
- j) It is pertinent to note that the presently acquired lands do not possess NA potential. To this day, the owners remain in possession of their lands, cultivating crops such as sugarcane and maize. Furthermore, no lands adjacent to the acquired lands have been converted into non-agricultural lands.
- k) Pursuant to Section 26 of the New Land Acquisition Act, 2013, in determining the market value and average sale price, any compensation previously awarded for land acquired under this Act shall not be considered. The Reference Court erred in establishing the market value based on prior judgments, which contravenes Section 26 of the statute. Additionally, the Hon'ble Supreme Court in the case of BSNL Vs. Nemichand Damodardas reported in 2022 (14) SCC 60 has held that market value cannot be determined as a mere ready reckoner.
- l) If compensation is determined at the rate of Rs. 5,272 per square meter, the market value per acre of the acquired land would amount to Rs. 2.13 crores. When solatium and interest are factored in, this figure exceeds Rs. 10 crores per acre. Such a valuation is exorbitant and imposes an undue burden on the public exchequer.

17. The impugned award is perverse, capricious and same has been passed contrary to the principles of natural justice. The impugned award is contrary to the material on record. As such same requires to be set aside.

18. The impugned award passed by the Reference Court is contrary to the judgments of Hon'ble Apex Court and this Hon'ble High Court.

19. It is submitted that, the Judgment & Award under challenge are illegal, opposed to law and against the principles of natural justice.

20. That the award passed by the reference court is illegal, arbitrary and unreasonable apart from being contrary to the well settled principles of law and evidence on record.

21. The lands subject to acquisition are hereby declared not to possess NA potential. The Reference Court, in its earlier judgment dated November 10, 2020, pertaining to the same Land Acquisition Cases as referenced in this petition, has affirmed the award of the SLAO and upheld its validity. The Reference Court has dismissed the arguments presented by the Claimants regarding the alleged NA potential of the lands, determining that the Claimants seek to derive unjust gains from their assertions.

22. Consequently, the Reference Court was predisposed to affirm the award issued by the SLAO. Subsequent to this determination, the Reference Court was instructed by this Honorable Court to reassess the compensation awarded to the Claimants, specifically addressing the purportedly exorbitant compensation previously fixed by the Reference Court. Upon review of the grounds presented, the Court has noted the absence of admissible evidence on record to substantiate the claims made by the Claimants for reconsideration as per the opportunity granted to the respective SLAO's/ claimants in those cases to lead evidence.

23. The Petitioner seeks leave of this Hon'ble Court to urge additional grounds, if any, at the time of the hearing.

GROUND FOR INTERIEM RELIEF

24. It is submitted that, the impugned judgments and award have been passed without arraying the Petitioner as a party Respondent, although the Petitioner is a proper and necessary party to the said proceedings. The SLAO has referred belated reference application for adjudication to the Reference Court and the Reference Court without issuing notice to the Petitioner and without there being any justifiable reasons has redetermined the market value and awarded exorbitant compensation. Pursuant to the impugned judgments and award, the Claimant is likely to initiate execution / has filed proceedings to execute the Award under challenge. If the Claimant executes the impugned Award behind the back of the Petitioner, who is not a party to the LAC proceedings, the purpose of filing the present petition will be defeated & the Petitioner will be put to huge financial burden. Under such circumstances, pending disposal of the present petition, if the interim order as prayed for is granted no loss or hardship will be caused to the Respondents. On the contrary the Petitioner will be put to irreparable loss and hardship which cannot be compensated in any manner and same will lead to multiplicity of proceedings.

PRAYER

WHEREFORE, it is prayed that this Hon'ble Court may be pleased to;

- i. Issue a Writ in the nature of Certiorari quashing the Judgment & Award dated 1-7-2023 passed in LAC No. 731/2018 on the file of the I Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi & the Land Acquisition, Rehabilitation & Resettlement Authority, Jamakhandi vide **Annexure-A**; and
- ii. Issue a Writ in the nature of Mandamus directing the Reference Court to reopen the proceedings after impleading the present Petitioner as a party Respondent.

- iii. And pass such other order as this Hon'ble Court deems fit, in the interests of justice and equity.

INTERIM PRAYER

Pending disposal of the present writ petition, an interim order of stay may kindly be granted by staying operation & execution of the Judgment & Award dated 1-7-2023 passed in LAC No. 731/2018 on the file of the I Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi & the Land Acquisition, Rehabilitation & Resettlement Authority, Jamakhandi, vide **Annexure - A**, in the interest justice and equity.

Dharwad

Date: 08/07/ 2025

Advocate for Petitioner
(Santosh B. Mane)

Address for service:

Santosh B. Mane

Advocate

LIG II/B H.No 9 Chaitanya Nagar

Dharwad - 580 008.

Cell No. 9880971625

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH,
DHARWAD

WP No.

/ 2025

BETWEEN

Krishna Bhagya Jala Nigam Limited

Petitioner

AND

The Special Land Acquisition Officer & Ors

Respondents

Verifying Affidavit

I, Ravikumar P., S/o. Late R. Puttasetty, Age: 51 Years, Occ: General Manager- Administration and Human Resources, Krishna Bhagya Jala Nigam Limited, 3rd Floor, PWD Office Annexe Building, K. R. Circle, Bengaluru - 560 001, today at Bengaluru, do hereby solemnly affirm & state on oath as follows.

1. I am the General Manager- Administration and Human Resources of the Petitioner - Company in the above case. I am the authorized representative of the Petitioner. I am well conversant with the facts of the case. Hence, I am swearing to the contents of this affidavit.

2. I submit that the averments made in Para Nos. 1 to of the accompanying writ petition are true and correct to the best of my knowledge, belief and information.

3. I submit that, the Annexure - A to are true copies of their respective originals.

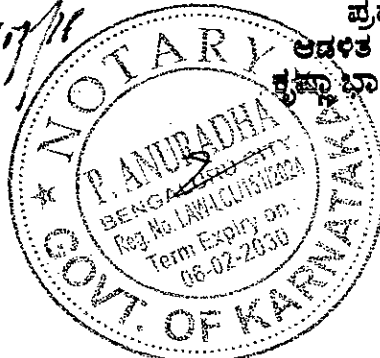
PLACE : BENGALURU

DATE : 8 JUL 2025

Identified by me

SWORN TO BEFORE ME
Advocate

P. ANURADHA, M.A., M.L., M.Phil.
ADVOCATE & NOTARY PUBLIC
No. 702, "Aksheya Lakshmi Nilaya"
5th Floor, (Meikal Palya) Banashankari 6th Stage,
Kengeri hobli, Vidyapeeta post, Bengaluru-91



DEPONENT

ರವಿಕುಮಾರ್ .ಪಿ.

ಕ.ಆ.ಸ. (ಆಯ್ಕೆ ಶ್ರೇಣಿ)

ಪ್ರಧಾನ ವ್ಯವಸ್ಥಾಪಕರು

ಅಧಿಕಾರ ಮತ್ತು ಮಾನವ ಸಂಪನ್ಮೂಲ
ಕ್ರಿಯಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ

24 CORRECTIONS

KABK730039062021



L.A.C./729/2018

IN THE COURT OF I ADDL. DISTRICT & SESSIONS JUDGE,
BAGALKOT TO SIT AT JAMKHANDI & THE LAND
ACQUISITION, REHABILITATION AND RESETTLEMENT
AUTHORITY, JAMAKHANDI.

Before: Sri. Arjun S.Mallur.

B.A.L., LL.B.,

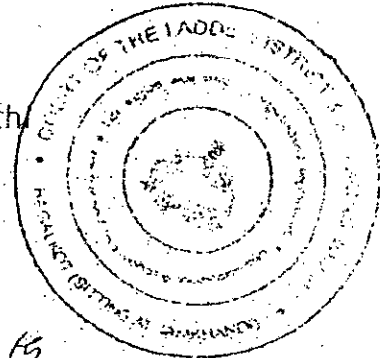
I Addl. District & Sessions Judge,
Bagalkot, to sit at Jamkhandi & the
Land Acquisition, Rehabilitation
and Resettlement Authority, Jamakhandi

Dated: this 1st day of July, 2023

L.A.C. No.732/2018 C/W L.A.C Nos. 722,731,735,746/2018)

Claimant in LAC No.732/2018:

- 1) Holabasayya S/o Rachayya Mathapathi
Age: 54 years, Occ: Agriculture,
R/o Vajramatti TQ: Mudhol,
Dist:Bagalkot.
- 2) Gokarayya S/o Rachayya Mathapathi
Age: 44 years, Occ: Agriculture,
R/o Vajramatti TQ: Mudhol,
Dist:Bagalkot.



Claimant in LAC No.722/2018:

- 1) Sri.Paddaya S/o Rachayya Mathapathi
Age: 50 years, Occ: Agriculture,

[Handwritten signature]

As joint family Manager,
R/o Vajramatti TQ: Mudhol,
Dist:Bagalkot.

Claimant in LAC No.731/2018:

- 1) Smt.Parvatewwa W/o Holabasu @ Holabasappa
Dupad.
Age: 50 years,
 - 2) Smt.Shobha W/o Srikanth Huddar,
 - 3) Kum.Shashikala
 - 4) Kum.Shrathi
 - 5) Kum.Shilpa
 - 6) Shridhar
- } Father Holabasu @ Holabasappa
Dupad, Minors
Represented by their mother
Smt.Parvatewwa W/o Holabasu @
Holabasappa Dupad and GPA
All R/o Vajramatti. TQ: Mudhol,
Dist:Bagalkot.

Claimant in LAC No.735/2018:

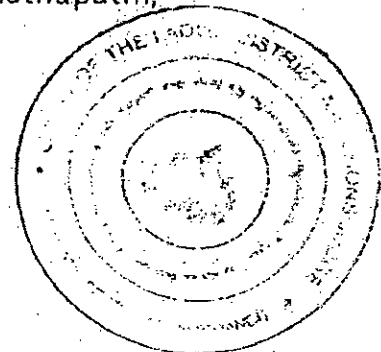
- 1) Holabasayya S/o Gurusiddayya Mathapati,
Age: Major, Occ: Agriculture,
- 2) Gurusiddayya S/o Holabasayya Mathapati,
Dead
- 3) Holabasayya S/o Rachayya Mathapati,
Age: Major Occ: Agriculture,
- 4) Gokarayya S/o Rachayya Mathapati,
Age: Major Occ: Agriculture,
- 5) Smt.Rachawwa W/o Irappa Mathapati,
Dead her L.Rs
- 5A) Basayya S/o Irappa Mathapati,
Age: Major Occ: Agriculture,



- 6) Smt.Sayawwa W/o Rudrayya Mathapati,
Age: Major Occ: Agriculture,
All R/o Vajjaramatti, Tq: Mudhol
Dist. Bagalkot.

Claimant in LAC No.746/2018:

- 1) Smt.Shivalingawwa W/o Gurubasayya Mathapathi
2) Ningayya W/o Gurubasayya Mathpathi
Both are R/o Vajjramatti Tq: Mudhol,
Dead by L.Rs
- 1A. Smt.Bhagirati W/o Rudrayya Mathapathi,
Age: 50 years, Occ: Household work,
R/o Chinchakhandi B.K, Tq:Mudhol,
Dist:Bagalkot.
- 2A. Smt.Savitri W/o Ningayay Mathapathi,
Age: 50 years Occ: Household work,
R/o Vajjarmatti TQ: Mudhol,
Dist:Bagalkot.
- 2B. Sri.Jagadish S/o Ningayya Mathapathi,
Age: 31 years Occ: Agriculture,
R/o Vajjaramatti Tq: Mudhol,
Dist: Bagalkot.
- 2C. Smt.Channawwa W/o Ramayya Mathapathi,
Age: 26 years Occ: Household work,
R/o Salahalli Tq: Ramadurg,
Dist: Belaganvi.
- 2D. Smt.Rajeshwari W/o Holabasayya Mathapathi,
Age: 24 years Occ: Householdwork,
R/o Chichakhandi B.K, Tq: Mudhol,
Dist: Bagalkot.



- 2E. Smt.Sarawwa W/o Ningaya Mathapathi,
Age: 47 years Occ: Household work,
R/o Vajjaramatti Tq: Mduhol,
Dist: Bagalkot.
- 2F. Sri.Allayya S/o Ningayya Mathapathi,
Age: 26 years Occ: Agriculture,
R/o Vajjaramatti TQ: Mudhol,
Dist:Bagalkot.
- 2G. Sri.Veeresh @ Veeranna S/o Ningayya Mathapathi,
Age: 23 years Occ: Agriculture,
R/o Vajjaramatti Tq: Mduhol,
Dist: Bagalkot.

2nd Reference

- 1) Sri.Sangayya S/o Gurayya Mathapathi,
Age: 70 years
R/o Vajjaramatti, Tq: Mudhol
Dist. Bagalkot.

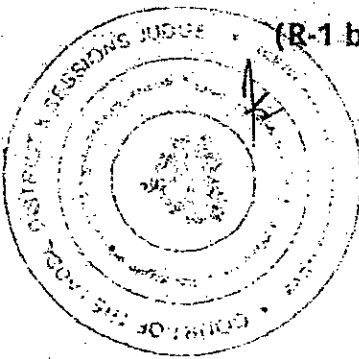
(All claimants by Sri.R.L.Kanabur/
Smt.R.L.Hunashikatti Adv)

V/s

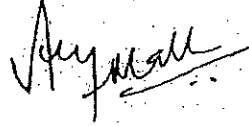
Respondents in common in all the cases:

- 1) The SLAO, UKP, Jamakhandi.
- 2) The General Manager Land Acquisition
@ LAQ R & R , UKP Navanagar, Bagalkot.
- 3) The State of Karnataka Represented by -
Deputy Commissioner, Bagalkot.

(R-1 by Special Govt. Pleader)



(R-3 by by AGP)
(R-2 absent)



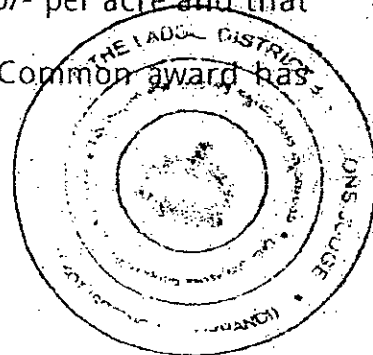
(Sri. Arjun S.Mallur.)
I Addl.District & Sessions Judge,
Bagalkot, to sit at Jamkhandi & the
Land Acquisition, Rehabilitation
& Resettlement Authority, Jamakhandi

:: COMMON JUDGMENT ::

The Claimants in all these cases have filed reference U/s.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (hereinafter referred as RFCTLARR Act) seeking enhancement of the compensation.

2. Facts in brief is as under:

3. The land of the Claimants in all the cases came to be acquired by the S.L.A.O, for the construction of Rehabilitation center at Machakanur, Mudhol taluka, Bagalkot district. The land of the claimants came to be acquired under LAQ.SR No.12/2014-15 vide 11(1) notification dated 05-06-2014. The SLAO fixed the market value of the wet lands at Rs.5,44,870/- per acre and that of the dry lands at Rs.2,51,000/- per acre. Common award has

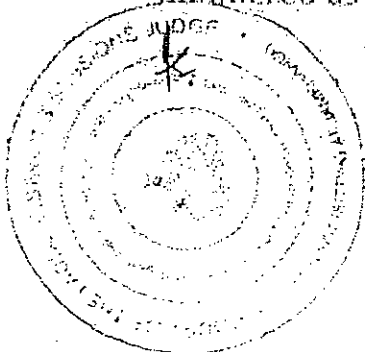


been passed on 03-02-2017. The details of the land of the claimants acquired market value fixed the compensation award the extent acquired are given in a tabular format as under:

Sl. No	Case Nos.	Survey Nos.	Extent acquired A.G.A	Nature of land	Market Value Fixed per acre in Rs.	Total Compensation Awarded
01.	732/2018	206/2A	1-28	Dry	Rs.2,51,000/-	Rs.9,47,489/-
02.	722/2018	205/1	1-14	Dry	Rs.2,51,000/-	Rs.7,83,435/-
03.	731/2018	206/1B	1-36	Dry	Rs.2,51,000/-	Rs.10,49,591/-
04.	735/2018	207/1	1-22	Dry	Rs.2,51,000/-	Rs.9,70,938/-
05.	746/2018	207/7	00-19	Dry	Rs.2,51,000/-	Rs.2,65,598/-

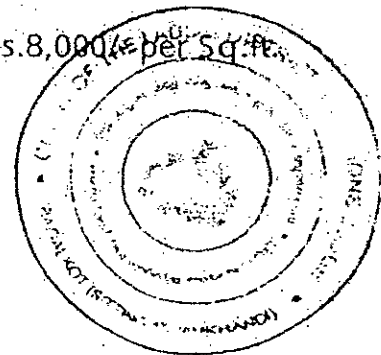
All the lands situated at Vajramatti village, Mudhol taluka, Bagalkot district.

4. Being aggrieved by the compensation so awarded all the claimants have filed Reference U/s.64 of the RFCTLARR Act, seeking enhancement of the compensation. All the claimants have commonly contended that the SLAO has not issued any notice prior to passing of the award and that the market value determined for the acquired land is very much on the lower side and that the acquired lands have got NA potential value being situated within the Mudhol Municipal limits though they are numbered as revision survey number and that the acquired land



is situated adjacent to the Mudhol town attached to the State High way passing through the Mudhol town and the acquired land can be made use of putting up constructions as foundation can be dug within 3 to 4 feet and that in and around the acquire land Sugar factories, Cement factories, APMC market yard, Commercial Shopping Complexes, Hospitals, Community halls, temples, are all situated within a distance of 100 to 200 meters. It is submitted that all the government office head quarters situated within a distance of 200 to 300 meters from the acquired lands. It is further contended that the Mudhol Town is developing at a high speed and the lands of Zunjarkoppa village have already acquired for establishment of Rehabilitation Centers at Ballur, Chikka Galagali, Shirabur, Dadanatti and Giragav. The claimants further contend that the SLAO has not adopted the proper procedure as contemplated under the Act for determining of the market value and that the acquired lands are of high potential value having a market value at Rs.8,000/- per Sq.Ft and on these grounds the claimants have contended that the market value may be determined at Rs.8,000/- per Sq.Ft.

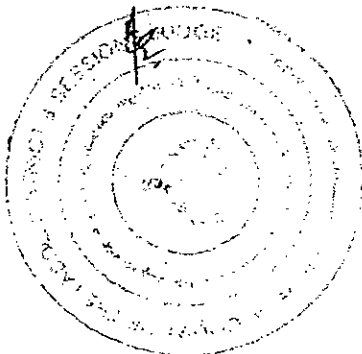
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It is further contended that the acquired lands are well fertile capable of raising two crops in a year and the claimants are growing sugarcane, groundnut, sunflower, cotton, chili and other commercial crops having annual income of Rs.2,00,000/- per acre after deducting of cultivation charges. It is submitted that as the lands are acquired for establishment of a rehabilitation center respondents has not considered the facts that it is being used for residential purposes and the market value determined by the respondent is absolutely low and on these grounds sought for determining the market value at Rs.8,000/- per sq. ft and grand all other statutory entitlements.

5. On service of notice, respondent No.1 is represented by the learned Special Government Counsel. Respondent No.3 is represented by learned Addl. Govt. Pleader and respondent No.2 has remained absent.

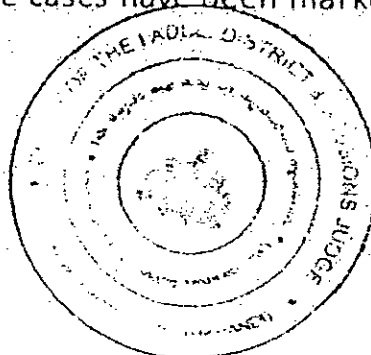
The respondents have filed their statement of objections contending that the references are not filed within the stipulated time under the Act and that the SLAO has followed the proper procedure and all the guidelines enumerated for awarding just



and proper compensation and based on those guidelines has awarded just and reasonable compensation which does not require any further enhancement. It is submitted that the respondent has followed the sales statistics method and has taken the sales statistics of the acquired land for three years prior to date of 11(1) notification and that the acquired lands are of low quality in which no commercial crops were being grown at the time of acquisition and that there is no NA potentiality to the acquired lands and on these grounds sought for rejecting the references.

6. As all the cases pertain to acquisition of land under the same notification for the same project and under the same award LAC Nos. 722, 731, 735 & 746 of 2018 came to be clubbed with LAC No. 732/2018 and common evidence has been adduced in LAC No. 732/2018. The claimant No. 1 in LAC No. 732/2018 examined himself as PW.1 for himself and on behalf of other claimants and got marked documents at Ex.P.1 to Ex.P.42. The award and notices in all the cases have been marked by consent as Ex.R.1 to Ex.R.6.

[Handwritten signature]



7. The learned counsel for the claimant filed his detailed written arguments along with memo of calculations and has filed memo with several citations. The learned counsel for respondents also filed written arguments along with citations. Perused entire material on record.

8. The points which arises for my consideration are as under:

- (1) Whether the reference petitions filed by the claimants in all the cases is within stipulated time?
- (2) Whether the claimants are entitled for enhancement of the award amount as prayed?
- (3) What award or order?

9. My answers on the above points are as under:

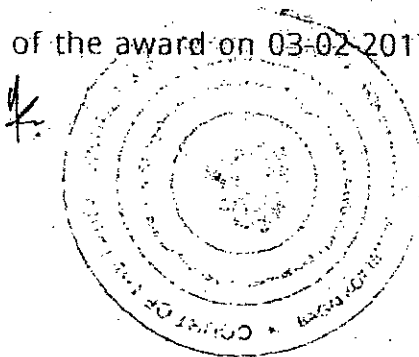
Point No.1: **Affirmative,**

Point No.2: **Partly Affirmative.**

Point No.3: As per final order, for the following...

REASONS:

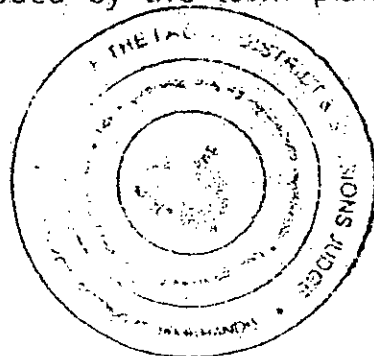
10. **POINT No.1:-** The compensation with respect to acquisition of the lands in all the cases came to be determined vide award dated 10-02-2017. The claimants have been informed of the award on 03-02-2017. The application U/s.64 of the LARR



Act for reference has been filed before respondent on 15-03-2017. Therefore the references are within prescribed period of six weeks from the date of award as provided U/s.64 of the LARR Act. Therefore the references are will within the period of limitation and accordingly point No.1 is answered in the **AFFIRMATIVE.**

11. **POINT No.2 :-** PW.1 Holabasayya S/o Rachayya Mathapati has examined for himself and the other claimants in LAC No.732/2018 and also on behalf of other claimants in other cases. He has filed his affidavit by way of evidence reiterating the contentions put-forth in the reference petitions. In support of his affidavit evidence he has got marked documents at Ex.P.1 to Ex.P.42. Ex.P.1 to Ex.P.5 are the RTCs pertaining to acquired lands. Ex.P.6 & P.7 are the certified copies of 11(1) and 19(1) Gazette notifications. Ex.P.8 is the award, Ex.P-9 is the sugar cane bill, Ex.P-10 is the water agreement, Ex.P-11 is the service certificate issued by HESCOM and bills, Ex.P-12 to 14 are the N.A copy pertaining to R.S No.8/2, 83/1A, and 83/1, Ex.P-15 is the NOC issued by the town planning authority, Ex.P-16 is the

✓



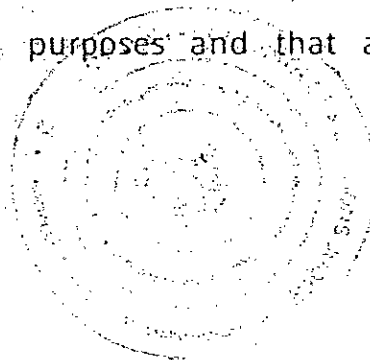
certified copy of the lay out map of R.S No.83/1, Ex.P-17 to 19 are the certified copies of the N.A order and no objections certificate and lay out map with respect to R.S No.84/3, Ex.P-20 to 23 are the registered agreement of sales with respect to lands in Vajjaramatti vilage, Ex.P-24 to 29 are the certified copies of the registered sale deeds pertaining to lands in Vajjaramatti village, Machakanur village and BK Budni village, Ex.P-30 is the certified copy of the sale deeds pertaining to land in Junjarkoppa village, Ex.P-31 and 32 are the letters issued by Sadguru Siddarood Government High School Vajjaramatti, Ex.P-33 and 34 are the RTC pertaining to KPTCL lands in Vajjaramatti, Ex.P-35 is the high way rout map, Ex.P-36 to 38 are the certified copies of license issued to the petrol bunk and fertiliser and seeds shop, Ex.P-39 is the distance certificate, Ex.P-40 and 41 are the Vajjaramatti, Baragi villages maps, Ex.P-42 is the certified copy of the judgment in LAC No.839/2018 clubbed matters.

12. Against the evidence of the claimants the respondents have not led any evidence but the award copies and notices have been marked by consent as Ex.R-1 to 6.

1/

13. PW.1 has been thoroughly cross examined by the respondents. In the course of cross examination except denying the averments made in the affidavit evidence the respondents have not been able to bring out any circumstances disbelieving the evidence of the petitioner. PW.1 in his cross examination has reiterated that the acquired land is situated at a distance of 500 meters from Mudhol and in a distance of 1½ KM. from Mudhol bus stand. He has further deposed that the acquired land of the other claimants is also within a distance of 2 Kms from Mudhol bus stand. Further in the cross examination he has denied the suggestions that he is deposing falsely that there are office buildings, Hospitals, Shopping Complex in and around acquired building and he has also denied the suggestion that the surrounding lands are not been acquired and they have not been converted into non agriculture purpose. In the cross examination the claimant has reiterated that the neighbouring lands in and around the acquired lands have been already converted into non agricultural purposes and that as the

fs.



acquisition of the land is for establishment of a rehabilitation center the acquired land have got NA potential value.

14. Section 26 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 provides for the procedure by which the Collector has to determine the market value, it reads as under:

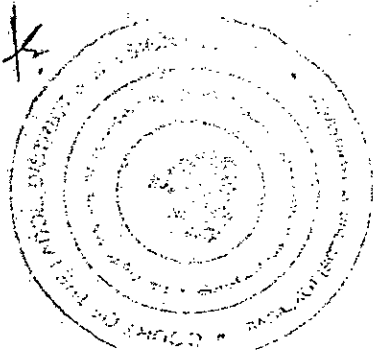
"26. Determination of market value of land by Collector:-

(1) The Collector shall adopt the following criteria in assessing and determining the market value of the land, namely:-

(a) the market value, if any, specified in the Indian Stamp Act, 1899 (20f 1899) for the registration of sale deeds or agreements to sell, as the case may be, in the area, where the land is situated; or

(b) the average sale price for similar type of land situated in the nearest village or nearest vicinity area; or

(c) consented amount of compensation as agreed upon under sub-section (2) of section 2 in case of acquisition of lands for private companies or for public private partnership projects, whichever is higher.



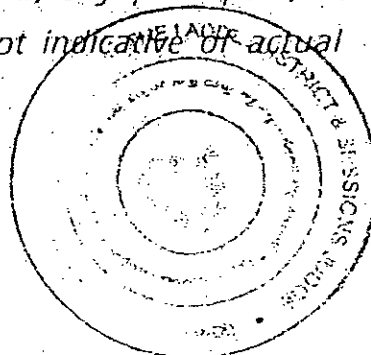
Provided that the date for determination of market value shall be the date on which the notification has been issued under section 11.

Explanation 1.- *The average sale price referred to in clause (b) shall be determined taking into account the sale deeds or the agreements to sell registered for similar type of area in the near village or near vicinity area during immediately preceding three years of the year in which such acquisition of land is proposed to be made.*

Explanation 2.- *For determining the average sale price referred to in Explanation 1, one-half of the total number of sale deeds or the agreements to sell in which the highest sale of price has been mentioned shall be taken into account.*

Explanation 3.- *While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid as compensation for land acquired under the provisions of this Act on an earlier occasion in the district shall not be taken into consideration.*

Explanation 4.- *While determining the market value under this section and the average sale price referred to in Explanation 1 or Explanation 2, any price paid, which in the opinion of the Collector is not indicative of actual prevailing*

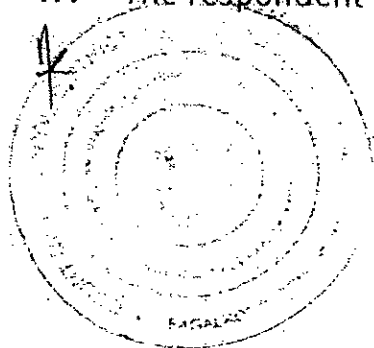


market value may be discounted for the purposes of calculating market value."

15. Section 26 of the Act makes it clear criteria to be adopted for determining the market value and for the said purpose the Collector shall take into consideration the market value even any specific in the registration of sale deeds or agreement of sale or the average sale price for similar types of lands situated in the nearest village or in the nearest vicinity and the market value of the one which is higher has to be taken into consideration.

16. The counsel for the claimant has relied upon judgment of our Hon'ble High Court in *Misc.Second Appeal No.61/2014 dated 16.01.2023 Narasimhegowda Vs The Special Land Acquisition Officer Nagamangala Nagamangala Taluka Mandya District* wherein our Hon'ble High Court has observed that in order to maintain uniformity in awarding of the compensation the market value determined with respect to identical lands acquired for similar purposes shall also be applied to the existing lands.

17. The respondent also relied upon the following decisions:

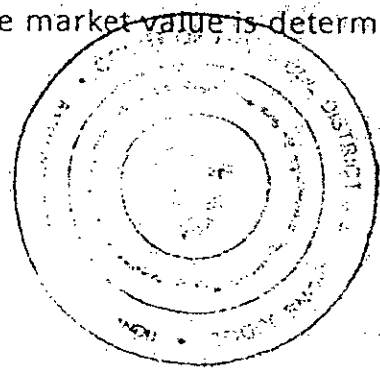


- (1) *AIR 1974 Patna 224 (V51 V 62) Harbansh Narain Singh and another Vs State of Bihar.*
- (2) *2010(5) KLJ 656 (DB) Karnataka Neeravari Nigam Limited Vs Kariyappa and others*

I have gone through the above cited decisions in which the Hon'ble Patna High Court has laid down the factors to be borne in mind while determining the market value of the acquired lands.

18. With respect to acquisition of lands for the purpose of construction of Machakanur rehabilitation Center under LAQ SR No.12/2014-15 this court while dealing with applications seeking enhancement of the compensation with respect to lands acquired in the Junjarkoppa villages in Ex.P-42 this court has determined the market value of the acquired lands at Rs.5272/- per square meter. In the said decision it has been observed by this court as the lands acquired for construction of a rehabilitation centre, the acquired lands are treated as N.A potential lands and market value is determined at the rate per square meter and accordingly the market value is determined at

K.

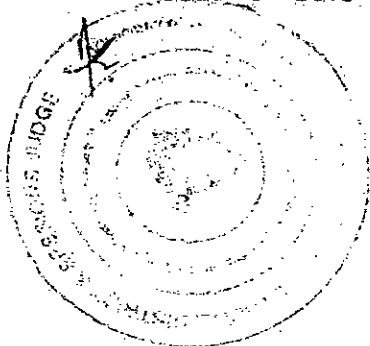


Rs.5272/- per square meter. The acquired lands in these cases are situated in Vajramatti village acquired for the same purpose i.e., establishment of Machakanur rehabilitation Center and they are acquired under the same notification and when already this court has determined the market value with respect to acquired lands of Vajramatti village at a particular rate in order to maintain uniformity it is just and proper to award compensation by determining the market value of the acquired lands of Vajramatti village in these reference at the same rate as that has been determined in LAC No.839/2018 and clubbed matters. This has also been position of law laid down by Hon'ble Apex court and also our Hon'ble High Court in following decisions.

(1) **2005(4) KCCR SN 264 - SC General Manager ONGC -Vs- Sendhabal Vastram Patel and others** wherein it has been observed as under:

"LAND ACQUISITION ACT, 1894 Sec.18 -

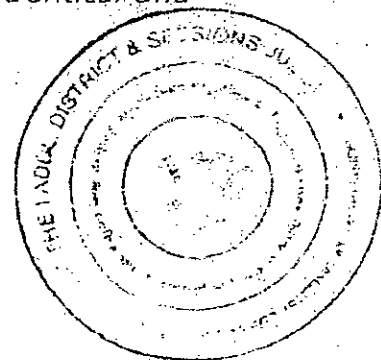
Market value- The best method for determining market value of acquired land is the amount which a willing purchaser of the land would pay to the owner of the land as may be evidenced by deeds of Sale - In the absence of any direct



evidence on the said point, the Court may take recourse to other methods, viz., judgments and awards passed in respect of acquisitions and awards passed in respect of acquisitions of lands made in the same village and / or neighbouring villages. The Reference Court has to apply the comparable sales method and also the situation of the land, which is to be appreciated upon considering the question as whether acquired land is similar to any land sold in the vicinity."

(2) (2010) 5 Supreme Court Cases 747 Union of India -Vs- Bal Ram and another wherein it has been observed as under:

"Land Acquisition Act, 1894 - S.23 - Valuation of land - Factors - Lands identical and similar - Purposes of acquisition - Plan Development Area around Palam Airport in vicinity of Delhi - High Court taking into consideration that certain other lands coming under different villages had been acquired for the same purpose - Nature/ Quality of the lands was by and large similar to those lands - Purpose of acquisition is same - No justification to make any distinction between lands which are identical and

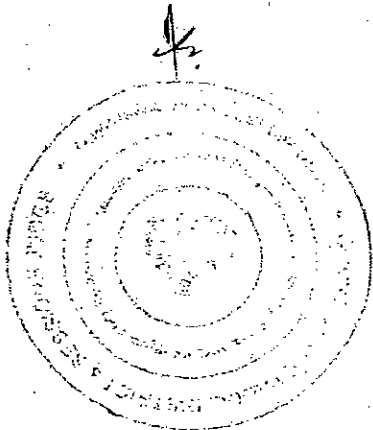


similar though lying in different villages - No interference is called for."

(3) *ILR 2004 Karantaka 2371 The Special Land Acquisition Officer -Vs- Fakirappa Mugubasappa and others*, wherein it has been observed as under:

"(A) **LAND ACQUISITION ACT, 1894** - **SECTION 18, 54** - Reference Court's determination of compensation at a particular rate whether just and proper - Previous award in respect of similar lands how far relevant. Lands required for Malaprabha Project - HELD - In matters relating to Land Acquisition, the judgement of a Court in regard to similar lands or properties would be a relevant piece of evidence. It is to be noted that an element of guess work is inherent in most of the cases involving determination of the market value of the acquired land. The previous awards in respect of similarly situated lands is a safe-guide for determination of compensation. The order of Reference Court set aside."

19. Therefore considering the above aspects it would be just and proper to determine the market value of the acquired land



at Rs.5272/- per square meter and accordingly I answer point No-2 partly affirmative.

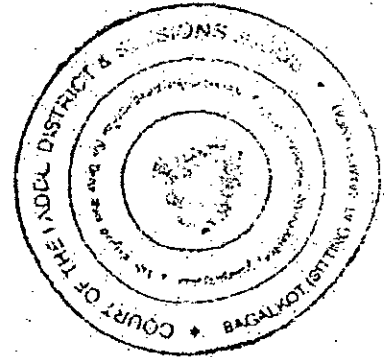
20. Point No.3:- For the aforesaid reasons, I proceed to pass the following:

::O R D E R::

Reference petitions filed U/s.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is hereby **allowed in part with costs.**

The market value of the acquired lands is determined at **Rs.5,272/- per square meter** to the extent of the acquired lands situated at Vajramatti village Mudhol taluka Bagalkot district.

The claimants are entitled for solatium at 100% on the market value of the acquired land U/s.30(1) of Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.



The claimants are also entitled to additional market value at 12% p.a. U/s.30(3) of Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

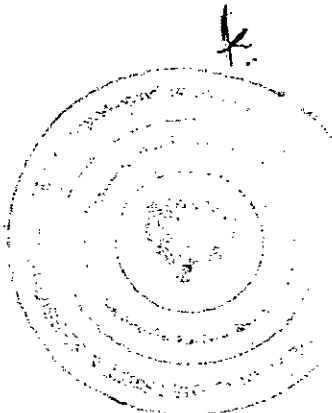
The claimants are also entitled for interest at 9% p.a. U/s.72 of Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for one year from the date of dispossession and thereafter at the rate of 15% p.a. for the subsequent period till date of payment or deposit.

The claimants are entitled to all statutory benefits as per law.

The amount of compensation if any already paid to the claimants shall be deducted from the said amount.

Advocate fees is fixed at Rs.1,000/-.

Office to draw award accordingly.



Original judgment shall be kept in **LAC No.732/2018** and
copies thereof be kept in L.A.C Nos.722,731,735 & 746/2018.

(Dictated to the stenographer, transcribed & typed by him, script
correct, signed and then pronounced by me in the open court on this the 1st
day of July, 2023)

(Signature)
12/7/2023

(Sri.Arjun S.Mallur.)
I Addl.District & Sessions Judge,
Bagalkot, to sit at Jamkhandi & the
Land Acquisition, Rehabilitation
& Resettlement authority, Jamakhandi

::Annexures::

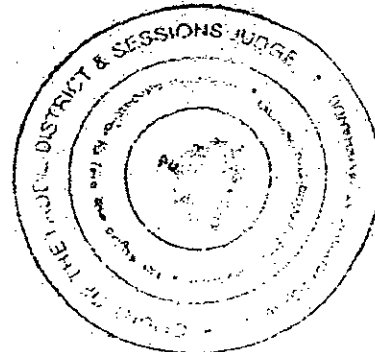
List of witnesses examined on behalf of Claimant/s:

PW.1: Holabasayya Rachayya Mathapathi

**List of exhibited documents marked on behalf of
Claimant/s:**

Ex.P.1 to 5 : RTCs pertaining to acquired lands.
Ex.P. 6 & 7 :Certified copies of 11(1) and 19(1) Gazzette
notifications.
Ex.P.8 :Certified copy of the award,
Ex.P-9 :Sugar cane bill,
Ex.P-10 :Water agreement,
Ex.P-11 : Service certificate issued by Hescom,
Ex.P-12 to 14: N.A copy pertaining to R.S No.8/2, 83/1A, and
83/1,

4.

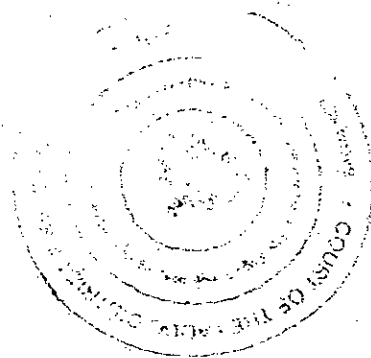


- Ex.P-15 : NOC issued by the town planning authority,
Ex.P-16 : Certified copy of the lay out map of R.S
No.83/1,
- Ex.P-17 to 19 Certified copies of the N.A order and no
objections certificate and lay out map with
respect to R.S No.84/3,
- Ex.P-20 to 23 Registered agreement of sales with respect to
lands in Vajjaramatti village,
- Ex.P-24 to 29 Certified copies of the registered sale deeds
pertaining to lands in Vajjaramatti village,
Machakanur village and BK Budni village,
- Ex.P-30 Certified copy of the sale deeds pertaining to
land in Junjarkoppa village,
- Ex.P-31 and 32 Letters issued by Sadguru Siddarood
Government High School Vajjaramatti,
- Ex.P-33 and 34 RTC pertaining to KPTCL lands in Vajjaramatti,
Ex.P-35 High way rout map,
- Ex.P-36 to 38 Certified copies of license issued to the petrol
bunk and fertiliser and seeds shop,
- Ex.P 39 Distance certificate,
- Ex.P 40 and 41 Vajjaramatti, Baragi villages maps,
- Ex.P-42 Certified copy of the judgment in LAC
No.839/2018

List of witnesses examined on behalf of Respondents:

- Nil -

4



List of exhibited documents marked on behalf of Respondents:

Ex.R.1 to 6: Award copy, Notice given U/s. 11 of L.A.Act,

Arjun Mallur
(Sri. Arjun S. Mallur.)I Addl. District & Sessions Judge,
Bagalkot, to sit at Jamkhandi & the
Land Acquisition, Rehabilitation
and Resettlement Authority, JamakhandiCertified that this is a true and
accurate copy of the original all the
matter appearing in original has been
faithfully copied with no modification.

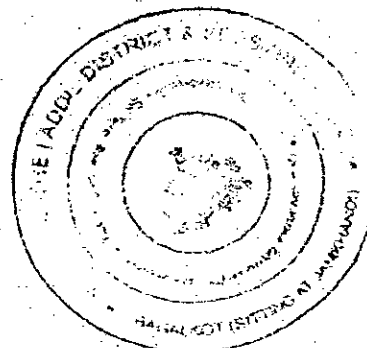
"TRUE COPY"

Copyist Examiner
I Addl. Dist. & Sessions Court,
Bagalkot (To sit at Jamkhandi)

1587/2013 Date 11/9/23

1. Copying application filed on	11/7/23
2. Copying Sheets ^{Charges} required to be produced on	
3. Copying Sheets ^{Charges} Produced on	
4. Applicant required to appear on	11/9/23
5. Applicant appeared on	11/9/23
6. Copy ready on	11/9/23
7. Copy delivered on	11/9/23
8. Copied by	2602
9. Examined by	

Sheriffdar



FREE OF COST

1

LAC No.731/2018

A W A R D

**IN THE COURT OF THE J ADDL DIST AND SESSIONS JUDGE,
BAGALKOT, TO SIT AT JAMAKHANDI AND THE LAND
ACQUISITION, REHABILITATION AND RESETTLEMENT
AUTHORITY, JAMAKHANDI**

LAC No. 731/2018

Date of Institution: 22-06-2018

Date of Disposal : 01-07-2023

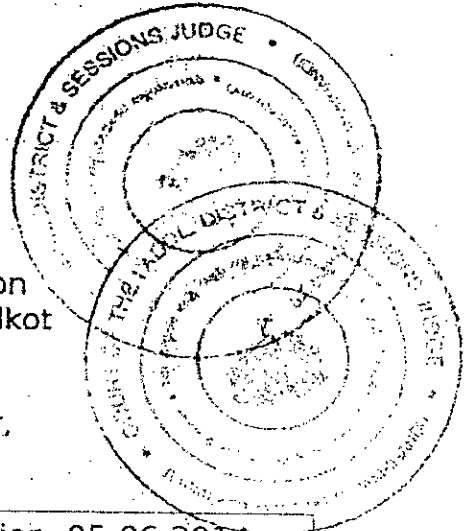
Claimant :

1. Smt.Parvatewwa W/o Holabasu @ Holabasappa Dupad,
Age: 50 years,
2. Smt.Shobha W/o Srikant Huddar
3. Kum.Shashikala } Father Holabasu @ Holabasappa
4. Kum.Shruthi } Dupad, Minors
5. Kum.Shilpa } Reptd by their mother Smt.
6. Shridar } Parvatewwa W/o Holabasu @
Holabasappa Dupad and GPA
All R/o Vajjaramatti, Tq: Mudhol
Dist:Bagalkot

-V/s-

Respondents:

1. The Spl. Land Acquisition Officer,
UKP, Jamakhandi,
Dist: Bagalkot.
2. The General Manager, Land Acquisition
@ LAQ R & R , UKP, Navanagar, Bagalkot
3. The State of Karnataka,
represented by Deputy Commissioner,
Navanagar, Bagalkot.



Date of Notification u/s 11(1) of L.A.Act and its publication in the Gazette	11(1) Notification: 05-06-2014
Date of Pronouncement of award by SLAO	LAQ/SR/No.12/2014-15 dated 03-02-2017
Date of service of notice u/s 21(1)(2) of L.A.Act	03-09-2016
Date of reference petition filed before the respondent	20-03-2017

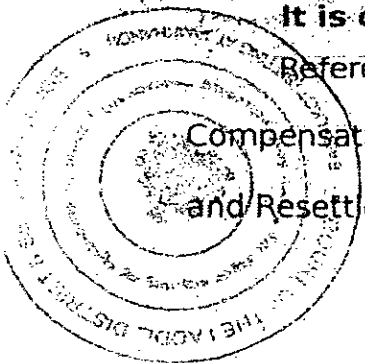
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The Claimant in this case being aggrieved by the award passed by the Opponent LAQ.SR.No.12/2014-15 in respect of land in R.S.No.206/1B measuring 1-31+APK0-05=1-36 A-G of Vajjaramatti village, in Mudhol Taluka awarding total compensation of Rs.10,49,591/- of above said land including solatium and others filed an application before the opponent for making reference to the I Additional District and Sessions Judge, Bagalkot, to sit at Jamakhandi and Land Acquisition Rehabilitation & Resettlement Authority for enhancement of the compensation awarded by them as the said compensation awarded by the opponent is inadequate one.

This petition coming on 1st day of July.2023 for final disposal before Sri. Arjun S. Mallur, B.A.L., LL.B., I Additional District and Sessions Judge, Bagalkot, to sit at Jamkhandi and Land Acquisition Rehabilitation & Resettlement Authority in the presence of Smt.R.L.Hunashikatti, Advocate for claimant, Special Government Counsel for respondent No.1, Learned Additional Government Pleader for respondent No. 3 and respondent No.2 absent.

It is ordered and awarded that,

Reference petition filed U/s.64 of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 is hereby **allowed in part with costs.**



The market value of the acquired lands is determined at Rs.5,272/- per square meter to the extent of the acquired lands situated at Vajjaramatti village Mudhol taluka Bagalkot district.

The claimants are entitled for solatium at 100% on the market value of the acquired land u/sec.30(1) of Right to Fair compensation and Transparency in Land acquisition, Rehabilitation and Resettlement Act 2013.

The claimants are also entitled to additional market value of 12% p.a U/sec.30(3) of Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

The claimants are also entitled for interest for 9% p.a u/sec.72 of Right to Fair compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on the enhanced compensation for one year from the date of dispossession and thereafter at the rate of 15% p.a for the subsequent period till date of payment of deposit.

The claimants are entitled to all statutory benefits as per law.

The amount of compensation if any already paid to the claimants shall be deducted from the said amount.

Advocate fees is fixed at Rs.1,000/-.

Given under my hand and seal of the Court this 1st day of July-

2023

Addl. District and Sessions Judge, Bagalkot
to sit at Jamakhandi/ Land Acquisition
& Rehabilitation & Resettlement Authority,
Jamakhandi.

BILL OF COST

Sl. No.	Particulars	By claimant	By Respondent No.1	By R.2-Absent. Respondent No.3
1	C.F paid on petition	-	-	-
2	C.F paid on Exhibits	-	-	-
3	Process fee	-	-	-
4	Advocate fee	1000/-	F.C. Not filed	F.C. Not filed.
	Total	1000/-	-	-

Draft Award Notified on : 06-07-2023
Award Signed on : 12-07-2023

Prepared by

Verified by

Decree clerk

Sheristedar

(Sri Arjun S Mallur)

I Addl. District and Sessions Judge, Bagalkot
to sit at Jamakhandi/ Land Acquisition
Rehabilitation & Resettlement Authority,
Jamakhandi.

(Smt. R.L. Hunashikatti)
Advocate for claimant

Special Government Counsel
for respondent No.1

(Learned Addl. Government Pleader)
for respondent No.3.

Certified that this is a true and
accurate copy of the original all the
matter appearing in original has been
faithfully copied with no modification

TRUE COPY

Copyist Examiner
I Addl. Dist. & Sessions Court
Bagalkot (To sit at Jamkhandi)

1586 12/7/23 Date 11/9/23

Copying application filed on 11/7/23

2. Copying Sheets Charges required to be produced on

3. Copying Sheets Charges Produced on

4. Applicant required to appear on 11/9/23

5. Applicant appeared on 11/9/23

6. Copy ready on 11/9/23

7. Copy delivered on 11/9/23 Sheristedar

8. Copied by Zere

9. Examined by 11/9/23 Sheristedar

— 53 —
ANNEXURE - B



प्राल्प० आर्दि० आर०

Form. I. R.

निगमन का प्रमाण-पत्र

CERTIFICATE OF INCORPORATION

ता० का से०

No. 031 16101 of 19 94

मैं एतद्वारा प्रमाणित करता हूँ कि आज

कम्पनी अधिनियम 1956 (1956 का 1) के अधीन निगमित की गई है और यह कम्पनी परिसीमित है।

I hereby certify that KRISHNA BHAGYA JALA NIGAM

LIMITED XX XX XX

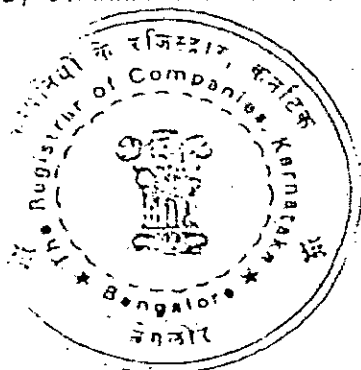
XX XX XX XX

is this day incorporated under the Companies Act, 1956 (No. 1 of 1956) and that the company is limited.

मेरे हस्ताक्षर से आज ता० को दिया गया।

Given under my hand at BANGALORE this NINETEENTH

day of AUGUST one thousand nine hundred and NINETY FOUR.



(V. SREENIVASA RAO),

कम्पनियों का रजिस्ट्रार

कर्नाटक रेगलर

Registrar of Companies

KARNATAKA, BANGALORE



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

FREE OF COST

ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು, ಕೃ.ಮೇ.ಯೋ., ಜಮಖಂಡಿರವರ ಕಾರ್ಯಾಲಯದ ನಡವಳಿಕೆಗಳು

ಸಂಖ್ಯೆ:ಎಲ್‌ಎಕ್ಯೂ/ಎಸ್‌ಆರ್-12/2014-15

ದಿನಾಂಕ:24-01-2017.

:: ಐತಿಹಾಸ ::

ಪ್ರಸ್ತುತಪಡಿಸಿದವರು:

ಶ್ರೀ ರವೀಂದ್ರ ಕರಲಿಂಗಣ್ಣವರ, ಕ.ಆ.ಸೇ.(ಪ್ರಭಾಕರ)
 ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು,
 ಕೃಷ್ಣಾ ಮೇಲ್ವಿಂಡಿ ಯೋಜನೆ,
 ಜಮಖಂಡಿ.

Ex R1
17/3/23

1st Assistant Dist. & Sessions Judge
 Bagalkot (To sit at Jamkhandi)

ವಿಷಯ: ಮುಧೋಳ ತಾಲೂಕು ಝಂಜರಕೊಪ್ಪ ಹಾಗೂ ವಜ್ರಮಟ್ಟ ಗ್ರಾಮಗಳ ಜಮೀನುಗಳನ್ನು ಮಾಚಕನೂರ ಗ್ರಾಮದ ಪುನರ್ವಸತಿ ಕೇಂದ್ರ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಭೂಸ್ವಾಧೀನತೆ ಬಗ್ಗೆ ಭೂಸ್ವಾಧೀನ ಕಲಂ. 23 ರ ಅಡಿಯಲ್ಲಿ ಐತಿಹಾಸ.

ಉಲ್ಲೇಖ: 1) ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಧಿಯಂತರರು, ಕೃ.ಮೇ.ಯೋ., ವಿಭಾಗ ಸಂ.3, ಜಮಖಂಡಿ ಇವರ ಪತ್ರ ಸಂಖ್ಯೆ:ಭೂಸ್ವಾ/ಮವಿನಂ.3/2015-16/69 ದಿನಾಂಕ:12-05-2014.

2) ಈ ಕಾರ್ಯಾಲಯದ ಪತ್ರ ಸಂಖ್ಯೆ:ಎಲ್‌ಎಕ್ಯೂ/ಎಸ್‌ಆರ್-12/2014-15 ದಿನಾಂಕ:28-5-14 ರನ್ವಯ ಕಲಂ.11(1) ರ ಕಡತ ಅಧಿಸೂಚನೆಯನ್ನು ತಯಾರಿಸಿ ಮಾನ್ಯ ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಕೃ.ಮೇ.ಯೋ., ಬಾಗಲಕೋಟೆ ಇವರಿಗೆ ಮಂಜೂರಾತಿಗಾಗಿ ಸಲ್ಲಿಸಿದ್ದು.

3) ಮಾನ್ಯ ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಹಾಗೂ ಸಮೂಹ ವ್ಯವಸ್ಥಾಪಕರು, ಭೂಸ್ವಾಧೀನ ಮಹಾ ಕೃ.ಮೇ.ಯೋ ಬಾಗಲಕೋಟೆ ಇವರ ಆದೇಶ ಸಂಖ್ಯೆ: ವಿಜೇಶ/ಭೂಸ್ವಾ/ಸಿಆರ್:4/14-15 ದಿನಾಂಕ:29-5-14 ರ ಮೂಲಕ ಕಲಂ 11(1)ರ ಅಧಿಸೂಚನೆಗೆ ಅನುಮೋದನೆ ನೀಡಲಾಗಿದೆ.

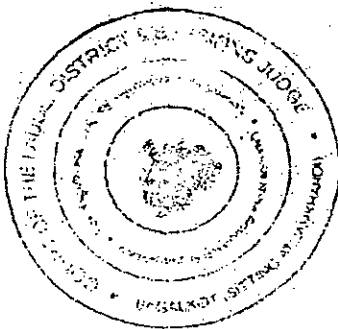
4) ಕಲಂ.11(1)ರ ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರವು ದಿನಾಂಕ:5-6-14 ರಂದು ಪ್ರಕಟ ಗೊಂಡಿರುತ್ತದೆ.

5) ಈ ಕಛೇರಿಯ ಪತ್ರ ಸಂಖ್ಯೆ:ಎಲ್‌ಎಕ್ಯೂ/ಎಸ್‌ಆರ್-12/2014-15 ದಿನಾಂಕ: 18-8-2015 ರಂದು ಸಹಮೋಜನೆ ಪತ್ರಿಕೆ ತಯಾರಿಸಿ ಕಳುಹಿಸಲು ಸಹಾಯಕ ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಧಿಯಂತರರು, ಕೃ.ಮೇ.ಯೋ., ಉಪ ವಿಭಾಗ ಸಂ.11, ಅಧೀನ ಕ್ಯಾಂಪ, ಮುಧೋಳ ಇವರಿಗೆ ಪತ್ರ ಬರೆಯಲಾಗಿದೆ.

6) ಭೂ-ದಾಖಲೆಗಳ ಸಹಾಯಕ ನಿರ್ದೇಶಕರು ಜಮಖಂಡಿ, ಉಪ-ವಿಭಾಗ ಜಮಖಂಡಿ ಇವರ ಪತ್ರ ಸಂಖ್ಯೆ:ಇತರ/ಮೇಲುರುಜು-13/15-16 ದಿನಾಂಕ:2-9-15 ರ ಮೇರೆಗೆ ಸಹಮೋಜನೆಗೆ ಮೇಲು ರುಜು ಮಾಡಿ ಸಲ್ಲಿಸಿದ್ದು ಇರುತ್ತದೆ.

7) ಈ ಕಛೇರಿಯ ಪತ್ರ ಸಂಖ್ಯೆ:ಎಲ್‌ಎಕ್ಯೂ/ಎಸ್‌ಆರ್-12/2014-15 ದಿನಾಂಕ: 8-1-15 ರನ್ವಯ ಕಲಂ.15(2)ರಡಿ ಪತ್ರ ಬರೆಯಲಾಗಿ, ಮಾನ್ಯ ಅಯುಕ್ತರು, ಪುಷ್ಪ ಮತ್ತು ಭೂಸ್ವಾಧೀನ, ಕೃ.ಮೇ.ಯೋ., ನವನಗರ, ಬಾಗಲಕೋಟೆ ರವರ ಆದೇಶ ಸಂಖ್ಯೆ:ಕಂ.ಇ.ಭೂಸ್ವಾ-1/ಸಿಆರ್/60/14-15/1505 ದಿನಾಂಕ:4-3-2015 ರನ್ವಯ ಭೂಸ್ವಾ ಕಲಂ 15(3) ರಡಿಯಲ್ಲಿ ಅನುಮತಿ ನೀಡಿರುತ್ತಾರೆ.

8) ಮಾನ್ಯ ಅಯುಕ್ತರು, ಪುಷ್ಪ ಮತ್ತು ಭೂಸ್ವಾಧೀನ, ಕೃ.ಮೇ.ಯೋ., ನವನಗರ, ಬಾಗಲಕೋಟೆ ಇವರ ಆದೇಶ ಸಂಖ್ಯೆ:ಸಿಆರ್:15-16/23 ದಿನಾಂಕ:15-4-16ರನ್ವಯ ಭೂಸ್ವಾಧೀನ ಕಲಂ 18 ರಡಿಯಲ್ಲಿ ಅನುಮತಿ ನೀಡಿರುತ್ತಾರೆ.



- 9) ಮಾನ್ಯ ಮಾನ್ಯ ಆಯುಕ್ತರು, ಪುಷ್ಪ ಮತ್ತು ಭೂಸ್ವಾಧೀನ, ಕೃಷಿಮೇಯೋ, ನವನಗರ, ಬಾಗಲಕೋಟೆ ಇವರ ಆದೇಶ ಸಂ:ಕಂಇ/ಭೂಸ್ವಾ-1/ಸಿಆರ್:60/14-15/1505 ದಿನಾಂಕ:04-03-15ರನ್ವಯ ಭೂಸ್ವಾಧೀನ ಕಲಂ 15(3)ರ ರಡಿಯಲ್ಲಿ ಅನುಮತಿ ನೀಡಿರುತ್ತಾರೆ.
- 10) ಈ ಕಾರ್ಯಾಲಯದ ಪತ್ರ ಸಂಖ್ಯೆ: ಎಲ್‌ಎಕ್ಯೂ/ಎಸ್‌ಆರ್-12/2014-15 ದಿನಾಂಕ: 28-05-16 ರ ಮೂಲಕ ಕಲಂ 19(2) ಅಧಿಸೂಚನೆ ಅನುಮೋದನೆಗೆ ಸಲ್ಲಿಸಿದ್ದು ಇರುತ್ತದೆ.
- 11) ಮಾನ್ಯ ಆಯುಕ್ತರು, ಪುಷ್ಪ ಮತ್ತು ಭೂಸ್ವಾಧೀನ, ಕೃಷಿಮೇಯೋ, ನವನಗರ, ಬಾಗಲಕೋಟೆ ಇವರ ಆದೇಶ ಸಂ:ಕಂಇ/ಭೂಸ್ವಾ-01/ ಸಿಆರ್:60/14-15/1075 ದಿನಾಂಕ: 31-5-2016 ರ ಮೂಲಕ ಕಲಂ 19(2)ರ ಅಧಿಸೂಚನೆಗೆ ಅನುಮೋದನೆ ನೀಡಿರುತ್ತಾರೆ.
- 12) ಕಲಂ 19(2)ರಡಿ ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರ ದಿನಾಂಕ:20-6-2016 ರಂದು ಪ್ರಕಟಗೊಳಿಸಿರುತ್ತದೆ.
- 13) ಉಪ ನೋಂದಣಿ ಅಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಮುಧೋಳ ರವರ ಪತ್ರ ಸಂ: ಸರಮು/ಮಾ.ಬೆ/ವಿನಾಯಿತಿ/16-17ದಿನಾಂಕ:18-8-16.
- 14) ಸಹಾಯಕ ತೋಟಗಾರಿಕೆ ಅಧಿಕಾರಿಗಳು, ಮಾನ್ಯ ಆಯುಕ್ತರವರ ಕಚೇರಿ, ಪುಷ್ಪ ಮತ್ತು ಭೂಸ್ವಾಧೀನ, ಕೃಷಿಮೇಯೋ, ನವನಗರ, ಬಾಗಲಕೋಟೆ ಇವರ ಪತ್ರ ಸಂಖ್ಯೆ:ಆಕ/ಭೂಸ್ವಾ/ಸ.ತೋ.ಆ./107/16-17/4198 ದಿನಾಂಕ:30-11-2016 ರನ್ವಯ ಗಿಡಮರಗಳ ಮೌಲ್ಯ ಮಾಪನ ಪತ್ರಿಕೆ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.
- 15) ವಲಯ ಅರಣ್ಯಾಧೀಕಾರಿಗಳು, ಮುಧೋಳ ರವರ ಕಛೇರಿಯ ಪತ್ರ ಸಂ:-ವ.ಆ.ಆ/ಮು /ಮ.ಮೌ.ಮಾ.16-17/288. ದಿನಾಂಕ:10-12-2016.
- 16) ತೋಟಗಾರಿಕೆ ನಿರ್ದೇಶಕಾಲಯ, ಲಾಲಬಾಗ, ಬೆಂಗಳೂರು-02. ಇವರ ಕಾರ್ಯಾಲಯದ ಪತ್ರ ಸಂ:ತೋ.ಇ./ತೋ.ಅನಿ.ಕ್ಷೇ.ಸ.ತೋ.ಆ.1-62-2004-05. ದಿನಾಂಕ: 23-2-2005.
- 17) ಹೆಚ್ಚುವರಿ ಕಾರ್ಯದರ್ಶಿಗಳು (ಸೇವೆಗಳು-2) ಕಾನೂನು ನ್ಯಾಯ ಮತ್ತು ಮಾನವ ಹಕ್ಕುಗಳು ಕಾನೂನು ಇಲಾಖೆ ವಿಧಾನಸೌಧ ಬೆಂಗಳೂರು ಇವರ ಕಾರ್ಯಾಲಯದ ಅಭಿಪ್ರಾಯದ ಪತ್ರ ಸಂಖ್ಯೆ:ಲಾ-13/ಓಪಿಎನ್-2014/ ಆರ್‌ಡಿ-3/ಎಕ್ಯೂಬಿ-14/ದಿನಾಂಕ:24-1-2014.
- 18) ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ ಕಂದಾಯ ಇಲಾಖೆ (ಭೂಸ್ವಾ-1&3) ಬೆಂಗಳೂರು ಇವರ ಕಚೇರಿಯ ಸುತ್ತೋಲೆ ಪತ್ರ ಸಂಖ್ಯೆ: ಕಂಇ:ಭೂಸ್ವಾರಾ/2014 ದಿನಾಂಕ:5-3-2014.

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ಪ್ರಸ್ತಾವನೆ:

ಮುಧೋಳ ತಾಲೂಕಿನ ಝುಂಜರಕೋಪ್ಪ ಹಾಗೂ ಪೆಟ್ಟುಮಟ್ಟಿ ಗ್ರಾಮಗಳ ಜಮೀನುಗಳನ್ನು ಮುಚ್ಚಕನೂರ ಗ್ರಾಮದ ಪುನರ್ವಸತಿ ಕೇಂದ್ರ ನಿರ್ಮಾಣಕ್ಕಾಗಿ ಈ ಪ್ರಕರಣದಲ್ಲಿ ಅಡಕವಾದ ಜಮೀನುಗಳನ್ನು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳಲು ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಧಿಯಂತರರು, ಪುನರ್ವಸತಿ ವಿಭಾಗ ನಂ-3, ಜಮಖಂಡಿ ಇವರು ದಿನಾಂಕ:12-5-2014 ರ ಮೂಲಕ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಈ ಕಾರ್ಯಾಲಯಕ್ಕೆ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

ಉಲ್ಲೇಖಿತ ಪತ್ರ-1 ರಂತೆ ಬಂದ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 2013 ರಡಿಯಲ್ಲಿ ಭೂಸ್ವಾಧೀನ ಪ್ರಕ್ರಿಯೆ ಪ್ರಾರಂಭಿಸಲು ಪ್ರಕರಣವನ್ನು ಕೈಗೆತ್ತಿಕೊಳ್ಳಲಾಯಿತು. ಅದರಂತೆ ಉಲ್ಲೇಖಿತ-2 ರಂತೆ ಈ ಕಾರ್ಯಾಲಯದ ಪತ್ರ ಸಂ:ಎಲ್‌ಎಕ್ಯೂ/ಎಸ್‌ಆರ್-12/2014-15 ದಿನಾಂಕ: 28-5-2014 ರನ್ವಯ ಕಲಂ 11(1)ರ ಕರಡು ಅಧಿಸೂಚನೆಯನ್ನು ತಯಾರಿಸಿ ಮಾನ್ಯ ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಕೃಷಿಮೇಯೋ, ಬಾಗಲಕೋಟೆ ಇವರಿಗೆ ಕಳುಹಿಸಿ ಕೊಡಲಾಯಿತು. ಉಲ್ಲೇಖಿತ-3 ರಂತೆ ಮಾನ್ಯ ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಕೃಷಿಮೇಯೋ, ಬಾಗಲಕೋಟೆ ರವರು ಪತ್ರ ಸಂಖ್ಯೆ:ಎಲ್‌ಎಕ್ಯೂ/ ಸಿಆರ್:ವಿಜಿಬಾ/ಭೂಸ್ವಾ/ಸಿಆರ್/4/14-15 ದಿನಾಂಕ:29-5-14 ರನ್ವಯ ಕಲಂ 11(1)ರ ಅಧಿಸೂಚನೆಯನ್ನು ಮಂಜೂರಿ ಮಾಡಿದ್ದು ಇರುತ್ತದೆ ಹಾಗೂ ಉಲ್ಲೇಖಿತ-4 ರಂತೆ ಸದರಿ ಅಧಿಸೂಚನೆಯು ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರದಲ್ಲಿ ದಿನಾಂಕ:5-6-2014 ರಂದು ಪುಟ ಸಂಖ್ಯೆ: 169 ರಿಂದ 183 ರ ವರೆಗೆ ಪ್ರಕಟಗೊಂಡಿದ್ದು ಇರುತ್ತದೆ.

2. ಕಲಂ 11(1) ರ ಅಡಿಯಲ್ಲಿ ಅಧಿಸೂಚನೆ ಪ್ರಕಟಣೆ:

ಮಾನ್ಯ ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು, ಕೃಷಿಮೇಯೋ, ಬಾಗಲಕೋಟೆ ಇವರು ಸದರಿ ಪ್ರಸ್ತಾವನೆಗಳನ್ನು ಪರಿಶೀಲಿಸಿ 11(1) ಅಧಿಸೂಚನೆ ಹೊರಡಿಸಿ ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರ ಹಾಗೂ ದಿನ ಪತ್ರಿಕೆಗಳಿಗೆ ಪ್ರಕಟಣೆಗಾಗಿ ಕಳುಹಿಸಿದ್ದು, ಅಧಿಸೂಚನೆಯು ಪ್ರಕಟಗೊಂಡ ವಿಷಯ ಹೀಗಿದೆ.

(Signature)

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| 1) ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರ | ದಿನಾಂಕ : 5-6-2014 |
| 2) ಹುಚ್ಚು ಟೈಮ್ಸ್ ಕನ್ನಡ ದಿನಪತ್ರಿಕೆ | ದಿನಾಂಕ : 24-7-2014 |
| 3) ಶಾಖಾ ಕನ್ನಡ ದಿನಪತ್ರಿಕೆ | ದಿನಾಂಕ : 25-7-2014 |
| 4) ಗ್ರಾಮಲೆಕ್ಕಾಧಿಕಾರಿ, ಝಂಜರಕೋಪ್ಪ (ಮುಧೋಳ) | ದಿನಾಂಕ : 29-9-2014 |
| 5) ಗ್ರಾಮ ಲೆಕ್ಕಾಧಿಕಾರಿಗಳು, ವಜ್ರರಮಟ್ಟ | ದಿನಾಂಕ : 29-9-2014 |
| 6) ಕೆಹರೀಲ್ವಾರ ಕಾರ್ಯಾಲಯ, ಮುಧೋಳ | ದಿನಾಂಕ : 4-8-2014 |
| 7) ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಬಾಗಲಕೋಟೆ | ದಿನಾಂಕ : 16-8-2014 |

3. ಭೂಮಾಲೀಕರಿಗೆ 11(1) ರನ್ವಯ ಸಾರ್ವಜನಿಕ ನೋಟೀಸುಗಳನ್ನು ನೀಡಿದ್ದು :

ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ-2013 ರ ಕಲಂ 12 ರಡಿ ಅಂಶಗಳು ಒಳಗೊಂಡಂತೆ ಕಲಂ.11(1) ರನ್ವಯ ಸಾರ್ವಜನಿಕ ವೈಯಕ್ತಿಕ ನೋಟೀಸುಗಳನ್ನು ದಿನಾಂಕ:29-9-2014 ರಂದು ಜಾರಿ ಮಾಡಲಾಗಿದೆ.

4. ಸಹ ಮೋಜಣಿ :

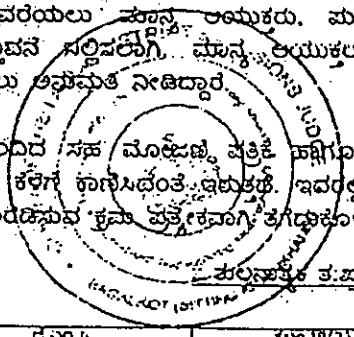
ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ.12ರಂತೆ ಪ್ರದಕ್ಷವಾದ ಅಧಿಕಾರದಿಂದ ಈ ಕೆಚೇರಿಯ ಭೂಮಾವಕರಾದ ಶ್ರೀ ಮಹಾಂತೇಶ ಮಂಗೂಂಡ ಹಾಗೂ ಕಾರ್ಯನಿರ್ವಾಹಕ ಅಭಿಯಂತರರು, ಕೈಮೇಯೋ. ವಿಭಾಗ ನಂ.3, ಜಮಖಂಡಿ ಇವರಿಗೆ ವಹಿಸಿಕೊಡಲಾಯಿತು. ಸದರಿಯವರು ಸಹ ಮೋಜಣಿ ಕಾರ್ಯವನ್ನು ಪೂರ್ಣಗೊಳಿಸಿ, ಭೂ-ದಾಖಲೆಗಳ ಸಹಾಯಕ ನಿರ್ದೇಶಕರು ಜಮಖಂಡಿ, ಉಪ-ವಿಭಾಗ ಜಮಖಂಡಿ ಇವರ ಮೇಲು ರುಜು ದಿನಾಂಕ:2-9-2015 ದೊಂದಿಗೆ ಮರಳಿ ಈ ಕಾರ್ಯಾಲಯಕ್ಕೆ ಸಲ್ಲಿಸಿರುತ್ತಾರೆ.

5. ಕಲಂ 15(2) ರಡಿ ಭೂಸ್ವಾಧೀನತೆ ಮುಂದುವರೆಯುವ ಬಗ್ಗೆ :

ಸಾರ್ವಜನಿಕ ನೋಟೀಸುಗಳ ಜಾರಿ ನಂತರ ಪ್ರಾರಂಭಿಕ ಅಧೀನೂಚನೆಯನ್ನು ಪ್ರಕಟಿಸಿದ ದಿನಾಂಕದಿಂದ 60 ದಿನಗಳ ಅವಧಿಯೊಳಗಾಗಿ ಜಮೀನಿನ ಹಿತಾಸಕ್ತಿಯುಳ್ಳವರು ಅಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸಲು ತಿಳಿಸಲಾಗಿತ್ತು. ಹಾಗೂ ಕಲಂ 15(1) ರ ಉಪ ಕಲಂ ಎ ದಿಂದ ಸಿ. ದವರೆಗಿನ ಅಂಶಗಳ ಮೇಲೆ ಯಾವುದೇ ಹಿತಾಸಕ್ತಿಯುಳ್ಳವರು ಕಲಂ 15(2) ರನ್ವಯ ಆತನಿಂದ ಅಧೀಕೃತನಾದ ಯಾವನೇ ವ್ಯಕ್ತಿಯಿಂದ ಇಲ್ಲವೇ ಒಬ್ಬ ನ್ಯಾಯವಾದಿಯಿಂದ ಅಹವಾಲನ್ನು ಸಲ್ಲಿಸಲು ಅವಕಾಶ ನೀಡಲಾಗಿತ್ತು. ಆದರೆ ಯಾವುದೇ ಭೂಮಾಲೀಕರ ಅಕ್ಷೇಪಣೆಗಳು ಈ ಕೆಚೇರಿಗೆ ಸ್ವೀಕೃತವಾಗಿರುವುದಿಲ್ಲ. ಆದ್ದರಿಂದ ಕಲಂ 15(3) ರಡಿ ಭೂಸ್ವಾಧೀನತೆಯಲ್ಲಿ ಮುಂದುವರೆಯಲು ಸಾಧ್ಯ ಆಯಿತು. ಮತ್ತು ಭೂಸ್ವಾಧೀನ, ಕೈಮೇಯೋ, ನವನಗರ, ಬಾಗಲಕೋಟೆ ಇವರಿಗೆ ಪ್ರಸ್ತಾವನೆ ಸಲ್ಲಿಸಿದ್ದು, ಮಾನ್ಯ ಅಧ್ಯುಕ್ತರು ಉಲ್ಲೇಖ-7 ರನ್ವಯ ಪ್ರತಿದಿ ಈ ಭೂಸ್ವಾಧೀನ ಪ್ರಕರಣದಲ್ಲಿ ಮುಂದು ವರೆಯಲು ಅನುಮತಿ ನೀಡಿದ್ದಾರೆ.

6. ತುಲನಾತ್ಮಕ ತ:ಖೆ :

ಮೇಲು ರುಜು ಹೊಂದಿದ ಸಹ ಮೋಜಣಿ ವ್ಯಕ್ತಿ ಹಾಗೂ 11(1) ರ ಅಧೀನೂಚನೆಗಳಲ್ಲಿಯ ಸರ್ವೆ ನಂಬರಗಳ ಕ್ಷೇತ್ರಗಳ ತುಲನಾತ್ಮಕ ತ:ಖೆ ಈ ಕೆಳಗೆ ಕಾಣಿಸಿದಂತೆ ಇರುತ್ತದೆ. ಇವರಲ್ಲಿ ಹೆಚ್ಚುವರಿ ಕ್ಷೇತ್ರಕ್ಕೆ ಪ್ರಸ್ತಾವನೆ ಪಡೆದು ಹಾಗೂ ಕಡಿಮೆ ಕ್ಷೇತ್ರಕ್ಕೆ ರದ್ದತಿ ಅಧೀನೂಚನೆ ಹೊಂದಿಸುವ ಕ್ರಮ ಪ್ರತ್ಯೇಕವಾಗಿ ತೆಗೆದುಕೊಳ್ಳಲಾಗುವುದು.



ಕ್ರ. ಸಂ.	ಕಲಂ.11(1)		ಕಲಂ.12		ಕಲಂ.19(2)		ಹೆಚ್ಚು	ಕಡಿಮೆ	ಅಧೀನೂಚನೆ	
	ಸರ್ವೆ ಸಂ.	ಕ್ಷೇತ್ರ	ಸರ್ವೆ ಸಂ.	ಕ್ಷೇತ್ರ	ಸರ್ವೆ ಸಂ.	ಕ್ಷೇತ್ರ			ಸರ್ವೆ ಸಂ.	ಕ್ಷೇತ್ರ
ಗ್ರಾಮಝಂಜರಕೋಪ್ಪ										
1	2	3	4	5	6	7	8	9	10	11
2	135/1	8-16	135/1	8-16	135/1	8-16		-	135/1	8-16
3	135/2	4-08	135/2	4-08	135/2	4-08		-	135/2	4-08
4	135/2ಬ/1	2-07	135/2ಬ/1	2-07	135/2ಬ/1	2-07		-	135/2ಬ/1	2-07
5	135/2ಬ/2	2-00	135/2ಬ/2	2-00	135/2ಬ/2	2-00		-	135/2ಬ/2	2-00
6	136/1	0-20	-	-	-	-		0-20	-	-
7	136/18	0-09	136/18	0-09	136/18	0-09		-	136/18	0-09
8	136/18	0-09	136/18	0-09	136/18	0-09		-	136/18	0-09
9	136/1ಎ/1ಬ	1-00	136/1ಎ/1ಬ	0-35	136/1ಎ/1ಬ	0-35		0-05	136/1ಎ/1ಬ	0-35
10	136/1ಎ/2	6-25	136/1ಎ/2	5-17	136/1ಎ/2	5-17		1-08	136/1ಎ/2	5-17
11	136/1ಎ/2	1-00	136/1ಎ/2	1-00	136/1ಎ/2	1-00		-	136/1ಎ/2	1-00
12	136/1ಎ/1	4-25	136/1ಎ/1	2-25	136/1ಎ/1	2-25	-	136/1ಎ/1	136/1ಎ/1	2-25

- 57 -

13	137/2	1-17	137/2	1-10	137/2	1-10	-	137/2	137/2	1-10
14	137/3	1-38	137/3	1-37	137/3	1-37	-	137/3	137/3	1-37
15	137/4	1-15	137/4	1-15	137/4	1-15	-	-	137/4	1-15
16	137/5	1-10	137/5	1-10	137/5	1-10	-	-	137/5	1-10
17	-	-	137/6	4-01	-	-	4-01	-	-	-
18	137/7	0-11	137/7	0-07	137/7	0-07	-	0-04	137/7	0-07
19	137/8	8-02	137/8	7-39	137/8	7-39	-	0-03	137/8	7-39
20	137/9	0-11	137/9	0-11	137/9	0-11	-	-	137/9	0-11
21	137/10	0-11	137/10	0-11	137/10	0-11	-	-	137/10	0-11
22	137/11	0-11	137/11	0-04	137/11	0-04	-	0-07	137/11	0-04
23	137/12	0-11	137/12	0-11	137/12	0-11	-	-	137/12	0-11
24	137/13	0-02	-	-	-	-	-	0-02	-	-
25	138/1a	5-18	138/1a	5-13	138/1a	5-13	-	0-05	138/1a	5-13
26	138/2a	5-16	138/2a	5-12	138/2a	5-12	-	0-04	138/2a	5-12
27	138/3a	5-15	138/3a	5-08	138/3a	5-08	-	0-07	138/3a	5-08
28	139/2	5-39 280-01 6-00	139/2	5-13 280-01 5-14	139/2	5-10 280-01 5-11	-	0-29	139/2	5-10 280-01 5-11
29	139/3	2-00	139/3	2-00	139/3	2-00	-	-	139/3	2-00
30	139/4	3-39 280-01 4-00	139/4	3-39 280-01 4-00	139/4	3-39 280-01 4-00	-	-	139/4	3-39 280-01 4-00
31	139/5	4-31 280-01 4-32	139/5	4-31 280-01 4-32	139/5	4-31 280-01 4-32	-	-	139/5	4-31 280-01 4-32
32	139/6	0-03	-	-	-	-	-	0-03	-	-
33	139/7	1-00	139/7	1-00	139/7	1-00	-	-	139/7	1-00
34	139/8	7-35 280-02 7-37	139/8	7-15.08 280-02 7-17.08	139/8	7-15.08 280-02 7-17.08	139/8	0-20	139/8	7-15.08 280-02 7-17.08
35	139/9	4-00	139/9	4-00	139/9	4-00	-	-	139/9	4-00
36	139/10	0-07	-	-	-	-	139/10	0-07	-	-
37	139/11	0-17	139/11	0-17	139/11	0-17	-	-	139/11	0-17
38	139/13	2-02	139/13	2-02.08	139/13	2-00	139/13	0-02.08	139/13	2-00
39	139/14	0-30	139/14	0-30	139/14	0-30	-	-	139/14	0-30
40	139/15	1-00	139/15	1-00	139/15	1-00	-	-	139/15	1-00
41	139/16	0-07	-	-	-	-	-	0-07	-	-
42	139/17	0-04	-	-	-	-	-	0-04	-	-
43	139/18	0-01	-	-	-	-	-	0-01	-	-
44	139/19	0-01	-	-	-	-	-	0-01	-	-
45	140	17-11	140	16-04	140/1	1-25	-	1-07	140/1	1-25
					140/2	3-00	-		140/2	3-00
					140/3	1-12	-		140/3	1-12
					140/4	3-13	-		140/4	3-13
					140/5	0-38	-		140/5	0-38
					140/6	3-27	-		140/6	3-27
					140/7	0-10	-		140/7	0-10
					140/8	1-39	-		140/8	1-39
46	142/1a/1	0-26	-	-	-	-	-	-	-	-
47	142/1a/1	1-07	-	-	-	-	-	-	-	-
48	142/3a	6-12 280-01 6-13	142/3a	6-12 280-01 6-13	142/3a	6-12 280-01 6-13	-	-	142/3a	6-12 280-01 6-13
49	142/3a/1	0-22	142/3a/1	0-22	142/3a/1	0-22	-	-	142/3a/1	0-22
50	142/3a/2	1-00	142/3a/2	1-00	142/3a/2	0-36	-	-	142/3a/2	0-36
51	142/3a/3	0-18	142/3a/3	0-18	142/3a/3	0-18	-	-	142/3a/3	0-18
52	142/4	5-22 280-01 5-23	142/4	5-22 280-01 5-23	142/4	5-22 280-01 5-23	-	-	142/4	5-22 280-01 5-23
53	142/5	1-38	142/5	1-38	142/5	1-38	-	-	142/5	1-38

200

13 (19)

5-1	142/7	5-03 ಪೂ-01 5-04	142/7	4-15 ಪೂ-01 4-16	142/7	4-15 ಪೂ-01 4-16	-	0-28	142/7	4-15 ಪೂ-01 4-16
		138-35-00 ಪೂ-08-00 139-03-00		130-34 ಪೂ-08 131-02		126-23-08 ಪೂ-08-00 126-31-08	-	-		126-23-08 ಪೂ-08-00 126-31-08

ಗ್ರಾಮ ಪಂಚಾಯತ್										
1	195/1	0-25 ಪೂ-01 0-26	195/1	0-25 ಪೂ-01 0-26	195/1	0-25 ಪೂ-01 0-26	-	-	195/1	0-25 ಪೂ-01 0-26
2	195/2	0-26	195/2	0-24	195/2	0-24	195/2	0-02	195/2	0-24
3	195/8	3-38 ಪೂ-02 4-00	-	-	-	-	195/8	3-38 ಪೂ-02 4-00	-	-
4	196	5-39 ಪೂ-14 6-13	196	6-09 ಪೂ-04 6-13	196	5-39 ಪೂ-14 6-13	-	-	196	6-09 ಪೂ-04 6-13
5	197/1 ಅ	1-14 ಪೂ-01 1-15	197/1	1-14 ಪೂ-01 1-15	197/1	1-14 ಪೂ-01 1-15	-	-	197/1	1-14 ಪೂ-01 1-15
6	197/1 ಬ	1-15	197/1	1-15	197/1	1-15	-	-	197/1	1-15
7	197/2 +3	2-31	197/2+3	2-31	197/2+3	2-31	-	-	197/2+3	2-31
8	198/1	2-17 ಪೂ-01 2-18	198/1	2-17 ಪೂ-01 2-18	198/1	2-17 ಪೂ-01 2-18	-	-	198/1	2-17 ಪೂ-01 2-18
9	198/2	2-31 ಪೂ-02 2-33	198/2	2-31 ಪೂ-02 2-33	198/2	2-31 ಪೂ-02 2-33	-	-	198/2	2-31 ಪೂ-02 2-33
10	199/1	0-28	199/1	0-28	199/1	0-28	-	-	199/1	0-28
11	199/2 ಅ	4-02 ಪೂ-04 4-06	199/2,3 (199/2,3,4 ಜಮಾ)	4-02 ಪೂ-04 4-06	199/2,3 (199/2,3,4 ಜಮಾ)	4-02 ಪೂ-04 4-06	-	-	199/2,3 (199/2,3,4 ಜಮಾ)	4-02 ಪೂ-04 4-06
12	200/1	3-02 ಪೂ-03 3-05	200/1	3-02 ಪೂ-03 3-05	200/1	3-02 ಪೂ-03 3-05	-	-	200/1	3-02 ಪೂ-03 3-05
13	200/2	2-05 ಪೂ-02 2-07	200/2	2-05 ಪೂ-02 2-07	200/2	2-05 ಪೂ-02 2-07	-	-	200/2	2-05 ಪೂ-02 2-07
14	201/1 ಅ	1-14	201/1	1-12 ಪೂ-01 1-13	201/1	1-12 ಪೂ-01 1-13	0-01	0-01	201/1	1-12 ಪೂ-01 1-13
15	201/1 ಬ	1-15 ಪೂ-01 1-16	201/1	1-12 ಪೂ-02 1-14	201/1	1-12 ಪೂ-02 1-14	0-02	0-02	201/1	1-12 ಪೂ-02 1-14
16	201/2	0-35 ಪೂ-20 1-15	201/2	1-13 ಪೂ-01 1-14	201/2	1-13 ಪೂ-01 1-14	0-01	0-01	201/2	1-13 ಪೂ-01 1-14
17	201/3	1-20	201/3	1-18 ಪೂ-02 1-20	201/3	1-18 ಪೂ-02 1-20	-	-	201/3	1-18 ಪೂ-02 1-20
18	202/1	3-04 ಪೂ-03 3-07	202/1	3-04 ಪೂ-03 3-07	202/1	3-04 ಪೂ-03 3-07	-	-	202/1	3-04 ಪೂ-03 3-07
19	202/2	3-10 ಪೂ-03 3-13	202/2	3-10 ಪೂ-03 3-13	202/2	3-10 ಪೂ-03 3-13	-	-	202/2	3-10 ಪೂ-03 3-13
20	203/1 ಅ	1-37 ಪೂ-02 1-39	203/1	1-37 ಪೂ-02 1-39	203/1	1-37 ಪೂ-02 1-39	-	-	203/1	1-37 ಪೂ-02 1-39

21	203/1 a	1-37 ප්‍රථම-01 1-38	203/1a	1-37 ප්‍රථම-01 1-38	203/1a	1-37 ප්‍රථම-01 1-38	-	-	203/1a	1-37 ප්‍රථම-01 1-38
22	203/2	3-30 ප්‍රථම-03 3-33	203/2	3-30 ප්‍රථම-03 3-33	203/2	3-30 ප්‍රථම-03 3-33	-	-	203/2	3-30 ප්‍රථම-03 3-33
23	204/1 a	1-32 ප්‍රථම-08 2-00	204/1a	1-32 ප්‍රථම-08 2-00	204/1a	1-32 ප්‍රථම-08 2-00	-	-	204/1a	1-32 ප්‍රථම-08 2-00
24	204/1a	3-26 ප්‍රථම-18 4-04	204/1a	3-26 ප්‍රථම-18 4-04	204/1a	3-26 ප්‍රථම-18 4-04	-	-	204/1a	3-26 ප්‍රථම-18 4-04
25	204/2	1-03 ප්‍රථම-06 1-09	204/2	1-03 ප්‍රථම-06 1-09	204/2	1-03 ප්‍රථම-06 1-09	-	-	204/2	1-03 ප්‍රථම-06 1-09
26	204/2 a	1-04 ප්‍රථම-05 1-09	-	-	-	-	204/2 a	1-04 ප්‍රථම-05 1-09	-	-
27	204/3	1-06 ප්‍රථම-04 1-10	204/3	1-06 ප්‍රථම-04 1-10	204/3	1-06 ප්‍රථම-04 1-10	-	-	204/3	1-06 ප්‍රථම-04 1-10
28	204/4	1-03 ප්‍රථම-06 1-09	204/4	1-03 ප්‍රථම-06 1-09	204/4	1-03 ප්‍රථම-06 1-09	-	-	204/4	1-03 ප්‍රථම-06 1-09
29	205/1	1-13 ප්‍රථම-01 1-14	205/1	1-13 ප්‍රථම-01 1-14	205/1	1-13 ප්‍රථම-01 1-14	-	-	205/1	1-13 ප්‍රථම-01 1-14
30	205/2 a	0-32 ප්‍රථම-01 0-33	205/2a	0-32 ප්‍රථම-01 0-33	205/2a	0-32 ප්‍රථම-01 0-33	-	-	205/2a	0-32 ප්‍රථම-01 0-33
31	205/2 b	0-33	205/2b	0-33	205/2b	0-33	-	-	205/2b	0-33
32	205/3	0-33	205/3	0-33	205/3	0-33	-	-	205/3	0-33
33	205/4	1-33 ප්‍රථම-01 1-34	205/4	1-33 ප්‍රථම-01 1-34	205/4	1-33 ප්‍රථම-01 1-34	-	-	205/4	1-33 ප්‍රථම-01 1-34
34	205/5	2-21 ප්‍රථම-02 2-23	205/5	2-21 ප්‍රථම-02 2-23	205/5	2-21 ප්‍රථම-02 2-23	-	-	205/5	2-21 ප්‍රථම-02 2-23
35	206/1 a	1-31 ප්‍රථම-05 1-36	206/1a	1-31 ප්‍රථම-05 1-36	206/1a	1-31 ප්‍රථම-05 1-36	-	-	206/1a	1-31 ප්‍රථම-05 1-36
36	206/2 a	1-24 ප්‍රථම-04 1-28	206/2a	1-24 ප්‍රථම-04 1-28	206/2a	1-24 ප්‍රථම-04 1-28	-	-	206/2a	1-24 ප්‍රථම-04 1-28
37	206/2 b	1-23 ප්‍රථම-04 1-27	206/2b	1-23 ප්‍රථම-04 1-27	206/2b	1-23 ප්‍රථම-04 1-27	-	-	206/2b	1-23 ප්‍රථම-04 1-27
38	206/3	3-07 ප්‍රථම-09 3-16	206/3	3-07 ප්‍රථම-09 3-16	206/3	3-07 ප්‍රථම-09 3-16	-	-	206/3	3-07 ප්‍රථම-09 3-16
40	207/1	1-20 ප්‍රථම-02 1-22	207/1	1-20 ප්‍රථම-02 1-22	207/1	1-20 ප්‍රථම-02 1-22	-	-	207/1	1-20 ප්‍රථම-02 1-22
41	207/2	1-20 ප්‍රථම-02 1-22	207/2	1-20 ප්‍රථම-02 1-22	207/2	1-20 ප්‍රථම-02 1-22	-	-	207/2	1-20 ප්‍රථම-02 1-22
42	207/3	3-05 ප්‍රථම-05 3-10	207/3	3-05 ප්‍රථම-05 3-10	207/3	3-05 ප්‍රථම-05 3-10	-	-	207/3	3-05 ප්‍රථම-05 3-10
43	207/4	1-24 ප්‍රථම-02 1-26	207/4	1-24 ප්‍රථම-02 1-26	207/4	1-24 ප්‍රථම-02 1-26	-	-	207/4	1-24 ප්‍රථම-02 1-26
44	207/5	0-34 ප්‍රථම-01	207/5	0-34 ප්‍රථම-01	207/5	0-34 ප්‍රථම-01	-	-	207/5	0-34 ප්‍රථම-01

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		0-35		0-35		0-35			0-35
45					207/6	0-17	-	-	207/6
	207/6	0-33 ಪೊ-01 0-34	207/6	0-33 ಪೊ-01 0-34		0-16 ಪೊ-01 0-17	-	-	207/11
46					207/11		-	-	207/11
	207/7	0-18 ಪೊ-01 0-19	207/7	0-18 ಪೊ-01 0-19	207/7	0-18 ಪೊ-01 0-19	-	-	207/7
47					207/7		-	-	207/7
	207/8	0-18 ಪೊ-01 0-19	207/8	0-18 ಪೊ-01 0-19	207/8	0-18 ಪೊ-01 0-19	-	-	207/8
48					207/8		-	-	207/8
	207/9	0-18 ಪೊ-01 0-19	207/9	0-18 ಪೊ-01 0-19	207/9	0-18 ಪೊ-01 0-19	-	-	207/9
49					207/9		-	-	207/9
	207/10	1-19 ಪೊ-02 1-21	207/10	1-19 ಪೊ-02 1-21	207/10	1-19 ಪೊ-02 1-21	-	-	207/10
50					207/10		-	-	207/10
	208/1	1-38 ಪೊ-02 2-00	208/1	1-38 ಪೊ-02 2-00	208/1	1-38 ಪೊ-02 2-00	-	-	208/1
51					208/1		-	-	208/1
	208/2	1-17 ಪೊ-03 1-20	208/2	1-17 ಪೊ-03 1-20	208/2	0-09 ಪೊ-01 0-10	-	-	208/2
52					208/2		-	-	208/2
	208/3	2-20 ಪೊ-04 2-24	208/3	2-20 ಪೊ-04 2-24	208/3	1-08 ಪೊ-02 1-10	-	-	208/3
53					208/3		-	-	208/3
	208/4	2-03 ಪೊ-04 2-07	208/4	2-03 ಪೊ-04 2-07	208/4	0-31 ಪೊ-01 0-32	-	-	208/4
54					208/4		-	-	208/4
	208/5	2-20 ಪೊ-07 2-27	208/5	2-20 ಪೊ-07 2-27	208/5	1-19 ಪೊ-03 1-22	-	-	208/5
55					208/5		-	-	208/5
	99-26 ಪೊ-15 104-01		95-03 ಪೊ-23 98-26		94-33 ಪೊ-33 98-26	4-01	17-20-08 ಪೊ-07-00 17-27-08		95-03 ಪೊ-23 98-26
	238-21-00 ಪೊ-23-00 243-04-00		225-37-00 ಪೊ-31-00 229-28-00		221-25-08 ಪೊ-41-00 225-26-08	4-01	17-20-08 ಪೊ-07-00 17-27-08		221-26-08 ಪೊ-31-00 224-17-08

ಜೆ.ಎಂ.ಪಿ. ಪ್ರಕಾರ ಕಲಂ. 19(2)ರ ಅಧಿಸೂಚನೆಯಲ್ಲಿ ಒಳಗೊಂಡ ಒಟ್ಟು 224-17-08 ಎ-ಗುಂ. ಕ್ಷೇತ್ರವನ್ನು ಐತೀಷಿನಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ.

7) ಅನುಮೋದಿತಗೊಂಡ ಕಲಂ 19(2) ಅಧಿಸೂಚನೆ:

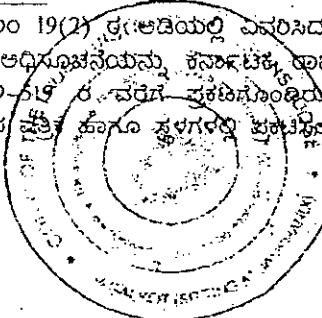
ಕರ್ನಾಟಕ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ 19(2) ರ ಅಡಿಯಲ್ಲಿ ಎವರೆಸಿದಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ. 19(2) ರ ಅಡಿಯಲ್ಲಿ ಅನುಮೋದಿತಗೊಂಡ ಅಂತಿಮ ಅಧಿಸೂಚನೆಯನ್ನು ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರದಲ್ಲಿ ದಿನಾಂಕ:20-6-2016 ರಂದು ಭಾಗ-6 (ಬಿ) ರ ಪ್ರಕಾರ ಪುಟ ಸಂ:509-619 ರ ಮೇಲೆ ಪ್ರಕಟಿಸಲಾಗಿರುತ್ತದೆ. ಕಲಂ. 19(2)ರ ಅಧಿಸೂಚನೆಯನ್ನು ಪ್ರಚುರಪಡಿಸುವ ಕುರಿತಂತೆ ಈ ಕೆಳಗೆ ಕಾಣಿಸಿದ ಪತ್ರಿಕೆ ಹಾಗೂ ಸ್ಥಳಗಳಲ್ಲಿ ಪ್ರಕಟಿಸಲಾಗಿರುತ್ತದೆ.

- 1) ಕರ್ನಾಟಕ ರಾಜ್ಯ ಪತ್ರ
- 2) ಸಮಾಜವೀರ ಕನ್ನಡ ದಿನಪತ್ರಿಕೆ
- 3) ನಾಗರೀಕ ಕನ್ನಡ ದಿನಪತ್ರಿಕೆ

ದಿನಾಂಕ :20-06-2016

ದಿನಾಂಕ :02-07-2016

ದಿನಾಂಕ :01-07-2016



- 4) ಗ್ರಾಮಲೆಕ್ಕಾಧಿಕಾರಿ, ಝುಂಜರಕೋಪ್ಪ.
- 5) ಗ್ರಾಮ ಲೆಕ್ಕಾಧಿಕಾರಿ ವಜ್ರವರಮಟ್ಟಿ
- 5) ತಹಶೀಲ್ದಾರ್ ಕಾರ್ಯಾಲಯ ಮುಧೋಳ.
- 6) ಜಿಲ್ಲಾಧಿಕಾರಿಗಳ ಕಾರ್ಯಾಲಯ, ಬಾಗಲಕೋಟೆ.

ದಿನಾಂಕ : 03-09-2016

ದಿನಾಂಕ : 08-09-2016

ದಿನಾಂಕ : 20-08-2016

ದಿನಾಂಕ :

ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ 21(1)(2) ರಡಿಯಲ್ಲಿ ಸಂಬಂಧಿಸಿದ ಭೂಮಾಲೀಕರಿಗೆ ನೋಟೀಸುಗಳನ್ನು ದಿನಾಂಕ: 3-09-2016 ಹಾಗೂ 8-9-2016 ರಂದು ಜಾರಿ ಮಾಡಿರುತ್ತಾರೆ.

8) ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ ಕಲಂ 21(1)(2) ರ ಅಡಿಯಲ್ಲಿ ಪ್ರಕಟಣೆ:

ಅಂತಿಮ ಅಧಿಸೂಚನೆ ರಾಜ್ಯ ಪತ್ರದಲ್ಲಿ ಪ್ರಕಟವಾದಂತೆ ಸಾರ್ವಜನಿಕ ತಿಳುವಳಿಕೆ ಪತ್ರವನ್ನು ಜಮೀನಿನ ಹಿತಾಸಕ್ತಿಯುಳ್ಳವರಿಗೆ 03-09-2016 ಹಾಗೂ ದಿನಾಂಕ: 8-9-2016 ರಂದು ಜಾರಿ ಮಾಡಿ ದಿನಾಂಕ: 09-11-2016 ರೊಳಗಾಗಿ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸಲು ಸೂಚಿಸಲಾಗಿತ್ತು. ಅದರಂತೆ ಈ ಕೆಳಗಿನಂತೆ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸಿದ ವಿವರ ಈ ಕೆಳಗಿನಂತೆ ಇರುತ್ತದೆ.

ಅ. ಸಂ	ಗ್ರಾಮದ ಹೆಸರು	ರ.ಸ.ಸಂ.	ಆರ್ಜಿ/ಪಿ.ಎಸ್. ಹಾಗೂ ದಿನಾಂಕ.	21(1)(2)ರ ನೋಟೀಸು ಸಂಬಂಧಿಸಿದ ದಿನಾಂಕ.	21(1)(2)ರ ನೋಟೀಸು ವಜ್ರವರಮಟ್ಟಿ ದಿನಾಂಕ.	ಗ್ರಾಮ ಲೆಕ್ಕಾಧಿಕಾರಿ ಜಾರಿ ಮಾಡಿದ ದಿನಾಂಕ.	ಆಕ್ಷೇಪಣೆ ವಿವರ.
1	ಝುಂಜರಕೋಪ್ಪ	139/4	ದೊಡ್ಡಪ್ಪ ಮಲ್ಲಪ್ಪ ಇಂಗಳ (ಇವರ ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:6-6-2015)	5-8-2016	11-8-2016	-	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
2	ಝುಂಜರಕೋಪ್ಪ	136/10	ರೋಷ್ಣಿ ದೊಡ್ಡ ಗಣ (ರಾಜು) ಇವರ ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:6-6-2015	5-8-2016	-	8-9-2016	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
3	ಝುಂಜರಕೋಪ್ಪ	138/8	ಶಿವಪ್ಪ ದೊಡ್ಡ ಗಣ (ರಾಜು) ಇವರ ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:6-6-2015	5-8-2016	10-8-2016	-	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
4	ಝುಂಜರಕೋಪ್ಪ	139/3	ಬರವಪ್ಪ ತಂ. ಯಲ್ಲಪ್ಪ ಅರೇರ ಉಳ್ಳೆ ಸತ್ಯಪ್ಪ ದಿ:16-6-2015	5-8-2016	-	8-9-2016	ಇವರೇ ರೀತಿ ಬರವಪ್ಪ ಪರವಾಗಿ ಧನ ಹಾಗೂ ಸೌಲಭ್ಯಗಳನ್ನು ಕೊಡಲು ವಿಶೇಷವಾಗಿರುತ್ತದೆ.
5	ಝುಂಜರಕೋಪ್ಪ	142/1ಎ/10/1	ಶ್ರೀಕಾಂತ್ ಮುಖ್ಯಾಧೀಶ್ವರ ಅವರು ಇವರ ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:16-6-2015	5-8-2016	-	8-9-2016	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
6	ಝುಂಜರಕೋಪ್ಪ	142/4	ಕುಶಲ ಬಸಪ್ಪ ಅವರು ಇವರ ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:16-6-2015	5-8-2016	10-8-2016	-	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
7	ಝುಂಜರಕೋಪ್ಪ	142/3	ಸುಬ್ಬಣ್ಣ ಗಂ. ಕುಮಾರ ಅವರು ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:16-6-2015	5-8-2016	-	8-9-2016	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
8	ಝುಂಜರಕೋಪ್ಪ	142/3ಎ	ಮಲ್ಲಪ್ಪ ಗಂ. ಬಿಟ್ಟಪ್ಪ ಮೊಂಡಿ. ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:16-6-2015	5-8-2016	10-8-2016	-	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
9	ಝುಂಜರಕೋಪ್ಪ	135/7ಎ/1	ಅಮೋಗುಬ ತಂ. ಅಣ್ಣಾಪ್ಪಾಲು ಮೊಂಡಿ. ಇವರ ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:16-6-2015	5-8-2016	-	8-9-2016	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
10	ಝುಂಜರಕೋಪ್ಪ	136/1ಎ/1/10	ಗಿರೀಶ್ವರ ತಂ. ಸತ್ಯಪ್ಪ ಗಣ ಇವರ ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:16-6-2015	5-8-2016	-	8-9-2016	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.
11	ಝುಂಜರಕೋಪ್ಪ	131/4	ಗಿರೀಶ್ವರ ತಂ. ಪವನಪ್ಪಾ ಇವರ ಪರವಾಗಿ ಎ.ಬಿ.ಬಳ್ಳಾರಿ ವಕೀಲರು. ದಿ:16-6-2015	5-8-2016	-	8-9-2016	ಸದರಿ ಜಮೀನು ಜವನವಾಗಿ ಯೋಗ್ಯ ಜಮೀನಿಯ ಅದರ ದರ ಪ್ರತಿ 10,00,00,000/- ಬೆಲೆ ಕೇಳಿರುತ್ತಾರೆ. ಹಾಗೂ ಬೆಳೆಗಳ ಪರಿಹಾರ ಧನ ರೂ. 57,00,000/- ಆಗಿರುತ್ತದೆ.

1.5 (23)

[illegible]

[illegible]

[illegible]

200

[illegible]

15	ವಜ್ರಮುಟ್ಟು	206/4	ಮೇಲೂರು: 0:12-9-2016 ಮಹಾರಾಜ ಹೊಳೆಯಲ್ಲಿ ಮರವಿ ಇವರ ಪರವಾಗಿ 1) ರ.ವಿ.ವಾಟೇಲ 2) ಎ.ಡಿ. ಸಾವುಕಾರ 3) ಪಿ.ಎಸ್.ಉತ್ತರ ಮೇಲೂರು: 0:20-9-2016	5-8-2016	-	8-9-2016	ಸದರಿ ಜಮೀನು ಜವಮಾನಿಗೆ ಯೋಗ್ಯ ಜಮೀನಿನಿಂದ ಅದರ ದರ ಪ್ರ.ಎ. 1,00,00,000/- ಭೆರೆ ಕೇಳಿಸುವುದು. ಹಾಗೂ ತೋಟಗಾರಿಕೆ-ಹಾಗೂ-ಅರಣ್ಯ-ಗಿಡುಗಲ-ಪರಿಹಾರ ಧನ ರೂ. 50,00,000/- ಆಗಿರುತ್ತದೆ.
16	ವಜ್ರಮುಟ್ಟು	206/28	ಗೋಕರ್ಣಯ್ಯ ರಾಜಯ್ಯ ಮರವಿ. ಇವರ ಪರವಾಗಿ 1) ರ.ವಿ.ವಾಟೇಲ 2) ಎ.ಡಿ. ಸಾವುಕಾರ 3) ಪಿ.ಎಸ್.ಉತ್ತರ ಮೇಲೂರು: 0:12-9-2016	5-8-2016	-	8-9-2016	ಸದರಿ ಜಮೀನು ಜವಮಾನಿಗೆ ಯೋಗ್ಯ ಜಮೀನಿನಿಂದ ಅದರ ದರ ಪ್ರ.ಎ. 1,00,00,000/- ಭೆರೆ ಕೇಳಿಸುವುದು. ಹಾಗೂ ತೋಟಗಾರಿಕೆ-ಹಾಗೂ-ಅರಣ್ಯ-ಗಿಡುಗಲ-ಪರಿಹಾರ ಧನ ರೂ. 50,00,000/- ಆಗಿರುತ್ತದೆ.

ಮೇಲ್ಕಾಣಿಸಿದಂತೆ ಅರ್ಜಿದಾರರು ಅರ್ಜಿ ಸಲ್ಲಿಸಿದ ಆರ್ಜಿಗಳಲ್ಲಿಯ ಎಲ್ಲ ಅಂಶಗಳ ಬಗ್ಗೆ ಪರಿಶೀಲಿಸಲಾಗಿ, ಜಮೀನುಗಳ ಮೇಲೆ ತೋರಿಸಿದಂತೆ, ಪುನರ್ವಸತಿಗಾಗಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳುತ್ತಿದ್ದ ತಮ್ಮ ತಮ್ಮ ಜಮೀನುಗಳು ತಾಲೂಕು ಕೇಂದ್ರಕ್ಕೆ ವಾಣಿಜ್ಯ ಅಂಗಡಗಳು ಹಾಗೂ ಭೂ ಪರಿವರ್ತಿತ ಸಾಮರ್ಥ್ಯವುಳ್ಳ ಪ್ರದೇಶಗಳಾಗಿದ್ದು, ಅದರಂತೆ ಪರಿಹಾರ ಧನವನ್ನು ನೀಡಲು ಏರ್ಪಡಿಸಿಕೊಂಡಿರುತ್ತಾರೆ. ಹಾಗೂ ಕೆಲವೊಂದು ಆರ್ಜಿಗಳು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳುವ ಜಮೀನುಗಳಿಗೆ ಪ್ರತಿ ಚದರ ಫೂಟ್ ಗೆ ರೂ. 2500/- ಹಾಗೂ ರೂ. 3500/- ರಂತೆ ದರ ನಿಗದಿ ಪಡಿಸಲು ಕೇಳಿಕೊಂಡಿರುವರು. ಆದರೆ ಬಿಸ್ ಶೇಡಿಯಾದ ಬಗ್ಗೆ ಯಾವುದೇ ಸಲ್ಲಿಸಿರುವುದಿಲ್ಲ. ಹಾಗೂ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳುವ ಜಮೀನುಗಳು ಬಿಸ್ ಶೇಡಿಯಾದ ಜಮೀನುಗಳು ಇರುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಪ್ರತಿ ಚದರ ಫೂಟ್‌ಗೆ ಪರಿಹಾರ ಧನ ನಿಗದಿ ಪಡಿಸಲು ಬರುವುದಿಲ್ಲ.

ಮೇಲ್ಕಂಡ ಎಲ್ಲ ಜಮೀನುಗಳು ಕೃಷಿ ಜಮೀನುಗಳಾಗದೆ ಕೃಷಿಯೇತರ ಜಮೀನುಗಳೆಂದು ಸ್ಪಷ್ಟಪಡಿಸಿದುದರಿಂದ ಬಿಸ್ ಶೇಡಿಯಾಗಿರುವುದಿಲ್ಲ. ತಮ್ಮ ಹತ್ತು ಜಾಗಗಳಲ್ಲಿ ತೋರಿಸಿದ ಅಂಶಗಳಿಗೆ ಸಮರ್ಪಕವಾಗಿರುವಂತೆ ಅಧೀಕೃತ ದಾಖಲೆಗಳನ್ನು ಅರ್ಜಿ ಜೊತೆಗೆ ಲಗತ್ತಿಸಿರುವುದಿಲ್ಲ. ಹಾಗೂ ಅರ್ಜಿದಾರರು ಸಲ್ಲಿಸಿದ ಬೇಡಿಕೆಗಳು ಅತೀಶಯೋಕ್ತವಾಗಿರುವುದರಿಂದ ಅವುಗಳನ್ನು ಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳಲು ಕಾನೂನಿನಲ್ಲಿ ಅವಕಾಶವಿರುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಅರ್ಜಿದಾರರ ಬೇಡಿಕೆಗಳನ್ನು ತಳ್ಳಿ ಹಾಕಿ ಸದರಿ ರಿ.ಸ.ನಂ. ಜಮೀನಿನ ಹಾಗೂ ಜಮೀನುಗಳಲ್ಲಿರುವ ಭೌತಿಕ ಆಸ್ತಿಗಳ ಕುರಿತು ಸಂಯುಕ್ತ ಮೋಜಣಿ ಪತ್ರಿಕೆಯಲ್ಲಿ ತೋರಿಸಿದ ಅಂಶಗಳನ್ವಯ ಹಾಗೂ ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಕಂಡು ಬಂದಂತೆ ಅಂಶಗಳನ್ವಯ ಜಮೀನಿನ ಮಾರಾಟದ ಮಾರುಕಟ್ಟೆ ಬೆಲೆ/ಜಮೀನಿನ ಮಾರಾಟದ ಮಾರ್ಗಸೂಚಿ ದರದನ್ವಯ ಜಮೀನಿಗೆ ಪರಿಹಾರ ನಿಗದಿ ಪಡಿಸಲಾಗಿದೆ. ಹಾಗೂ ಪರಿಹಾರ ಧನಕ್ಕೆ ಅರ್ಹರಿರುವ ಜಮೀನಿನಲ್ಲಿರುವ ಭೌತಿಕ ಆಸ್ತಿಗಳಿಗೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 2013 ರನ್ವಯ ಪರಿಹಾರ ಧನ ನಿಗದಿ ಪಡಿಸಿ ಐತೀರ್ಮ ರಚಿಸಲಾಗಿದೆ.

9) ಕಲಂ 23 ರನ್ವಯ ಸ್ಥಳ ತನಿಖೆ ಮತ್ತು ಭೂಸ್ವಾಧೀನ ತೀರ್ಮಾನ:

ಭೂಸ್ವಾಧೀನಗೊಳ್ಳುವ ಉದ್ದೇಶ ಕುರಿತು ಭೂಸ್ವಾಧೀನಕ್ಕೆ ಒಳಪಡುವ ಜಮೀನುಗಳಿಗೆ ದಿನಾಂಕ 4-11-2016 ರಂದು ಧುಂಜರಕೊಪ್ಪ ಗ್ರಾಮದ ಜಮೀನುಗಳಿಗೆ ದಿನಾಂಕ: 18-10-2016 ರಂದು ಹಾಗೂ ವಜ್ರಮುಟ್ಟು ಗ್ರಾಮದ ಜಮೀನುಗಳಿಗೆ ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಎಲ್ಲಾ ಜಮೀನುಗಳ ಕ್ಷೇತ್ರ ಜಿ.ಎಂ.ಸಿ. ಹಾಗೂ ಕಲಂ 19(2) ರಲ್ಲಿ ತೋರಿಸಿದಷ್ಟೇ ಇದ್ದು, ಸರಿ ಇರುವುದನ್ನು ಖಚಿತಪಡಿಸಿಕೊಂಡಿದ್ದೇನೆ ಮತ್ತು ಸ್ಥಳ ತನಿಖೆಯ ಕಾಲಕ್ಕೆ ಕಂಡಂತೆ ವಿವರ ಈ ಕೆಳಗಿನಂತೆ ಇದ್ದು, ಪ್ರತಿ ಸರ್ವೆ ನಂಬರುಗಳ ಬಗ್ಗೆ ವಿವರವಾಗಿ ಚರ್ಚಿಸಲಾಗಿದೆ.

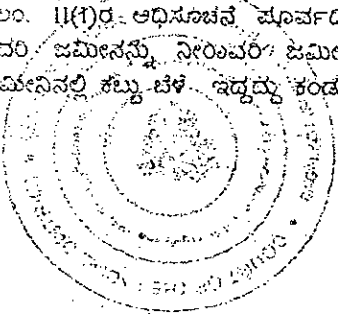
ಗ್ರಾಮ: ಧುಂಜರಕೊಪ್ಪ

1) ರಿ.ಸ.ನಂ. 135/4

ಕ್ಷೇತ್ರ: 8-16 ಎ-ಗುಂ.

ಈ ಜಮೀನು ಕಲಂ. 19(1)ರ ಪ್ರಕಾರ ಮಲಿಕಸಾಹೇಬ ಹೊಸವಾಡ ರಸೂಲಸಾಹೇಬ. ಇವರ ಮಾಲ್ಟಿ ಜಮೀನು ಇರುತ್ತದೆ. ಸದರಿ ಜಮೀನು ಸ.ನಂ.ದ ಒಟ್ಟು ಕ್ಷೇತ್ರ: 8-16 ಎ-ಗುಂ ಹ.ರ. ಪ್ರಕಾರ ಇರುತ್ತದೆ. ಇದು ಈ ಹಿಂದೆ ಯಾವುದೇ ಉದ್ದೇಶಕ್ಕಾಗಿ ಯಾವುದೇ ಕ್ಷೇತ್ರ ಭೂಸ್ವಾಧೀನಗೊಂಡಿರುವುದಿಲ್ಲ.

ಪ್ರಸ್ತುತ ಜಮೀನು ಕಲಂ. 11(1) ರಲ್ಲಿ ಕಮ್ಪ್ ಜಿ.ಎಂ.ಸಿ.ಯಲ್ಲಿ ಖುಷ್ಕಿ ಕಲಂ. 19(1)ರಲ್ಲಿ ಖುಷ್ಕಿ ಮತ್ತು ಹ.ರ.ದಲ್ಲಿ ಕೆಂಪು ಅಂತಾ ನಮೂದು ಇರುತ್ತದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಪರಿಶೀಲಿಸಲಾಗಿ ನೀರಾವರಿ ಮಾಡಿಕೊಳ್ಳುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿದೆ. ಭೂಮಾಲೀಕರ ಹೆಸರಿನಲ್ಲಿ ಅರ್.ಆರ್. ನಂ. ಎಮ್.ಡಿ.ಎಲ್.ಆರ್.ಎ. 17305 ರ ಪ್ರಕಾರ 7.5 HP ಮೋಟಾರಿಗೆ ದಿನಾಂಕ: 4-4-2002 ರಂದು ವಿದ್ಯುತ್ ಸಂಪರ್ಕ ಪಡೆದುಕೊಂಡಿದ್ದು, ಸದರಿ ಕರೆಂಟ್ ಮೋಟಾರನ್ನು ನದಿಯ ದಂಡಗೆ ಕೂಡಿಸಿ ಅಲ್ಲಿಂದ ವೈಪ ಲೈನ್ ಬಿ ಜಾಯಿಂಟ್ ಮೂಲಕ ನೀರಾವರಿ ಮಾಡಿಕೊಳ್ಳುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿದೆ. ಸ್ಥಾನಿಕ ಚೌಕಾಶಿ ಮಾಡಲಾಗಿ ಕಲಂ. 11(1)ರ ಅಧಿಸೂಚನೆ ಪೂರ್ವದಿಂದಲೂ ನೀರಾವರಿಯ ಬೆಳೆ ಬೆಳೆಯುತ್ತಿರುವುದನ್ನು ಗೃಹಪಡಿಸಿಕೊಳ್ಳಲಾಗಿದೆ. ಕಾರಣ ಸದರಿ ಜಮೀನನ್ನು ನೀರಾವರಿ ಜಮೀನಿನಿಂದ ಪರಿಗಣಿಸಿ, ನೀರಾವರಿ ದರ ನಿಗದಿಪಡಿಸಿದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಕಬ್ಬು ಬೆಳೆ ಇದ್ದದ್ದು ಕಂಡು ಬಂದಿದೆ.



Bol

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ಜೆಎಂಸಿ ಹಾಗೂ 19(1) ಪ್ರಕಾರ ಸದರ ಜಮೀನಿನ ಭೂಸ್ವಾಧೀನಗೊಳ್ಳುವ ಕ್ಷೇತ್ರದಲ್ಲಿ ಯಾವುದೇ ಫಲ ಕೊಡುವ ವ್ಯಕ್ತಿಗಳು, ದಾವಿ ಮತ್ತು ಕೊಳವೆ ದಾವೆಗಳು, ಕಟ್ಟಡಗಳು ಇರುವುದಿಲ್ಲ.

ಸದರಿ ಜಮೀನಿನ ಮೇಲೆ ಒಕೆಒಎಸ್.ವ.ಮೊದೂ.30000/- ಇರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ. ಇದನ್ನು ಹಂಚಿಕೆ ಪತ್ರಿಕೆಯಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ.

83) ರಿ.ಸ.ನಂ. 206/2ಬ

ಕ್ಷೇತ್ರ:1-24+ಅಪಿಕೆ0=04=1-28ಎ-ಗುಂ.

ಈ ಜಮೀನು ಕಲಂ. 19(1)ರ ಪ್ರಕಾರ ಶ್ರೀ 1)ಹೊಳಬಸಯ್ಯ 2)ಗೋಕಾರಯ್ಯ ಮಠಪತಿ ರಾಜಯ್ಯ ಇವರ ಮಾಲ್ಟಿ ಜಮೀನು ಇರುತ್ತದೆ. ಸದರಿ ಜಮೀನ ಸ.ನಂ.ದ ಒಟ್ಟು ಕ್ಷೇತ್ರ: 1-28 ಎ-ಗುಂ ಹ.ರ. ಪ್ರಕಾರ ಇರುತ್ತದೆ. ಇದು ಈ ಹಿಂದೆ ಯಾವುದೇ ಉದ್ದೇಶಕ್ಕಾಗಿ ಯಾವುದೇ ಕ್ಷೇತ್ರ ಭೂಸ್ವಾಧೀನಗೊಂಡಿರುವುದಿಲ್ಲ.

ಪ್ರಸ್ತುತ ಜಮೀನು ಕಲಂ. 11(1) ರಲ್ಲಿ ಕೆಂಪು & ಕಮ್ಮ ಜೆ.ಎಂ.ಸಿ.ಯಲ್ಲಿ ಮಿಷ್ಣು ಕಲಂ. 19(1)ರಲ್ಲಿ ಮಿಷ್ಣು ಮತ್ತು ಹ.ರ.ದಲ್ಲಿ ಕೆಂಪು & ಕಮ್ಮ ಅಂತಾ ನಮೂದು ಇರುತ್ತದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಪರಿಶೀಲಿಸಲಾಗಿ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ನೀರಾವರಿ ಮಾಡುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿರುವುದಿಲ್ಲ. ಸದರಿ ಜಮೀನಿನವು ಒಣಬೇಸಾಯ ಜಮೀನು ಇರುವುದರಿಂದ ಇದನ್ನು ಮಿಷ್ಣು ಜಮೀನ ಎಂದು ಪರಿಗಣಿಸಿ ಮಿಷ್ಣು ದರ ನಿಗದಿಪಡಿಸಿದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ತೊಗರಿ ಬೆಳೆ ಇದ್ದದ್ದು ಕಂಡು ಬಂದಿದೆ.

ಸದರಿ ಭೂಸ್ವಾಧೀನವಾಗುವ ಕ್ಷೇತ್ರದಲ್ಲಿ -ಅಪಿಕೆ0-04 ಖರಾಬು ಇರುವುದು ಆಕಾರಬಂದದಿಂದ ಕಂಡು ಬರುತ್ತದೆ. ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂ:ಕಂ.ಇ.137/ಎಕ್ಸೂಡಬ್ಲ್ಯೂ/2001, ದಿನಾಂಕ:12-05-2004 ರಲ್ಲಿ ಆ ಖರಾಬು ಜಮೀನುಗಳನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರವು ಮಂಜೂರು ಮಾಡಿದಲ್ಲಿ ಅಂತ ಖರಾಬು ಜಮೀನುಗಳಿಗೆ ಮಂಜೂರುದಾರರು ಹಿಡುವಳಿದಾರರಾಗುತ್ತಾರೆ. ಇಂತಹ ಮಂಜೂರಾತಿಯು ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿಪಡಿಸಲಾದ ಕಲಂ 11(1) ರ ಅಧೀನಾಚನೆಯಲ್ಲಿನ ದಿನಾಂಕಕ್ಕೆ ಮುನ್ನ ಮಂಜೂರಾಗಿದ್ದಲ್ಲಿ ಅಂತಹ ಮಂಜೂರಾದ ಆ ಖರಾಬು ಜಮೀನನ್ನು ಹಿಡುವಳಿದಾರರ ಜಮೀನ ಎಂದು ಪರಿಗಣಿಸಿ ಪರಿಣಾಮ ನೀಡಬೇಕಾಗುತ್ತದೆ ಎಂದು ಸ್ಪಷ್ಟಪಡಿಸಿದೆ. ಆದರೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಒಳಗೊಂಡಿರುವ ಫೋಟ್ ಖರಾಬು ಜಮೀನನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರದಿಂದ ಮಂಜೂರಿಸಿಕೊಂಡ ಬಗ್ಗೆ ದಾವಿಲೆ ಇಲ್ಲದ ಕಾರಣ ಆ ಖರಾಬು ಜಮೀನಕ್ಕೆ ಯಾವುದೇ ಪರಿಹಾರ ಧನದ ಬೆಲೆ ನಿಗದಿ ಪಡಿಸಿರುವುದಿಲ್ಲ.

ಚಾಲ್ತಿ ಹರೆ ಹಾಗೂ ಅರ್ಜಿದಾರರ ಮನವಿಯನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ ಶ್ರೀ 1)ಹೊಳಬಸಯ್ಯ 2)ಗೋಕಾರಯ್ಯ ಮಠಪತಿ ರಾಜಯ್ಯ ಅಂತಾ 11(1) ಹಾಗೂ 19(1) ರಲ್ಲಿ ದಾವಿಲಿದ್ದು, ದಿನಾಂಕ: 9-10-2015 ರಂದು ಡ.ನಂ.3 ರನ್ವಯ ವಾಟ್ಸಿ ಮಾಡಿಕೊಂಡು ಅದರಲ್ಲಿ ತಲಾ ಪ್ರತಿಯೊಬ್ಬರಿಗೂ 0-32+ಅಪಿಕೆ0-02=0-34 ಗುಂಟೆಯಂತೆ ವಾಟ್ಸಿ ಮಾಡಿಕೊಂಡು, ಅದರಂತೆ ಹ.ರ.ದಲ್ಲಿ ಹೆಸರು ಬದಲಾವಣೆ ಮಾಡಿಕೊಂಡಿದ್ದು ಇರುತ್ತದೆ. ತದನಂತರ ಶ್ರೀ ಗೋಕಾರಯ್ಯ ರಾಜಯ್ಯ ಮಠಪತಿ ಇವರು ತಮ್ಮ ಪಾಲಿಗೆ ಬಂದ ಜಮೀನಿನನ್ನು ಅವರ ಹೆಂಡತಿಯಾದ ಮಾಟೇವಿ ಮಠಪತಿ ಗಂ. ಗೋಕಾರಯ್ಯ ಇವರ ಹೆಸರಿಗೆ ದಿನಾಂಕ:16-12-2015 ರಂದು ಡ.ನಂ. 8 ರನ್ವಯ ಹಕ್ಕು ಬಿಟ್ಟು ಕೊಟ್ಟಿದ್ದು, ಅದರಂತೆ ಹ.ರ.ದಲ್ಲಿ ಹೆಸರು ದಾವಿಲಾಗಿದ್ದು ಈಗಿನ ಚಾಲ್ತಿ ಉತ್ತರದಂತೆ ಪರಿಹಾರ ಧನ ನೀಡಲು ವಿನಂತಿಸಿಕೊಂಡಿದ್ದು ಇರುತ್ತದೆ. ಸದರಿ ವಾಟ್ಸಿ ಹಾಗೂ ಹಕ್ಕು ಬಿಟ್ಟು ಕೊಟ್ಟ ಪ್ರತಿಯಗಳು ಕಲಂ 11(1) ರ ಅಧೀನಾಚನೆಯ ದಿನಾಂಕದ ನಂತರವಾಗಿದ್ದು, ಕಲಂ 11(4) ರನ್ವಯ ಇದನ್ನು ಪರಿಗಣಿಸಲು ಅವಕಾಶ ಇರುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಕಲಂ 19(1) ರಲ್ಲಿದ್ದ ದಾವಿಲೆಗಳನ್ವಯ ಪರಿಹಾರ ಧನ ನೀಡಲು ಆದೇಶಿಸಿದೆ.

ಜೆ.ಎಂ.ಸಿ. ಮತ್ತು ಕಲಂ 19(1)ರ ಪ್ರಕಾರ 1 ಬನ್ನಿ ಗಿಡ ನಮೂದಿದ್ದು ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ 1 ಬನ್ನಿ ಗಿಡ ಮಾತ್ರ ಇರುತ್ತದೆ. ಸದರಿ ಗಿಡ ಬಗ್ಗೆ ವಲಯ ಅರಣ್ಯ ಅಧಿಕಾರಿಗಳು, ಮುಧೋಳರವರು ಮಾಲ್ಟಿಮಾಪನ ಮಾಡಿದ್ದು, ರೂ.315/- ಮಾಲ್ಟಿ ಮಾಪನವನ್ನು ಪರಿಗಣಿಸಿ ಐತೀರ್ಖಿಗೆ ಅಳವಡಿಸಿದೆ. ಗಿಡ ಆವರಿಸಿದ ಕ್ಷೇತ್ರ ಬಾರದೇ ಇರುವುದರಿಂದ ಗಿಡದ ಆವರಿಸಿದ ಕ್ಷೇತ್ರವನ್ನು ಕಡಿತಗೊಳಿಸಿರುವುದಿಲ್ಲ.

ಜೆಎಂಸಿ ಹಾಗೂ 19(1) ಪ್ರಕಾರ ಸದರ ಜಮೀನಿನ ಭೂಸ್ವಾಧೀನಗೊಳ್ಳುವ ಕ್ಷೇತ್ರದಲ್ಲಿ ಯಾವುದೇ ಫಲ ಕೊಡುವ ವ್ಯಕ್ತಿಗಳು, ಕಟ್ಟಡಗಳು, ದಾವಿ ಮತ್ತು ಕೊಳವೆ ದಾವೆಗಳು ಇರುವುದಿಲ್ಲ.

ಸದರಿ ಜಮೀನಿನ ಮೇಲೆ ಒಕೆಒಎಸ್.ವ.ಮೊದೂ.11000/- ಇರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ. ಇದನ್ನು ಹಂಚಿಕೆ ಪತ್ರಿಕೆಯಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ.

84) ರಿ.ಸ.ನಂ. 206/2ಬ

ಕ್ಷೇತ್ರ:1-23+ಅಪಿಕೆ0-04=1-27ಎ-ಗುಂ.

ಈ ಜಮೀನು ಕಲಂ. 19(1)ರ ಪ್ರಕಾರ ಶ್ರೀ ಶ್ರೀಶೈಲ ಮಡಿವಾಳ ಕೆಂಚಪ್ಪ ಇವರ ಮಾಲ್ಟಿ ಜಮೀನು ಇರುತ್ತದೆ. ಸದರಿ ಜಮೀನ ಸ.ನಂ.ದ ಒಟ್ಟು ಕ್ಷೇತ್ರ: 1-27 ಎ-ಗುಂ ಹ.ರ. ಪ್ರಕಾರ ಇರುತ್ತದೆ. ಇದು ಈ ಹಿಂದೆ ಯಾವುದೇ ಉದ್ದೇಶಕ್ಕಾಗಿ ಯಾವುದೇ ಕ್ಷೇತ್ರ ಭೂಸ್ವಾಧೀನಗೊಂಡಿರುವುದಿಲ್ಲ.

ಪ್ರಸ್ತುತ ಜಮೀನು ಕಲಂ. 11(1) ರಲ್ಲಿ ಕೆಂಪು & ಕಮ್ಮ ಜೆ.ಎಂ.ಸಿ.ಯಲ್ಲಿ ಮಿಷ್ಣು ಕಲಂ. 19(1)ರಲ್ಲಿ ಮಿಷ್ಣು ಮತ್ತು ಹ.ರ.ದಲ್ಲಿ ಕೆಂಪು & ಕಮ್ಮ ಅಂತಾ ನಮೂದು ಇರುತ್ತದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಪರಿಶೀಲಿಸಲಾಗಿ ರಿ.ಸ.ನಂ. 206/3 ರಲ್ಲಿಯ ಕೊಳವೆ ಧಾವಿಯಿಂದ ಪೈಪ್ ಲೈನ್ ಟಿ ಜಾಯಿಂಟ್ ನೆಲಗಾಲುವೆ ಮಾಡಿಕೊಳ್ಳುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿದೆ. ಸದರಿ ರಿ.ಸ.ನಂ. 206/3 ರ ಮೂಲ ಮಾಲೀಕರಾದ ಶ್ರೀ ಸಿಕ್ಕಣ್ಣ ಕೆಂಚಪ್ಪ ಅಮೋಘ ಇವರ ಹೆಸರಿನಲ್ಲಿ ವಜ್ರಮಟ್ಟಿ ಗ್ರಾಮದ ಆರ್.ಆರ್. ನಂ. ಎ.ಜಿ.ಐ.ಬಿ. 90 ಪ್ರಕಾರ 10 ಎಚ್.ಪಿ. ಕರಂಟ್ ಮೋಟಾರಿಗೆ ದಿನಾಂಕ: 30-12-2006 ರಂದು ವಿದ್ಯುತ್ ಸಂಪರ್ಕ ಪಡೆದುಕೊಂಡಿದ್ದು ಇದೆ. ಸದರಿ ರಿ.ಸ.ನಂ. 206/3 ರ ಜಮೀನಿಗೆ ಸದರಿ ಕೊಳವೆ ಧಾವಿಯಿಂದ ಟಿ ಜಾಯಿಂಟ್ ನೆಲಗಾಲುವೆ ಮೂಲಕ ನೀರಾವರಿ ಮಾಡಿಕೊಳ್ಳುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ. ಸದರಿ ವಿದ್ಯುತ್ ಸಂಪರ್ಕ ಪಡೆದುಕೊಂಡವರು ಮೃತರಾಗಿದ್ದು,

ಶಿಕ್ಷಣ ಬೋರ್ಡ್ ಸಾಧಾರಣ

Boe

29

ಜೆಎಂಸಿ ಹಾಗೂ 19(1) ಪ್ರಕಾರ ಸದರ ಜಮೀನಿನ ಭೂಸ್ವಾಧೀನಗೊಳ್ಳುವ ಕ್ಷೇತ್ರದಲ್ಲಿ ಯಾವುದೇ ಫಲ ಕೊಡುವ ವೃಕ್ಷಗಳು, ಬಾವಿ ಮತ್ತು ಕೊಳವೆ ಬಾವಿಗಳು, ಕಟ್ಟಡಗಳು ಇರುವುದಿಲ್ಲ.

ಸದರ ಜಮೀನಿನ ಮೇಲೆ ಪಿಕೆಪಿಎಸ್.ವ.ಬೊರೂ.30000/- ಇರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ. ಇದನ್ನು ಹಂಚಿಕೆ ಪತ್ರಿಕೆಯಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ.

83) ರಿ.ಸ.ನಂ. 206/20

ಕ್ಷೇತ್ರ:1-24+ಅಪಿಕೆ0-04=1-28ಎ-ಗುಂ.

ಈ ಜಮೀನು ಕಲಂ. 19(1)ರ ಪ್ರಕಾರ ಶ್ರೀ 1)ಹೊಳಬಸಯ್ಯ 2)ಗೋಕಾರಯ್ಯ ಮಠಪತಿ ರಾಜಯ್ಯ ಇವರ ಮಾಲ್ಟಿ ಜಮೀನು ಇರುತ್ತದೆ. ಸದರಿ ಜಮೀನ ಸ.ನಂ.ದ ಒಟ್ಟು ಕ್ಷೇತ್ರ: 1-28 ಎ-ಗುಂ ಹ.ರ. ಪ್ರಕಾರ ಇರುತ್ತದೆ. ಇದು ಈ ಹಿಂದೆ ಯಾವುದೇ ಉದ್ದೇಶಕ್ಕಾಗಿ ಯಾವುದೇ ಕ್ಷೇತ್ರ ಭೂಸ್ವಾಧೀನಗೊಂಡಿರುವುದಿಲ್ಲ.

ಪ್ರಸ್ತುತ ಜಮೀನು ಕಲಂ. 11(1) ರಲ್ಲಿ ಕೆಂಪು & ಕಪ್ಪು ಜೆ.ಎಂ.ಸಿ.ಯಲ್ಲಿ ಮಿಷ್ಣಿ ಕಲಂ. 19(1)ರಲ್ಲಿ ಮಿಷ್ಣಿ ಮತ್ತು ಹ.ರ.ದಲ್ಲಿ ಕೆಂಪು & ಕಪ್ಪು ಅಂತಾ ನಮೂದು ಇರುತ್ತದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಪರಿಶೀಲಿಸಲಾಗಿ ಸದರ ಜಮೀನಿನಲ್ಲಿ ನೀರಾವರಿ ಮಾಡುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿರುವುದಿಲ್ಲ. ಸದರಿ ಜಮೀನಿನವು ಒಣಬೇಸಾಯ ಜಮೀನು ಇರುವುದರಿಂದ ಇದನ್ನು ಮಿಷ್ಣಿ ಜಮೀನಿನೆಂದು ಪರಿಗಣಿಸಿ ಮಿಷ್ಣಿ ದರ ನಿಗದಿಪಡಿಸಿದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ತೊಗರಿ ಬೆಳೆ ಇದ್ದದ್ದು ಕಂಡು ಬಂದಿದೆ.

ಸದರಿ ಭೂಸ್ವಾಧೀನವಾಗುವ ಕ್ಷೇತ್ರದಲ್ಲಿ -ಅಪಿಕೆ0-04 ವಿರಾಬು ಇರುವುದು ಆಕಾರಬಂದದಿಂದ ಕಂಡು ಬರುತ್ತದೆ. ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂ:ಕಂ.137/ಎಕ್ಸ್ಟ್ರಾಡಬ್ಲ್ಯೂ/2001. ದಿನಾಂಕ:12-05-2004 ರಲ್ಲಿ ಆ ವಿರಾಬು ಜಮೀನುಗಳನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರವು ಮಂಜೂರು ಮಾಡಿದಲ್ಲಿ ಅಂತ ವಿರಾಬು ಜಮೀನುಗಳಿಗೆ ಮಂಜೂರುದಾರರು ಹಿಡುವಳಿದಾರರಾಗುತ್ತಾರೆ. ಇಂತಹ ಮಂಜೂರಾತಿಯು ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿಪಡಿಸಲಾದ ಕಲಂ 11(1) ರ ಅಧೀನಾಚನೆಯಲ್ಲಿನ ದಿನಾಂಕಕ್ಕೆ ಮುನ್ನ ಮಂಜೂರಾಗಿದ್ದಲ್ಲಿ ಅಂತಹ ಮಂಜೂರಾದ ಆ ವಿರಾಬು ಜಮೀನನ್ನು ಹಿಡುವಳಿದಾರರ ಜಮೀನಿನೆಂದು ಪರಿಗಣಿಸಿ ಪರಿಹಾರ ನೀಡಬೇಕಾಗುತ್ತದೆ ಎಂದು ಸ್ಪಷ್ಟಪಡಿಸಿದೆ. ಆದರೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಒಳಗೊಂಡಿರುವ ಫೋಟ್ ವಿರಾಬು ಜಮೀನನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರದಿಂದ ಮಂಜೂರಿಸಿಕೊಂಡ ಬಗ್ಗೆ ದಾವಿರ ಇಲ್ಲದ ಕಾರಣ ಆ ವಿರಾಬು ಜಮೀನಕ್ಕೆ ಯಾವುದೇ ಪರಿಹಾರ ಧನದ ಬೇರೆ ನಿಗದಿ ಪಡಿಸಿರುವುದಿಲ್ಲ.

ಚಾಲ್ತಿ ಹರ ಹಾಗೂ ಅರ್ಜಿದಾರರ ಮನವಿಯನ್ನು ಪರಿಶೀಲಿಸಲಾಗಿ ಶ್ರೀ 1)ಹೊಳಬಸಯ್ಯ 2)ಗೋಕಾರಯ್ಯ ಮಠಪತಿ ರಾಜಯ್ಯ ಅಂತಾ 11(1) ಹಾಗೂ 19(1) ರಲ್ಲಿ ದಾವಿರಿದ್ದು, ದಿನಾಂಕ: 9-10-2015 ರಂದು ಡ.ನಂ.3 ರನ್ವಯ ವಾಟ್ಸಿ ಮಾಡಿಕೊಂಡು ಅದರಲ್ಲಿ ತಲಾ ಪ್ರತಿಯೊಬ್ಬರಿಗೂ 0-32+ಅಪಿಕೆ0-02=0-34 ಗುಂಟೆಯಂತೆ ವಾಟ್ಸಿ ಮಾಡಿಕೊಂಡು, ಅದರಂತೆ ಹ.ರ.ದಲ್ಲಿ ಹೆಸರು ಬದಲಾವಣೆ ಮಾಡಿಕೊಂಡಿದ್ದು ಇರುತ್ತದೆ. ತದನಂತರ ಶ್ರೀ ಗೋಕಾರಯ್ಯ ರಾಜಯ್ಯ ಮಠಪತಿ ಇವರು ತಮ್ಮ ಪಾಲಿಗೆ ಬಂದ ಜಮೀನಿನನ್ನು ಅವರ ಹೆಂಡತಿಯಾದ ಮಾದೇವಿ ಮಠಪತಿ ಗಂ. ಗೋಕಾರಯ್ಯ ಇವರ ಹೆಸರಿಗೆ ದಿನಾಂಕ:16-12-2015 ರಂದು ಡ.ನಂ. 8 ರನ್ವಯ ಹಕ್ಕು ಬಿಟ್ಟು ಕೊಟ್ಟಿದ್ದು, ಅದರಂತೆ ಹ.ರ.ದಲ್ಲಿ ಹೆಸರು ದಾವಿರಾಗಿದ್ದು, ಈಗಿನ ಚಾಲ್ತಿ ಉತ್ತರದಂತೆ ಪರಿಹಾರ ಧನ ನೀಡಲು ವಿನಂತಿಸಿಕೊಂಡಿದ್ದು ಇರುತ್ತದೆ. ಸದರಿ ವಾಟ್ಸಿ ಹಾಗೂ ಹಕ್ಕು ಬಿಟ್ಟು ಕೊಟ್ಟ ಪ್ರತಿಯಗಳು ಕಲಂ 11(1) ರ ಅಧೀನಾಚನೆಯ ದಿನಾಂಕದ ನಂತರವಾಗಿದ್ದು, ಕಲಂ 11(4) ರನ್ವಯ ಇದನ್ನು ಪರಿಗಣಿಸಲು ಅವಕಾಶ ಇರುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಕಲಂ 19(1) ರಲ್ಲಿದ್ದ ದಾವಿರೇಗಳನ್ವಯ ಪರಿಹಾರ ಧನ ನೀಡಲು ಆದೇಶಿಸಿದೆ.

ಜೆ.ಎಂ.ಸಿ. ಮತ್ತು ಕಲಂ 19(1)ರ ಪ್ರಕಾರ 1 ಬನ್ನಿ ಗಿಡ ನಮೂದಿದ್ದು ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ 1 ಬನ್ನಿ ಗಿಡ ಮಾತ್ರ ಇರುತ್ತದೆ. ಸದರಿ ಗಿಡ ಬಗ್ಗೆ ವಲಯ ಅರಣ್ಯ ಅಧಿಕಾರಿಗಳು, ಮುಧೋಳರವರು ಮೌಲ್ಯಮಾಪನ ಮಾಡಿದ್ದು, ರೂ.815/- ಮೌಲ್ಯ ಮಾಪನವನ್ನು ಪರಿಗಣಿಸಿ ಐಕೀರ್ಪಿಗೆ ಅಳವಡಿಸಿದೆ. ಗಿಡ ಆವರಿಸಿದ ಕ್ಷೇತ್ರ ಬಾರದೇ ಇರುವುದರಿಂದ ಗಿಡದ ಆವರಿಸಿದ ಕ್ಷೇತ್ರವನ್ನು ಕಡಿತಗೊಳಿಸಿರುವುದಿಲ್ಲ.

ಜೆಎಂಸಿ ಹಾಗೂ 19(1) ಪ್ರಕಾರ ಸದರ ಜಮೀನಿನ ಭೂಸ್ವಾಧೀನಗೊಳ್ಳುವ ಕ್ಷೇತ್ರದಲ್ಲಿ ಯಾವುದೇ ಫಲ ಕೊಡುವ ವೃಕ್ಷಗಳು, ಕಟ್ಟಡಗಳು, ಬಾವಿ ಮತ್ತು ಕೊಳವೆ ಬಾವಿಗಳು ಇರುವುದಿಲ್ಲ.

ಸದರ ಜಮೀನಿನ ಮೇಲೆ ಪಿಕೆಪಿಎಸ್.ವ.ಬೊರೂ.11000/- ಇರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ. ಇದನ್ನು ಹಂಚಿಕೆ ಪತ್ರಿಕೆಯಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ.

84) ರಿ.ಸ.ನಂ. 206/20

ಕ್ಷೇತ್ರ:1-23+ಅಪಿಕೆ0-04=1-27ಎ-ಗುಂ.

ಈ ಜಮೀನು ಕಲಂ. 19(1)ರ ಪ್ರಕಾರ ಶ್ರೀ ಶ್ರೀಶೈಲ ಮಡಿವಾಳ ಕೆಂಚಪ್ಪ ಇವರ ಮಾಲ್ಟಿ ಜಮೀನು ಇರುತ್ತದೆ. ಸದರಿ ಜಮೀನ ಸ.ನಂ.ದ ಒಟ್ಟು ಕ್ಷೇತ್ರ: 1-27 ಎ-ಗುಂ ಹ.ರ. ಪ್ರಕಾರ ಇರುತ್ತದೆ. ಇದು ಈ ಹಿಂದೆ ಯಾವುದೇ ಉದ್ದೇಶಕ್ಕಾಗಿ ಯಾವುದೇ ಕ್ಷೇತ್ರ ಭೂಸ್ವಾಧೀನಗೊಂಡಿರುವುದಿಲ್ಲ.

ಪ್ರಸ್ತುತ ಜಮೀನು ಕಲಂ. 11(1) ರಲ್ಲಿ ಕೆಂಪು & ಕಪ್ಪು ಜೆ.ಎಂ.ಸಿ.ಯಲ್ಲಿ ಮಿಷ್ಣಿ ಕಲಂ. 19(1)ರಲ್ಲಿ ಮಿಷ್ಣಿ ಮತ್ತು ಹ.ರ.ದಲ್ಲಿ ಕೆಂಪು & ಕಪ್ಪು ಅಂತಾ ನಮೂದು ಇರುತ್ತದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಪರಿಶೀಲಿಸಲಾಗಿ ರಿ.ಸ.ನಂ. 206/3 ರಲ್ಲಿಯ ಕೊಳವೆ ಭಾವಿಯಿಂದ ಪೈಪ್ ಲೈನ್ ಬ ಜಾಯಿಂಟ್ ನೆಲಗಾಲು ವ್ಯವಸ್ಥೆ ಮಾಡಿ ನೀರಾವರಿ ಮಾಡಿಕೊಳ್ಳುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿದೆ. ಸದರಿ ರಿ.ಸ.ನಂ. 206/3 ರ ಮೂಲ ಮಾಲೀಕರಾದ ಶ್ರೀ ಸಿ.ಸತ್ಯನಾಥ್ ಅವರ ಇವರ ಭೂಮಿನಲ್ಲಿ ವಜ್ರಮುಟ್ಟು ಗ್ರಾಮದ ಆರ್.ಆರ್. ನಂ. ವಿ.ಜಿ.ಎ.ಪಿ. 90 ಪ್ರಕಾರ 10 ಎಚ್.ಪಿ. ಕರೆಂಟ್ ವೋಲ್ಟೇಜಿಗೆ ದಿನಾಂಕ: 30-12-99 ರಂದು ವಿದ್ಯುತ್ ಸಂಪರ್ಕ ಪಡೆದುಕೊಂಡಿದ್ದು ಇದೆ. ಸದರಿ ರಿ.ಸ.ನಂ. 206/3 ರ ಜಮೀನಿಗೆ ಸದರಿ ಕೊಳವೆ ಭಾವಿಯಿಂದ ಬಿ ಜಾಯಿಂಟ್ ನೆಲಗಾಲು ವ್ಯವಸ್ಥೆ ನೀರಾವರಿ ಮಾಡಿಕೊಳ್ಳುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ. ಸದರಿ ವಿದ್ಯುತ್ ಸಂಪರ್ಕ ಪಡೆದುಕೊಂಡವರು ಮೃತರಾಗಿದ್ದು, ರಿ.ಸ.ನಂ. 206/3 ರ ಜಮೀನಿನಲ್ಲಿ ಸದರಿ ಕೊಳವೆ ಭಾವಿಯಿಂದ ಬಿ ಜಾಯಿಂಟ್ ನೆಲಗಾಲು ವ್ಯವಸ್ಥೆ ಮಾಡಿಕೊಳ್ಳುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿರುತ್ತದೆ.

ಗೌರವ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು

Boe

9 (31)

ಪ್ರಾಧಿಕಾರವು ಮಂಜೂರು ಮಾಡಿದಲ್ಲಿ ಅಂತ ಖರೀದಿ ಜಮೀನುಗಳಿಗೆ ಮಂಜೂರುದಾರರು ಹಿಡುವಳಿದಾರರಾಗುತ್ತಾರೆ. ಇಂತಹ ಮಂಜೂರಾತಿಯು ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿಪಡಿಸಲಾದ ಕಲಂ 11(1) ರ ಅಧೀನಾಚನೆಯಲ್ಲಿನ ದಿನಾಂಕಕ್ಕೆ ಮುನ್ನ ಮಂಜೂರಾಗಿದ್ದಲ್ಲಿ ಅಂತಹ ಮಂಜೂರಾದ ಆ ಖರೀದಿ ಜಮೀನನ್ನು ಹಿಡುವಳಿದಾರರ ಜಮೀನೊಂದು ಪರಿಗಣಿಸಿ ಪರಿಹಾರ ನೀಡಬೇಕಾಗುತ್ತದೆ ಎಂದು ಸ್ಪಷ್ಟಪಡಿಸಿದೆ. ಆದರೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಒಳಗೊಂಡಿರುವ ಫೋಟ್ ಖರೀದಿ ಜಮೀನನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರದಿಂದ ಮಂಜೂರಿಸಿಕೊಂಡ ಬಗ್ಗೆ ದಾಖಲೆ ಇಲ್ಲದ ಕಾರಣ ಆ ಖರೀದಿ ಜಮೀನಕ್ಕೆ ಯಾವುದೇ ಪರಿಹಾರ ಧನದ ಬೆಲೆ ನಿಗದಿ ಪಡಿಸಿರುವುದಿಲ್ಲ.

ಜೆಎಂಸಿ ಹಾಗೂ 19(1) ಪ್ರಕಾರ ಸದರಿ ಜಮೀನಿನ ಭೂಸ್ವಾಧೀನಗೊಳ್ಳುವ ಕ್ಷೇತ್ರದಲ್ಲಿ ಯಾವುದೇ ಫಲ ಕೊಡುವ ವ್ಯಕ್ತಿಗಳು, ಗಿಡ-ಮರ ಬಾವಿ ಮತ್ತು ಕೊಳವೆ ಬಾವಿಗಳು, ಕಟ್ಟಡಗಳು ಇರುವುದಿಲ್ಲ.

ಸದರಿ ಜಮೀನಿನ ಮೇಲೆ ಯಾವುದೇ ಭೋಜಾ ಇರುವುದಿಲ್ಲ.

104) ರಿ.ಸ.ನಂ. 208/8

ಕ್ರೇತ: 1-19+ಅಪಿ0-03=1-22ಎ.ಗುಂ.

ಈ ಜಮೀನು ಕಲಂ. 19(1)ರ ಪ್ರಕಾರ ಶ್ರೀ. 1)ತಂಗೆಪ್ಪ ಗಂ.ಶೆಟ್ಟಪ್ಪ ತೋಟಗಾರಿಕೆ 2)ಯಮನಪ್ಪ 3)ಹಣಮಂತ 4)ಯಲ್ಲಪ್ಪ ತಂ.ಶೆಟ್ಟಪ್ಪ ತೋಟಗಾರಿಕೆ ಇವರ ಮಾರ್ಪಾ ಜಮೀನು ಇರುತ್ತದೆ. ಸದರಿ ಜಮೀನು ಸ.ನಂ.ದ ಒಟ್ಟು ಕ್ಷೇತ್ರ: 1-22 ಎ-ಗುಂ ಹ.ರ. ಪ್ರಕಾರ ಇರುತ್ತದೆ. ಇದು ಈ ಹಿಂದೆ ಯಾವುದೇ ಉದ್ದೇಶಕ್ಕಾಗಿ ಯಾವುದೇ ಕ್ಷೇತ್ರ ಭೂಸ್ವಾಧೀನಗೊಂಡಿರುವುದಿಲ್ಲ.

ಪ್ರಸ್ತುತ ಜಮೀನು ಕಲಂ. 11(1) ರಲ್ಲಿ ಕೆಂಪು & ಕಪ್ಪು ಜೆ.ಎಂ.ಸಿ.ಯಲ್ಲಿ ಖುಷ್ಕಿ ಕಲಂ. 19(1)ರಲ್ಲಿ ಖುಷ್ಕಿ ಮತ್ತು ಹ.ರ.ದಲ್ಲಿ ಕೆಂಪು & ಕಪ್ಪು ಅಂತಾ ನಮೂದು ಇರುತ್ತದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಪರಿಶೀಲಿಸಲಾಗಿ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ನೀರಾವರಿ ಮಾಡುತ್ತಿರುವುದು ಕಂಡು ಬಂದಿರುವುದಿಲ್ಲ. ಸದರಿ ಜಮೀನಿನ ಒಣಬೇಸಾಯ ಜಮೀನು ಇರುವುದರಿಂದ ಇದನ್ನು ಖುಷ್ಕಿ ಜಮೀನೊಂದು ಪರಿಗಣಿಸಿ ಖುಷ್ಕಿ ದರ ನಿಗದಿಪಡಿಸಿದೆ. ಸ್ಥಳ ತನಿಖೆ ಕಾಲಕ್ಕೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಯಾವುದೇ ಬೆಳೆ ಕಂಡು ಬಂದಿಲ್ಲ.

ಸದರಿ ಭೂಸ್ವಾಧೀನವಾಗುವ ಕ್ಷೇತ್ರದಲ್ಲಿ -ಅಪಿ0-03 ಖರೀದಿ ಇರುವುದು ಆಕಾರಬಂದದಿಂದ ಕಂಡು ಬರುತ್ತದೆ. ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂ:ಕಂಇ.137/ಎಕ್ಸೋಡಬ್ಲ್ಯೂ/2001. ದಿನಾಂಕ:12-05-2004 ರಲ್ಲಿ ಆ ಖರೀದಿ ಜಮೀನುಗಳನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರವು ಮಂಜೂರು ಮಾಡಿದಲ್ಲಿ ಅಂತ ಖರೀದಿ ಜಮೀನುಗಳಿಗೆ ಮಂಜೂರುದಾರರು ಹಿಡುವಳಿದಾರರಾಗುತ್ತಾರೆ. ಇಂತಹ ಮಂಜೂರಾತಿಯು ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿಪಡಿಸಲಾದ ಕಲಂ 11(1) ರ ಅಧೀನಾಚನೆಯಲ್ಲಿನ ದಿನಾಂಕಕ್ಕೆ ಮುನ್ನ ಮಂಜೂರಾಗಿದ್ದಲ್ಲಿ ಅಂತಹ ಮಂಜೂರಾದ ಆ ಖರೀದಿ ಜಮೀನನ್ನು ಹಿಡುವಳಿದಾರರ ಜಮೀನೊಂದು ಪರಿಗಣಿಸಿ ಪರಿಹಾರ ನೀಡಬೇಕಾಗುತ್ತದೆ ಎಂದು ಸ್ಪಷ್ಟಪಡಿಸಿದೆ. ಆದರೆ ಸದರಿ ಜಮೀನಿನಲ್ಲಿ ಒಳಗೊಂಡಿರುವ ಫೋಟ್ ಖರೀದಿ ಜಮೀನನ್ನು ಸಕ್ಷಮ ಪ್ರಾಧಿಕಾರದಿಂದ ಮಂಜೂರಿಸಿಕೊಂಡ ಬಗ್ಗೆ ದಾಖಲೆ ಇಲ್ಲದ ಕಾರಣ ಆ ಖರೀದಿ ಜಮೀನಕ್ಕೆ ಯಾವುದೇ ಪರಿಹಾರ ಧನದ ಬೆಲೆ ನಿಗದಿ ಪಡಿಸಿರುವುದಿಲ್ಲ.

ಜೆಎಂಸಿ ಹಾಗೂ 19(1) ಪ್ರಕಾರ ಸದರಿ ಜಮೀನಿನ ಭೂಸ್ವಾಧೀನಗೊಳ್ಳುವ ಕ್ಷೇತ್ರದಲ್ಲಿ ಯಾವುದೇ ಫಲ ಕೊಡುವ ವ್ಯಕ್ತಿಗಳು, ಗಿಡ-ಮರ ಬಾವಿ ಮತ್ತು ಕೊಳವೆ ಬಾವಿಗಳು, ಕಟ್ಟಡಗಳು ಇರುವುದಿಲ್ಲ.

ಸದರಿ ಜಮೀನಿನ ಮೇಲೆ ಯಾವುದೇ ಭೋಜಾ ಇರುವುದಿಲ್ಲ.

10. ಬೆಲೆ ನಿಗದಿಪಡಿಸುವಿಕೆ.

ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ-2013 " Right to Fair Compensation And Transparency In Land Acquisition Rehabilitation and Resettlement Act, 2013 " ರ ಭೂಸ್ವಾಧೀನ ಕಲಂ. 23 ರ ಜೊತೆಗೆ ಒಂದನೇ ಶೆಡ್ಯೂಲ್ ರಡಿಯಲ್ಲಿ ಐತೀರ್ಮ ರಚಿಸಿರುವುದರಿಂದ ಪರಿಹಾರವನ್ನು ನಿಗದಿಪಡಿಸುವುದಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ ನೂತನ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 2013ರ ಪ್ರಕಾರ ಜಮೀನುಗಳ ಬೆಲೆಯನ್ನು ನಿಗದಿಪಡಿಸಲಾಗಿದೆ.

ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ-2013, ಕಲಂ. 26 ರ ಪ್ರಕಾರ ಭೂಮಿಯ ಮಾರುಕಟ್ಟೆ ಮೌಲ್ಯವನ್ನು ಮಾಪನ ಮಾಡುವುದರಲ್ಲಿ ಈ ಕೆಳಕಂಡ ಮಾನ ದಂಡಗಳನ್ನು ಅನ್ವಯ ಮಾಡಲಾಗಿದೆ.

- ಭೂಮಿಯ ಇರುವಂತಹ ಪ್ರದೇಶದಲ್ಲಿ ಕ್ರಯಪತ್ರ ಅಥವಾ ಉಪ ನೋಂದಣಿಗಾಗಿ, ಭಾರತ ಮುದ್ರಾಂಕ ಅಧಿನಿಯಮ 1899 (1899 ರ 2 ನೇ ಅಧಿನಿಯಮ) ರಲ್ಲಿ ನಿರ್ದಿಷ್ಟಪಡಿಸಿದ ಮಾರುಕಟ್ಟೆ ಮೌಲ್ಯ.
- ಹತ್ತಿರದ ಗ್ರಾಮ ಅಥವಾ ಹತ್ತಿರದ ನೆರೆ ಹೊರೆ ಪ್ರದೇಶದಲ್ಲಿರುವ ಅದೇ ಬಗೆಯ ಭೂಮಿಗಾಗಿ ಇರುವ ಸರಾಸರಿ ಮಾರಾಟ ಬೆಲೆ.
- ಈ ಗ್ರಾಮದಲ್ಲಿ ಯಾವುದೇ ಖಾಸಗಿ ಕಂಪನಿಗಳಿಗಾಗಿ ಅಥವಾ ಖಾಸಗಿ ಸರ್ಕಾರಿ ಸಹಭಾಗಿತ್ವ ಯೋಜನೆಗಳಿಗಾಗಿ ಯಾವುದೇ ಜಮೀನುಗಳು ಭೂಸ್ವಾಧೀನವಾಗಿರುವುದಿಲ್ಲ.

ಈ ಪ್ರದೇಶದಲ್ಲಿ ಭೂಸ್ವಾಧೀನಕ್ಕೊಳಪಟ್ಟ ಜಮೀನುಗಳ ಬೆಲೆ ನಿಗದಿಪಡಿಸುವುದಕ್ಕಾಗಿ ಉಪ ನೋಂದಣಿ ಅಧಿಕಾರಿಗಳು, ಮುಧೋಳ ಸಬ್ ಡಿವಿಷನ್ ಕಲಂ-11(1) ರ ಅಧಿನಿಯಮದ ಮೂರನೇ ಪಾರ್ಟ್ 3 ವರ್ಷಗಳಲ್ಲಿ ಅಂದರೆ ದಿನಾಂಕ:05/06/2011 ರಿಂದ ದಿನಾಂಕ:05/06/2014 ರವರೆಗೆ ಮುಕ್ತಾಯವಾದ ಝುಂಜರಹೊಪ್ಪ ಹಾಗೂ ವಜ್ರಮಟ್ಟಿ ಗ್ರಾಮಗಳ ಜಮೀನುಗಳ ಮಾರಾಟವಾದ ಆಂ. ಅಂಶಗಳನ್ನು ತೂರ್ಮಯಿಸಿದ್ದು, ಅವುಗಳ ವಿವರ ಈ ಕೆಳಗಿನಂತಿದೆ.

ಭೂಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳುವ ಜಮೀನುಗಳ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಯ ರೆಕಾರ್ಡ್‌ಗಳನ್ನು ಪುರಸಭೆ, ನಗರಸಭೆ, ನಗರಪಾಲಿಕೆ ಪ್ರದೇಶಗಳಿಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಈ ಕೆಳಗಿನಂತೆ ವಿಧಾನಗಳಲ್ಲಿ ಪರಿಗಣಿಸಲು ನಿರ್ಧರಿಸಲ್ಪಟ್ಟಿದೆ.



6	145/ಬ	0-39	ನೀರಾವರಿ	468000-00	23-8-2012	480000-00
7	154/ಬ	0-35	ನೀರಾವರಿ	420000-00	23-8-2012	480000-00
8	93/3	1-10	ನೀರಾವರಿ	1000000-00	30-12-2013	800000-00
9	197/2ಆ	3-08	ನೀರಾವರಿ	976000-00	6-1-2014	305000-00
10	139/1ಆ	0-07	ನೀರಾವರಿ	100000-00	15-2-2014	571429-00
11	146/1ಕ/3	1-00	ನೀರಾವರಿ	344000-00	20-3-2014	344000-00

ಮೇಲಿನ ಅಂಕಿ ಅಂಶದ ವಿವರ ಪರಿಶೀಲಿಸಲಾಗಿ, ಒಟ್ಟು ಮಾರಾಟವಾದ ನೀರಾವರಿ ಜಮೀನುಗಳಲ್ಲಿ ಹೆಚ್ಚಿನ ದರದಲ್ಲಿ ಮಾರಾಟವಾದ ಜಮೀನುಗಳ ಅರ್ಧದಷ್ಟು ಅಳವಡಿಸಿದ್ದು, ಅದರಂತೆ ಒಟ್ಟು ಮಾರಾಟವಾದ ನೀರಾವರಿ ಜಮೀನುಗಳಲ್ಲಿ ಹೆಚ್ಚಿನ ದರದಲ್ಲಿ ಮಾರಾಟವಾದ ಜಮೀನುಗಳ ಅರ್ಧದಷ್ಟು ಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳಲಾಗಿದೆ. ಅದರ ವಿವರ ಈ ಕೆಳಗಿನಂತಿದೆ.

ಅ. ನಂ.	ರಿಸ.ನಂ.	ಕ್ಷೇತ್ರ ಎ.ಗುಂ.	ಜಮೀನಿನ ತರಹ	ಜಮೀನಿನ ಬೆಲೆ	ಖರೀದಿ ದಿನಾಂಕ	ಪ್ರತಿ ಎಕರೆ ದರ
ನೀರಾವರಿ ಮಾರುಕಟ್ಟೆ ಬೆಲೆ ಹಾಗೂ ದರ						
1	93/3	1-10	ನೀರಾವರಿ	1000000-00	30-12-2013	800000 00
2	139/1ಆ	0-07	ನೀರಾವರಿ	100000-00	15-2-2014	571429-00
3	154/ಬ	0-35	ನೀರಾವರಿ	420000-00	23-8-2012	480000-00
4	145/ಬ	0-39	ನೀರಾವರಿ	468000-00	23-8-2012	480000-00
5	146/1ಆ/1ಬ	0-37	ನೀರಾವರಿ	383000-00	26-8-2011	414054-00
6	115/1ಡ	0-25	ನೀರಾವರಿ	258000-00	30-8-2011	412800-00
	ಒಟ್ಟು ::	4-33		26,29,000-00		

ನೀರಾವರಿ ಜಮೀನಿಗೆ ಪ್ರತಿ ಎಕರೆಗೆ ರೂ. 5,44,870-00 ಮಾರುಕಟ್ಟೆ ಬೆಲೆ ಬರುತ್ತಿದ್ದು,

ಈ ಮೇಲಿನಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 2013, ಕಲಂ 26(1)(ಎ) ಮತ್ತು (ಬಿ) ಗಳನ್ವಯ ಝುಂಜರಕೊಪ್ಪ ಗ್ರಾಮದ ಜಮೀನುಗಳ ಅತೀ ಹೆಚ್ಚಿನ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಯು ಈ ಕೆಳಗಿನಂತೆ ಇರುತ್ತದೆ.

ಅ. ನಂ.	ಜಮೀನಿನ ವಿವರ	ಮಾರ್ಗಸೂಚಿ ಬೆಲೆ ಪ್ರಕಾರ ಪ್ರತಿ ಎಕರೆಗೆ (2014-15)	ಕಲಂ.11(1)ರ ಹಿಂದಿನ 3 ವರ್ಷಗಳ ಸರಾಸರಿ ಬೆಲೆ ಪ್ರಕಾರ ಪ್ರತಿ ಎಕರೆಗೆ
1	ಖುಷ್ಕ ಜಮೀನಿನ ದರ	2,51,000-00	ಮಾರಾಟವಾಗಿರುವುದಿಲ್ಲ.
2	ನೀರಾವರಿ ಜಮೀನಿನ ದರ	3,80,000-00	5,44,870-00

ಕಾರಣ ಈ ಮೇಲಿನಂತೆ ಎರಡೂ ದರಗಳ ಪೈಕಿ ಅತೀ ಹೆಚ್ಚಿನ ದರಗಳು ಅಂದರೆ ನೀರಾವರಿ ಜಮೀನಿಗೆ ಪ್ರತಿ ಎಕರೆಗೆ ರೂ. 5,44,870-00 ಅಂತಾ ಪರಿಗಣಿಸಿ ಸದರಿ ಮೌಲ್ಯವನ್ನು ಮೂಲ ಮಾರುಕಟ್ಟೆ ಬೆಲೆ ಅಂತಾ ನಿಗದಿಪಡಿಸಿ, ಐತೀರ್ಪಿನಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ. ಹಾಗೂ ಸದರ 3 ವರ್ಷಗಳಲ್ಲಿ ಝುಂಜರಕೊಪ್ಪ ಗ್ರಾಮದ ಖುಷ್ಕ ಜಮೀನುಗಳು ಮಾರಾಟವಾಗದೇ ಇರುವುದರಿಂದ ಮಾರ್ಗಸೂಚಿ ಬೆಲೆ ಆಧಾರದ ಮೇಲಿಂದ ಪ್ರತಿ ಎಕರೆಗೆ ಖುಷ್ಕ ಜಮೀನಿಗೆ ರೂ. 2,51,000-00 ಮೌಲ್ಯವನ್ನು ಮೂಲ ಮಾರುಕಟ್ಟೆ ಬೆಲೆ ಅಂತಾ ಪರಿಗಣಿಸಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಳ್ಳುವ ಖುಷ್ಕ ಜಮೀನಿಗೆ ಪ್ರತಿ ಎಕರೆಗೆ ರೂ. 2,51,000-00 ಹಾಗೂ ನೀರಾವರಿ ಜಮೀನಿಗೆ ಪ್ರತಿ ಎಕರೆಗೆ ರೂ. 5,44,870-00 ರಂದು ಮಾರುಕಟ್ಟೆ ಬೆಲೆ ಅಂತಾ ಪರಿಗಣಿಸಿ ಹಂಚಿಕೆ ಪತ್ರಕೆಯಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ.

ಹಾಗೂ ಪಟ್ಟಮಟ್ಟಿ ಗ್ರಾಮದ ಜಮೀನುಗಳ ಮಾರಾಟದ ಅಂಕಿ ಅಂಶ ಪಟ್ಟಿ ಈ ಕೆಳಗಿನಂತಿದೆ.

ಮುಧೋಳ ತಾಲ್ಲೂಕಿನ ಪಟ್ಟಮಟ್ಟಿ ಗ್ರಾಮದ ಜಮೀನುಗಳ ಮಾರಾಟದ ಅಂಕಿ ಸಂಖ್ಯಾ ವಿವರ
ದಿನಾಂಕ: 05-06-2011 ರಿಂದ ದಿನಾಂಕ: 05-06-2014 ರವರೆಗೆ.



ಅ. ನಂ.	ರ.ಸ.ನಂ.	ಕ್ಷೇತ್ರ ಎ.ಗುಂ.	ಜಮೀನಿನ ತರಹ	ಜಮೀನಿನ ಬೆಲೆ	ಖರೀದಿ ದಿನಾಂಕ	ಪ್ರತಿ ಎಕರೆ ದರ
1	177/5	0-38	ನೀರಾವರಿ	163000-00	30-6-2011	171579-00
2	55/2ಬ	0-33	ನೀರಾವರಿ	128000-00	20-11-2011	155152-00
3	78/2ಬ/2	3-08	ನೀರಾವರಿ	496000-00	1-2-2012	155000-00
4	21/2ಅ/3	4-00	ನೀರಾವರಿ	776000-00	2-6-2014	194000-00

ಮಿಷ್ಣು ಜಮೀನಿನ ಮಾರಾಟದ ವಿವರ

1	4	4-24	ಮಿಷ್ಣು	575000-00	23-12-2013	125000-00
2	132/2ಬ/1	2-04	ಮಿಷ್ಣು	21000-00	1-6-2012	10000-00

ಮೇಲಿನ ಅಂಕಿ ಅಂಶದ ವಿವರ ಪರಿಶೀಲಿಸಲಾಗಿ, ಒಟ್ಟು ಮಾರಾಟವಾದ ನೀರಾವರಿ ಜಮೀನುಗಳಲ್ಲಿ ಹೆಚ್ಚಿನ ದರದಲ್ಲಿ ಮಾರಾಟವಾದ ಜಮೀನುಗಳ ಅರ್ಧದಷ್ಟು ಅಳವಡಿಸಿದ್ದು, ಅದರಂತೆ ಒಟ್ಟು ಮಾರಾಟವಾದ ನೀರಾವರಿ ಜಮೀನುಗಳಲ್ಲಿ ಹೆಚ್ಚಿನ ದರದಲ್ಲಿ ಮಾರಾಟವಾದ ಜಮೀನುಗಳ ಅರ್ಧದಷ್ಟು ಗಣನೆಗೆ ತೆಗೆದುಕೊಳ್ಳಲಾಗಿದೆ, ಅದರ ವಿವರ ಈ ಕೆಳಗಿನಂತಿದೆ.

ಅ. ನಂ.	ರ.ಸ.ನಂ.	ಕ್ಷೇತ್ರ ಎ.ಗುಂ.	ಜಮೀನಿನ ತರಹ	ಜಮೀನಿನ ಬೆಲೆ	ಖರೀದಿ ದಿನಾಂಕ
1	177/5	0-38	ನೀರಾವರಿ	1,63,000-00	30-06-2011
3	21/2ಅ/3	4-00	ನೀರಾವರಿ	7,76,000-00	2-06-2014
	ಒಟ್ಟು ::	4-38		9,39,000-00	

ಸರಾಸರಿ ನೀರಾವರಿ ಜಮೀನಿಗೆ ಪ್ರತಿ ಎಕರೆಗೆ ರೂ. 1,89,697-00 ಮಾರುಕಟ್ಟೆ ಬೆಲೆಯಾಗುತ್ತದೆ.

ವಜ್ಜರಮಟ್ಟಿ ಗ್ರಾಮದಲ್ಲಿ ಕಲಂ 11(1)ರ ಅಧಿಸೂಚನೆಯ ದಿನಾಂಕದ ಹಿಂದಿನ ಮೂರು ವರ್ಷಗಳಲ್ಲಿ ಒಂದೇ ಮಿಷ್ಣು ಜಮೀನು ಮಾರಾಟವಾಗಿದ್ದರಿಂದ ಅದನ್ನು ಗಣನೆಗೆ ತೆಗೆದುಕೊಂಡು ಅದರ ವಿವರ ಈ ಕೆಳಗಿನಂತಿದೆ.

ಅ. ನಂ.	ರ.ಸ.ನಂ.	ಕ್ಷೇತ್ರ ಎ.ಗುಂ.	ಜಮೀನಿನ ತರಹ	ಜಮೀನಿನ ಬೆಲೆ	ಖರೀದಿ ದಿನಾಂಕ	ಪ್ರತಿ ಎಕರೆ ದರ
ಮಿಷ್ಣು ಜಮೀನುಗಳ ಮಾರಾಟದ ವಿವರ						
1	4	4-24	ಮಿಷ್ಣು	575000-00	23-12-2013	125000-00

ಈ ಮೇಲಿನಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 2013, ಕಲಂ 26(1)(ಎ) ಮತ್ತು (ಬಿ) ಗಳನ್ವಯ ವಜ್ಜರಮಟ್ಟಿ ಗ್ರಾಮದ ಜಮೀನುಗಳ ಅತೀ ಹೆಚ್ಚಿನ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಯು ಈ ಕೆಳಗಿನಂತೆ ಇರುತ್ತದೆ.

ಅ. ನಂ.	ಜಮೀನಿನ ವಿವರ	ಮಾರ್ಗಸೂಚಿ ಬೆಲೆ ಪ್ರಕಾರ ಪ್ರತಿ ಎಕರೆಗೆ.	ಕಲಂ 11(1)ರ ಹಿಂದಿನ 3 ವರ್ಷಗಳ ಸರಾಸರಿ ಬೆಲೆ ಪ್ರಕಾರ ಪ್ರತಿ ಎಕರೆಗೆ
1	ಮಿಷ್ಣು ಜಮೀನಿನ ದರ	1,38,000-00	1,25,000-00
2	ನೀರಾವರಿ ಜಮೀನಿನ ದರ	2,73,000-00	1,89,697-00

ಕಾರಣ ಈ ಮೇಲಿನಂತೆ ಎರಡೂ ದರಗಳ ಪೈಕಿ ಅತೀ ಹೆಚ್ಚಿನ ದರಗಳು ಅಂದರೆ ನೀರಾವರಿ ಜಮೀನಿಗೆ ಪ್ರತಿ ಎಕರೆಗೆ ರೂ. 2,73,000-00 ಮಿಷ್ಣು ಜಮೀನಿಗೆ ಪ್ರತಿ ಎಕರೆಗೆ ರೂ. 1,38,000-00 ಅಂತಾ ಪರಿಗಣಿಸಿ ಸದರಿ ಮೌಲ್ಯವನ್ನು ಮೂಲ ಮಾರುಕಟ್ಟೆ ಬೆಲೆ ಅಂತಾ ನಿಗದಿಪಡಿಸಿ, ಹಂಚಿಕೆ ಪತ್ರಕೆಯಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ.

11) ಕಟ್ಟಡಗಳ ಮೌಲ್ಯ ಮಾಪನ:

ಪ್ರಸ್ತುತ ವರ್ತಮಾನದಲ್ಲಿ ಒಳಗೊಂಡ ಜಮೀನುಗಳಲ್ಲಿ ಸ.ನಂ.205/2ಬರಲ್ಲಿ ಒಂದು ಕಟ್ಟಡವಿದ್ದು, ಐಕೀರ್ಪಿನಲ್ಲಿ ಚರ್ಚಿಸಿದಂತೆ, ಕ್ರಮ ಕೈಗೊಳ್ಳಲಾಗುವುದು. ಉಳಿದ ಜಮೀನುಗಳಲ್ಲಿ ಕಟ್ಟಡಗಳು ಇರುವುದಿಲ್ಲ.

12) ಗಿಡ-ಮರಗಳ ಕೆಲವು:

ಜಮೀನು ಹಾಗೂ ಕಲಂ 19(1)ರ ಪ್ರಕಾರ ಪ್ರಸ್ತುತ ಐಕೀರ್ಪಿನಲ್ಲಿ ಕೆಲವು ಜಮೀನುಗಳಲ್ಲಿ ಗಿಡ-ಮರಗಳು ಇರುವುದು ಕಂಡು ಬಂದಿದೆ, ನೋಂದಣಿ ಅಧಿಕಾರಿಗಳು ಮೂಲದ ಇವರು ಸಲ್ಲಿಸಿದ ಮೌಲ್ಯಮಾಪನ ಪತ್ರ ದಿನಾಂಕ: 10.12.2016

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ರಸ್ತೆಯ ಹಾಗೂ ಸಹಾಯಕ ತೋಟಗಾರಿಕೆ ಅಧಿಕಾರಿಗಳು, ಮಾನ್ಯ ಆಯುಕ್ತರವರ ಕಛೇರಿ, ಮು ಮತ್ತು ಪು, ಭೂಸ್ವಾಧೀನ. ನವನಗರ, ಬಾಗಲಕೋಟೆ ಮೌಲ್ಯ ಮಾಪನ ಪತ್ರ ಸಂ: ಕ/ಭೂಸ್ವಾ/ಸ.ತೋ.ಆ./24/15-16/4549 ದಿನಾಂಕ:23-02-2016 ರನ್ವಯ ಆಯಾ ಸರ್ವೆ ನಂಗಳ ವಿವರಣೆಯಲ್ಲಿ ಪ್ರತ್ಯೇಕವಾಗಿ ಬರ್ಚಿಸಿ ಪರಿಹಾರ ಧನವನ್ನು ಹಂಚಿಕೆ ಪತ್ರಕೆಯಲ್ಲಿ ಅಳವಡಿಸಲಾಗಿದೆ.

13) ಬಾವಿ, ಕೊಳವೆ ಬಾವಿಗಳ ಕಿಮ್ಮತ್ತು:

ಜಿ.ಎಂ.ಸಿ ಹಾಗೂ ಕಲಂ 19(2) ರ ಪ್ರಕಾರ ಕೆಲವೊಂದು ಜಮೀನುಗಳ ಭೂಸ್ವಾಧೀನ ಕ್ಷೇತ್ರದಲ್ಲಿ ಕೊಳವೆ ಬಾವಿಗಳು, ಹಾಗೂ ಭಾವಿಗಳು ಇದ್ದು, ಸದರಿ ಜಮೀನುಗಳಿಗೆ ನೀರಾವರಿ ಜಮೀನೊಂದು ಪರಿಗಣಿಸಿದ್ದರಿಂದ ಕೊಳವೆ ಬಾವಿಗಳು, ಹಾಗೂ ಭಾವಿಗಳಿಗೆ ಮೌಲ್ಯವನ್ನು ನೀಡಲು ಬರುವುದಿಲ್ಲವಾದ್ದರಿಂದ ಯಾವುದೇ ಪರಿಹಾರ ಧನವನ್ನು ನಿಗದಿ ಪಡಿಸಿರುವುದಿಲ್ಲ.

14) ಪೋರ್ಟ್ ಖರಾಬ:

ಸದರಿ ಐತೀರ್ಫಿನಲ್ಲಿ ಒಳಗೊಂಡ ಕೆಲವೊಂದು ಜಮೀನುಗಳ ಕ್ಷೇತ್ರಗಳಲ್ಲಿ ಪೋರ್ಟ್ ಖರಾಬ ಇದ್ದು ಅವುಗಳ ಬಗ್ಗೆ ಪ್ರತ್ಯೇಕವಾಗಿ ಬರ್ಚಿಸಿದೆ.

15) ಬೋಜಾಗಳ ಬಗ್ಗೆ:

ಸದರಿ ಐತೀರ್ಫಿನಲ್ಲಿ ಅಳವಡಿಸಿದ ಕೆಲವು ಸರ್ವೆ ನಂಬರಗಳಲ್ಲಿ ಬೋಜಾ ಇದ್ದು ಅದನ್ನು ಹಂಚಿಕೆ ಪತ್ರಕೆಯಲ್ಲಿ ಅಳವಡಿಸಿದೆ.

16) ಇನಾಂ ಹಾಗೂ ಭೂಸ್ವಾಧೀನಮಂಡಳ ಕಾಯ್ದೆ ಬಗ್ಗೆ:

ಭೂಸ್ವಾಧೀನಕ್ಕೆ ಒಳಪಡುವ ಜಮೀನುಗಳು ಇನಾಂ ಹಾಗೂ ಭೂಸ್ವಾಧೀನಮಂಡಳ ಪ್ರಕಾರ ಹೆಚ್ಚುವರಿ ಜಮೀನು ಅಥವಾ ಗೇಣಿ ಜಮೀನು ಇದ್ದು ಬಗ್ಗೆ ಮಾಹಿತಿ ಒದಗಿಸಲು ತಹಶೀಲ್ದಾರ್, ಮುಧೋಳ ಇವರಿಗೆ ಬರೆಯಲಾಗಿದ್ದು, ಈ ಬಗ್ಗೆ ಮಾಹಿತಿ ಪಡೆದುಕೊಂಡು ಪರಿಹಾರ ಧನ ವಿತರಣೆ ಮಾಡಲಾಗುವುದು.

17) ಶೇ. 12% ರ ಹೆಚ್ಚುವರಿ ಮಾರುಕಟ್ಟೆ ಬೆಲೆ:

ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 2013 ರ ಕಲಂ 30(3) ರನ್ವಯ ಶೇ. 12% ರಂತೆ ಹೆಚ್ಚುವರಿ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಯನ್ನು ಅಧಿಸೂಚನೆ ಪ್ರಕಟಣೆ ಅಂತಿಮ ದಿನಾಂಕ: 29-9-2014 ರಿಂದ ಐತೀರ್ಫಿ ಘೋಷಣೆಯ ದಿನಾಂಕದವರೆಗೆ ಹೆಚ್ಚುವರಿ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಯನ್ನು ನೀಡಲು ನಿರ್ಧರಿಸಿದ್ದೇನೆ.

23) ಕಬ್ಬಾ ಬಗ್ಗೆ:

ಈ ಐತೀರ್ಫಿನಲ್ಲಿರುವ ಜಮೀನುಗಳ ಕಬ್ಬಾವನ್ನು ಈ ಮೊದಲು ಪಡೆದುಕೊಂಡಿಲ್ಲವಾದ್ದರಿಂದ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 2013 ರ ಕಲಂ 80 ರ ಪ್ರಕಾರ ಬಡ್ತಿ ಪಾವತಿಸುವ ಪ್ರಶ್ನೆ ಉದ್ಭವಿಸುವುದಿಲ್ಲ.

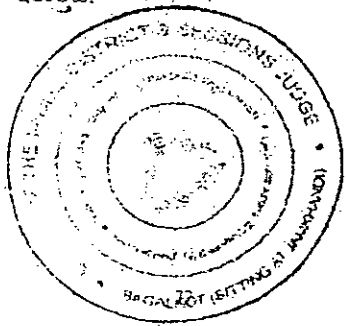
18) ಶೇ.100% ರಷ್ಟು ನಷ್ಟ ಭರ್ತಿ ಹಣದ ಬಗ್ಗೆ:

ಈ ಪ್ರಕರಣದಲ್ಲಿ ಭೂಸ್ವಾಧೀನ ಕಡ್ಡಾಯವಾಗಿರುವುದರಿಂದ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 2013 ರ ಕಲಂ 30(1) ರನ್ವಯ 100 % ನಷ್ಟ ಭರ್ತಿ ಪರಿಹಾರ ಧನ ನೀಡಲು ನಿರ್ಧರಿಸಿದ್ದೇನೆ.

19) ಕಲಂ 26(2) ಗುಣಾಕಾರ (Multiplier):

ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 26(2)ರ ಪ್ರಕಾರ ಮತ್ತು ಒಂದನೆಯ ಶೆಡ್ಯೂಲ್ ರಲ್ಲಿ ಝಂಜರಕೊಪ್ಪ ಗ್ರಾಮವು ಮುಧೋಳ ಹೋಬಳಿ ಪ್ರದೇಶದಿಂದ 3.00 ಕಿ.ಮೀ., ಅಂತರದ ಒಳಗೆ ಬರುವುದರಿಂದ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಗೆ ಕಾಯ್ದೆಯ ಪ್ರಕಾರ ಹಾಗೂ ಸರಕಾರದ ಪತ್ರ ಸಂ. ಆರ್.ಡಿ-58 ಭೂಸ್ವಾಧೀನ/2014 ದಿನಾಂಕ:03/05/2014ರ ಪತ್ರದಲ್ಲಿ ಶಹರ ವ್ಯಾಪ್ತಿಯಿಂದ 3 ಕಿ.ಮೀ., ಅಂತರದ ಒಳಗೆ ಬರುವುದರಿಂದ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಗೆ 1.5 (ಒಂದುವರೆ) ರಿಂದ ಗುಣಾಕಾರ (Multiplier) ಮಾಡ ಬೇಕಾಗಿರುವುದರಿಂದ ಒಟ್ಟು ಪಾವತಿಸಬೇಕಾದ ಧನವು ಗುಣಾಕಾರ (Multiplier) ಮಾಡಿದ ನಂತರ 1.5 ರಷ್ಟು ಬರುತ್ತದೆ. ಝಂಜರಕೊಪ್ಪ ಗ್ರಾಮವು ಪಟ್ಟಣ ವ್ಯಾಪ್ತಿಯಿಂದ 3 ಕಿ.ಮೀ., ಒಳಗೆ ಇರುವುದರಿಂದ ಹೀಗಾಗಿ (Multiplier) 1.5 ಇರುತ್ತದೆ.

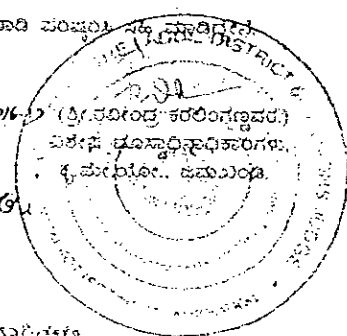
ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆ 26(2)ರ ಪ್ರಕಾರ ಮತ್ತು ಒಂದನೆಯ ಶೆಡ್ಯೂಲ್ ರಲ್ಲಿ ವಜ್ಜರಮಟ್ಟ ಗ್ರಾಮವು ಮುಧೋಳ ಪ್ರದೇಶದಿಂದ 5.00 ಕಿ.ಮೀ., ಅಂತರದ ಹೊರಗಡೆ ಬರುವುದರಿಂದ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಗೆ ಕಾಯ್ದೆಯ ಪ್ರಕಾರ ಹಾಗೂ ಸರಕಾರದ ಪತ್ರ ಸಂ. ಆರ್.ಡಿ-58 ಭೂಸ್ವಾಧೀನ/2014 ದಿನಾಂಕ:03/05/2014ರ ಪತ್ರದಲ್ಲಿ ಶಹರ ವ್ಯಾಪ್ತಿಯಿಂದ 5.00 ಕಿ.ಮೀ., ಅಂತರದ ಹೊರಗೆ ಬರುವುದರಿಂದ ಮಾರುಕಟ್ಟೆ ಬೆಲೆಗೆ 2 ರಿಂದ ಗುಣಾಕಾರ (Multiplier) ಮಾಡ ಬೇಕಾಗಿರುವುದರಿಂದ ಒಟ್ಟು ಪಾವತಿಸಬೇಕಾದ ಧನವು ಗುಣಾಕಾರ (Multiplier) ಮಾಡಿದ ನಂತರ 2 ರಷ್ಟು ಬರುತ್ತದೆ. ವಜ್ಜರಮಟ್ಟ ಗ್ರಾಮವು ಪಟ್ಟಣ ವ್ಯಾಪ್ತಿಯಿಂದ 5 ಕಿ.ಮೀ., ಹೊರಗೆ ಇದೆ: ಹೀಗಾಗಿ (Multiplier) 2 ಇರುತ್ತದೆ.



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ತಾಲೂಕು: ಪುನೋಳ

ಶಿಕ್ಷಣ ಭವನ, ಬೆಂಗಳೂರು
೨೦.೦೬.೨೦೧೯, ಶುಕ್ರವಾರ



-76-

89



TO THE SPECIAL LAND ACQUISITION OFFICER UKP

JAMKHANDI

ANNEXURE - D

LA 731/17

Subject :- Reference application U/Sec.64 of The Right To Fair Compensation and Transparency In Land Acquisition, Rehabilitation And Resettlement Act 2013.

Applicants :- 1) Smt. Parvatewwa W/o Holabasu @ Holabasappa Dupad.

age: 50

2) Smt. Shobha W/o Srikanth Huddar,

3) Kum. Shashikala

4) Kum. Shrathi

Father

5) Kum. Shilpa

Holabasu @ Holabasappa

6) Shridhar

Dupad, Minors

Represented by their mother Smt. Parvatewwa Sl.

No.1) and G.P. No. 2

All R/o Vajramatti, Tq- Mudhol

/vs/

1) The Special Land Acquisition Officer
UKP Jamkhandi.

2) The General Manager Land Acquisition
& LAQ R&R UKP Navanagar, Bagalkot.

Opponents 3) The Deputy Commissioner Bagalkot.

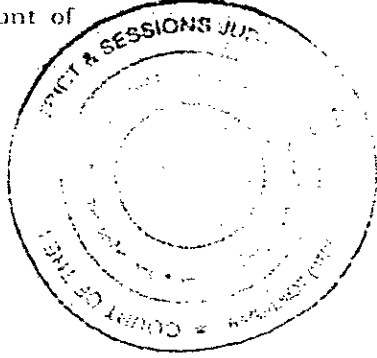
Reference :- LAQ.SR.12/2014-15 Award Dt: 24-01-2017
declared on 06-02-2017,
R.S.No.206/1B measuring 01 acres 36 guntas of
Vajramatti village Tq: Mudhol.

Sir,

The Applicants are the owners of land R.S.No.206/1B measuring 01 acres 36 of Vajramatti village Tq: Mudhol submits objections to the award in respect of valuation and other particulars relating to property acquired and request for reference to the Authority, for determining the correct valuation and damages and correct amount of compensation to be paid to the applicants and the awarded amount of compensation is received under protest.

Brief facts :

Herein the above named Claimant submits as under -



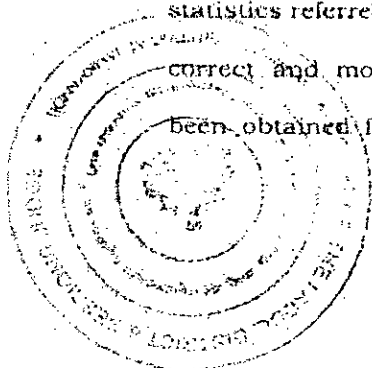
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At Jamkhandi, Karnataka
Sd/- Smt. Parvatewwa
No. 1) and G.P. No. 2
All R/o Vajramatti, Tq- Mudhol
15-03-2017

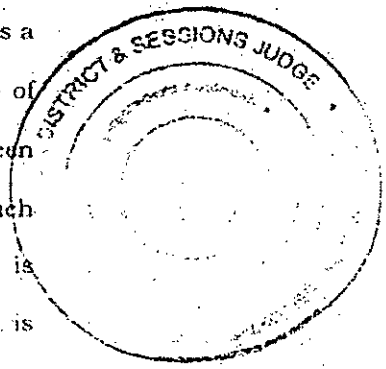
R.S.No.	Area		Nature of the Land	Crops Grown	Village	Taluka
	A	G				
R.S.No.206/1B	01	36	N.A Potential	Sugarcane, Onion, Groundnut,	Vajramatti	Mudhol

01. That the claimants are exclusive owners and in possession of R.S.No.206/1B measuring 01 Acres 36 Guntas of Vajramatti village Tq: Mudhol.
02. As the land of claimants is having water source for irrigation from the Bore-Well and since from long days the land is irrigated and claimants are growing sugarcane and onion etc., crops in this land, even prior to the notice U/Sec. 11(1) dtd: 05-06-2014.
03. By acquisition of this land claimants will become landless and hence they would suffer for change of cropping pattern as these claimants are only having these lands and after acquisition of this land there is no land of claimants to continue their agriculture and who are only depending on this land and agriculture and who claim Rs.25 Lakhs for change of residence and change of profession.
04. As the opportunity given under Sec.21(2) of new Act is completely neglected.
05. Though the initiation of acquisition is started since 05.06.2014 and the sale transactions during 05-06-2011 to 05-06-2014 period is not at all proper and correct. As the proximate date of notice U/Sec. 11(1) shall be taken of the same village and neighboring villages, but the average sales statistics referred in the award of opponent No.1 which is not correct and moreover the guidelines of market value has been obtained from Senior Sub-Registrar Mudhol from the



year 2011-14 instead of taking the year of 2014-15 which has not reached for the proper valuation under the new Act as the new Act itself discloses that, the fare compensation and this method is quite contrary to the said statute.

06. The claimant all along is growing sugarcane crop in this land at the average of 60 Tonnes per acre and there will be 25% of agriculture expenses for the first year and for the subsequent years it is only 15%.
07. The claimants are sending sugarcane crop to sugar factories and the prices paid by the said factories for the period of 2014-15 and 2015-16 be taken to enhance the compensation amount.
08. The award passed by the LAO UKP Jamkhandi is not proper and correct and the method followed by him to fix the market value is not correct, on the basis of sale statistics as well as previous guidelines of market value. The opponent has not properly valued the Horticulture standing trees is not correct.
09. These lands are just within 6 K.M. from Zunjurkoppa village and the village there are so many public establishments like petrol bunk, High tension grid, High School, Panchayath Buildings, Health Centers etc., and there is much scare of land for construction of houses, as towards west and north there is Black cotton soil lands and towards south there is a big Hill of a deep slope which are not fit for construction of houses. It is the only area, where this acquisition has been taken place is just abutting to the forest area having much greenery and good atmosphere and not only that, there is hard red morum soil and accordingly much development is



made towards the Eastern side of the village where these acquired lands are situated. The State Highway from Mudhol to Anagwadi is just attaching towards north of these acquired lands. Because of easy approach to the road and these lands are very much fit for construction of houses for rehabilitation centre for Machakanur village and Zunjurkoppa village which is also having similar potentiality rehabilitation centre for Machakanur village.

This land is having N.A potentiality for construction of houses, and other public buildings. The opponent No.1 has not at all taken into consideration about the lands are similar in nature and texture of Zunjurkoppa village situated in same vicinity and acquired in the same notification.

10. The opponent has not awarded, compensation to the Kharab (A) portion of 0.05 Guntas, though the said portion of land is cultivable, and there is no such law as referred in the award in awarding the compensation to Pot Kharat (A) portion of 0.05 Guntas. Hence, the compensation be awarded to this portion also, and the Government Circular noted in the award is not binding and proper.
11. Hence, the Claimants are entitled for compensation multiplying into two with statutory benefit of 100% solatium and 12% additional market value. The compensation awarded by SLAO is not proper and correct.



53/ 38

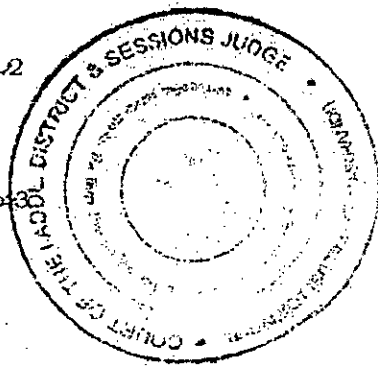
12. Hence, these claimants claims Rs. 1,50,00,000/- per acre apart from statutory benefits and the benefit of additional compensation amount.
13. The notice U/Section 37 (2) of New act 2013 is served on this claimant No.1 on 10.02.2017 and the reference application filed today is in time.
14. On these grounds you are requested to make the reference of this application and award to the Authority as property situated within Bagalkot District jurisdiction.

Jamkhandi
Dated: 15/03/17

Claimant No.1 As a GPA
For herself and on behalf of holder
Minors Sl. No.3 to 6.

Claimant No.2

Claimant No.3



Submitted through their advocate

(Sri.R.L.Kanabur Advocate)

No. 1586 / 1023 Date 11/9/17

Certified that this is a true and accurate copy of the original all the matter appearing in original has been faithfully copied with no modification

"TRUE COPY"

Copyist Examiner
(Addl. Dist. & Sessions Court
Bagalkot (To sit at Jamkhandi))

1. Copying application filed on	11/9/17
2. Copying <u>Stamp</u> required to be produced on	
3. Copying <u>Stamp</u> produced on	
4. Applicant required to appear on	11/9/17
5. Applicant appeared on	11/9/17
6. Copy ready on	11/9/17
7. Copy delivered on	11/9/17
8. Copied by	Shri. S. S. S. S. S.
9. Examined by	Shri. S. S. S. S. S.

**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH, AT DHARWAD**

WP No. _____ / 2025

Petitioner	Vs	Respondents
Krishna Bhagya Jala Nigam Limited		The SLAO & Ors

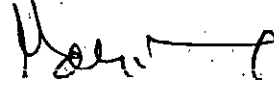
I, **Ravikumar P, The General Manager-Administration and Human Resources, Krishna Bhagya Jala Nigam Limited** the **Petitioner** No. **Sole** in the above matter hereby appoint and retain **Sri. _____**

Advocate(s) to appear act and plead for me/us in the above matter and to conduct/prosecute and defend the same in all interlocutory or miscellaneous proceedings connected with the same or with any decree or orders passed therein appeals and or other proceedings arising there from and also in proceedings for review of judgment and for leave to appeal to Supreme Court and to obtain return of any documents filed therein or receive any money which may be payable to me/us.

2. I/we hereby authorize him/them on my/our behalf to enter into a compromise in the above matter to execute any decree/ order therein to appeal from any decree/ order/ therein and to appeal to act to plead in such appeal in any preferred by any other party from any decree/other/therein.

I/we further agree that, if I/we fail to pay the fees agreed upon or to give due instructions at all stages he/they is/are at liberty to retire from the case and recover all amounts due to him/them and retain all my/our monies till such dues are paid.

Executed by me/us this 12th day of May, 2025 at Bengaluru Dharwad



ರವಿಕುಮಾರ್ .ಪಿ.
ಕ.ಆ.ಸಿ. (ಅಭ್ಯಾಸಿ)
ಪ್ರಧಾನ ವೈವಸ್ಥಾಪಕರು

Executants/are personally known to me and ~~has/have signed before me~~ ಕೃಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ
signed before us.

Satisfied as to the identity of executant/s Signature/s
(Where the executant/s are illiterate, blind or unacquainted with the language of vakalath)

Certified that the contents were explained to the executant/s in ~~my presence in~~ Vernacular language known to him/them who appear/s perfectly to understand the same and has/have signed in the presence.

Accepted

Address for service

Advocates for Petitioner

Place : Dharwad

Date : 12/04/2025

SANTOSH B. MANE

ADVOCATE, KAR-1561/1999.

LIG-2/B, H.No.9, Chaitanya Nagar, DHARWAD

MOB : 9880971825, 7259972825

E-mail : manesantosh@gmail.com

**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH, AT DHARWAD**

IA No. 1/2025

in

WRIT PETITION No.

/ 2025

BETWEEN:

Krishna Bhgaya Jala Nigam Limited

Petitioner

AND:

The Special Land Acquisition Officer & Ors

Respondents

INDEX

Sl. No.	Particulars	Page Nos.
1.	IA No. 1/2025 for Dispensation	83-84
2.	Memorandum of Facts	85

Place : Dharwad

Date : 18.07.2025

Advocate for Petitioner

(Santosh B.Mane)

- 23 -

**IN THE HIGH COURT OF KARNATAKA
DHARWAD BENCH, AT DHARWAD**

IA No. 1/2025

in

WRIT PETITION No. / 2025

BETWEEN:

Krishna Bhgaya Jala Nigam Limited

Petitioner

AND:

The Special Land Acquisition Officer & Ors

Respondents

APPLICATION U / S 151 OF C.P.C FOR DISPENSATION

The Petitioner Respectfully submits as under;

1. The Petitioner has filed the present petition seeking for the Issuance of Writ in the nature of Certiorari quashing the Judgment & Award dated 1-7-2023 passed in LAC No. 731/2018 on the file of the I Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi & the Land Acquisition, Rehabilitation & Resettlement Authority, Jamakhandi vide **Annexure-A** and for issuance of Writ in the nature of Mandamus directing the Reference Court to reopen the proceedings after impleading the present Petitioner as a party Respondent.
2. It is submitted that, the Petitioner, being the beneficiary of the acquisition, is a 'person interested' under the Act, 2013 and thus is a proper and necessary party to the proceedings before the Reference Court as well as this Hon'ble Court. However, the Petitioner has not been arrayed as a party Respondent either before the Reference Court in LAC or before this Hon'ble Court in MFA, for the reasons best known to the Claimants. Since the impugned order has been passed without hearing the Petitioner / Beneficiary.
3. It is submitted that, since, the Petitioner was not made party before the Reference Court as well as before this Hon'ble Court,

obtaining certified copy of the Judgment & Award dated 1-7-2023 passed by the Reference Court / Authority in LAC No. 731/2018 would take considerable time. In view of urgency, the Petitioner has produced webhosted copy of the Judgment & Award dated 1-7-2023 passed in LAC No. 731/2018. The Petitioner undertakes to apply for certified copy of the Judgment & Award dated 1-7-2023 passed in LAC No. 731/2018 within 8 weeks and produce the same immediately after receipt.

WHEREFORE it is most humbly prayed before this Hon'ble Court to dispense with the production of certified copy of the Judgment & Award dated 1 7 2023 passed in LAC No. 731/2018 on the file of the 1 Additional District & Sessions Judge, Bagalkot, to sit at Jamakhandi & the Land Acquisition, Rehabilitation & Resettlement Authority, Jamakhandi vide **Annexure-A** in the interest of justice and equity.

Place : Dharwad

Date : 15.07.2025

Advocate for Petitioner

(Santosh B. Mane)

IN THE HIGH COURT OF KARNATAKA

DHARWAD BENCH, AT DHARWAD

WRIT PETITION No.

/ 2025

BETWEEN:

Krishna Bhgaya Jala Nigam Limited

Petitioner

AND:

The Special Land Acquisition Officer & Ors

Respondents

MEMORANDUM OF FACTS

I, Santosh S/o. Bhimarao Mane, Age: 57 Years, Occ: Advocate, R/o. LIG II/B, H.No 9 Chaitanya Nagar, and Dharwad 580 008, today at Dharwad, do hereby solemnly affirm & state on oath as follows:

1. I am Counsel for the Petitioner in the above Writ Petition. I am conversant with the facts and circumstances of the case. Hence, I am swearing to the contents of these memorandum facts as per instructions furnished by the Managing Director of the Petitioner.
2. I state that, the averments made in paragraphs 1 to 3 of the accompanying application are true and correct to the best of my knowledge, information and belief.

Place : Dharwad

Date : 15.07.2025

Advocate for Petitioner
(Santosh B.Mane)